CITY OF NORTH LAUDERDALE
CITY COMMISSION MEETING

AMENDED AGENDA

TUESDAY, MAY 12, 2026

COMMISSION CHAMBERS
701 SW 71 AVENUE

NORTH LAUDERDALE FL 33068

Mayor at Large Samson Borgelin
Vice Mayor Mario Bustamante
Commissioner Luke Lewis
Commissioner Dr. Regina Martin
Commissioner Dee Lewis-Ricketts
City Manager Michael Sargis
City Attorney Michelle Austin Pamies
City Clerk Susan Slattery

CITY OF NORTH LAUDERDALE

REGULAR COMMISSION MEETING

6:00 P.M.

MAY 12, 2026

AGENDA

1. **CALL TO ORDER**

2. **MOMENT OF REFLECTION AND PLEDGE OF ALLEGIANCE - MAYOR BORGELIN**

3. **ROLL CALL**

   MAYOR SAMSON BORGELIN
   VICE MAYOR MARIO BUSTAMANTE
   COMMISSIONER DEE LEWIS-RICKETTS
   COMMISSIONER LUKE LEWIS
   COMMISSIONER DR. REGINA MARTIN
   CITY MANAGER MICHAEL SARGIS
   CITY ATTORNEY MICHELLE AUSTIN PAMIES
   CITY CLERK SUSAN SLATTERY

4. **APPROVAL OF MINUTES**

   a. **APRIL 14, 2026**
   Draf Minutes 04-14-20261.pdf

5. **PRESENTATIONS**

   a. **RECOGNITION CITY STAFF - RESIDENT SUPPORT FOR IMPACTED AREA IN BROADVIEW ESTATES - FPL POWER POLE ISSUE - SATURDAY, MAY 2nd, 2026**

   Fire

   - **Driver Engineer Steven Springs**
   - **Lieutenants Houston Holcombe**
   - **Fire Fighter/Paramedic Dylan Peritz**
   - **Fire Fighter/Paramedic Chris Ponton**
   - **Fire Fighter/Paramedic Mike Dugas**
   - **Battalion Chief Eddie Monahan**
   - **Division Chief Brad Myers**

Community Development

- **Tanya Davis Hernandez, Community Development Director**
- **June Peart, Code Compliance Supervisor**
- **Lilla Ganaishlal, Code Officer**
- **Ronald Duverna, Code Officer**

Parks

- **Jerry Gelin, Assistant Park Operations Manager**
- **Ricky Reed, Grounds Maintenance Worker I**
- **Bruce Howard, Grounds Maintenance Worker I**
- **Michael Neun, Recreation Programmer II**

Public Works/Utilities

- **Christopher McCall**
- **Ivan Davis**
- **Jimmy Chevelon**
- **Lancelot Williams**

Administration

- **Horace McHugh**

b. **2026 CITY OF NORTH LAUDERDALE ACADEMIC SCHOLARSHIP PROGRAM IN PARTNERSHIP WITH WASTE MANAGEMENT OF FLORIDA, INC.**

MEMO - Scholarship 2026.docx

6. PROCLAMATIONS

a. **MUNICIPAL CLERKS WEEK**
PROC - Municipal Clerks Week May 3 - May 9, 2026 .pdf

b. **2026 NATIONAL PUBLIC WORKS WEEK**

PROC_-_NATIONAL_PUBLIC_WORKS_WEEK.pdf

c. **MENTAL HEALTH AWARENESS MONTH**
PROC_-_MENTAL_HEALTH_AWARENESS_MONTH_2026.pdf

d. **RONALD DAVIS DAY**
PROC_-_RONALD_DAVIS.pdf

e. **CITY OF NORTH LAUDERDALE DAY OF PRAYER**
PROC - National Day of Prayer May 7, 2026.pdf

f. **HAITIAN AMERICAN HERITAGE MONTH AND HAITIAN FLAG DAY**
PROC - Haitian Flag Day 2026.pdf

7. PUBLIC COMMENTS

8. PUBLIC HEARING

a. **PUBLIC HEARING AND SECOND AND FINAL READING - PROPOSED CHARTER AMENDMENTS**

AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, PROVIDING FOR THE SUBMISSION TO THE ELECTORS OF THE CITY FOR APPROVAL OR REJECTION A SERIES OF PROPOSED AMENDMENTS TO THE CITY CHARTER WHICH RESULTED FROM THE CITY COMMISSION'S REVIEW OF THE RECOMMENDATIONS OF THE CHARTER REVIEW COMMISSION, IN ACCORDANCE WITH SECTION 9.9 OF THE CITY CHARTER; PROVIDING REQUISITE LANGUAGE FOR THE SUBMISSION OF FIVE (5) BALLOT MEASURES TO THE ELECTORATE; CALLING A SPECIAL ELECTION ON THE PROPOSED AMENDMENTS TO THE CITY CHARTER TO BE HELD ON TUESDAY, THE 3RD DAY OF NOVEMBER, 2026; PROVIDING NOTICE OF ELECTION; PROVIDING FOR INCLUSION IN THE CHARTER; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

Memo On Charter Amendment Ordinance 5-4-2026.pdf
Draft_of_Proposed_Charster_Amendment_Ordinance_4-15-2026_PDF.pdf
Business Impact Statement - Charter Amendment Ordinance.pdf

b. **UPDATE CITY OF NORTH LAUDERDALE CODE OF ORDINANCES CHAPTER 3 PROCUREMENT PROCEDURES - FIRST READING**

AN ORDINANCE OF THE CITY OF NORTH LAUDERDALE, BROWARD COUNTY, FLORIDA; AMENDING PART II – CODE OF ORDINANCES, CHAPTER 3 PROCUREMENT PROCEDURES; SECTION 3-2, DEFINITIONS, SECTION 3-4, COMPETITIVE BIDDING OR COMPETITIVE PROPOSALS REQUIRED; EXCEPTIONS, SECTION 3-8, AWARD OF CONTRACT, SECTION 3-10, CHANGE ORDERS, SECTION 3.18, UNSOLICITED PROPOSALS, PROVIDING FOR ADOPTION; PROVIDING FOR CONFLICT; PROVING FOR SEVERABILITY; PROVIDING FOR CODIFICATION; AND PROVIDING FOR AN EFFECTIVE DATE.

MEMO - PROCUREMENT ORDINANCE.pdf
ORD - PROCUREMENT CODE.pdf

9. QUASI-JUDICIAL ITEMS - NONE

10. CONSENT AGENDA

- Remove items from consent agenda if desired
- Commission motion, second and vote to read
- Attorney reads consent agenda
- Commission motion, second and vote to adopt the consent agenda

a. 52nd YEAR (2026-2027) COMMUNITY DEVELOPMENT BLOCK GRANT APPPLICATION

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA AUTHORIZING AND DIRECTING THE CITY MANAGER OF THE CITY OF NORTH LAUDERDALE, FLORIDA, TO APPLY FOR AND TO FILE SUCH DOCUMENTS AS MAY BE REASONABLY REQUIRED FOR AVAILABLE 52nd YEAR (FISCAL YEAR OCTOBER 2026 – SEPTEMBER 2027) COMMUNITY DEVELOPMENT BLOCK GRANT FUNDS IN THE ESTIMATED AMOUNT OF $268,858 FOR THE RESIDENTIAL REHAB, HARDENING, AND FIXED ADA IMPROVEMENTS PROGRAM PROVIDING THAT THE CITY MANAGER SHALL BE AUTHORIZED TO EXECUTE GRANT AWARD AGREEMENTS AND TO TAKE ALL NECESSARY ACTIONS, INCLUDING, BUT NOT LIMITED TO EXTENSIONS OF TIME, LINE-ITEM BUDGET AMENDMENTS, AND PROGRAM MODIFICATIONS TO IMPLEMENT SAID PROGRAMS IF AND WHEN FUNDING IS APPROVED; PROVIDING FOR FINDINGS AND CONCLUSIONS WITH REGARD TO THE BENEFITS TO BE DERIVED BY PROCESSING AND OBTAINING SUCH GRANT FUNDS; AND, PROVIDING AN EFFECTIVE DATE.

CM - - - MEMO - CDBG 52nd Year Residential Rehab, Hardening, and Fixed ADA Improvements Program Revised.doc
cm - - - RESO - CDBG 52nd Year Residential Rehab, Hardening, and Fixed ADA Improvements Program Revised.doc

b. RENOVATION TO TOT PARK AND AWARD PIGGYBACK AGREEMENTS TO GAMETIME, FOR A NEW PLAYGROUND AND SURFACING, CXT LB FOSTER FOR NEW PRECAST RESTROOM BUILDING AND EXOFIT/PLAYMORE FOR A NEW OUTDOOR FITNESS ZONE.

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AUTHORIZING THE CITY MANAGER OR DESIGNEE TO ENTER INTO AGREEMENTS FOR THE RENOVTION OF TOT PARK TOTALING $332,465.83 FOR (1) $108,190.98 TO CXT LB FOSTER COMPANY FOR A PRECAST RESTROOM BUILDING UTILIZING SOURCEWELL CONTRACT 052725-CXT; (2) GAMETIME FOR A NEW PLAYGROUND TOTALING $98,882.10 UTILIZING OMNIA PARTNERS / U.S. COMMUNITIES CONTRACT #2017001134; AND (3) PLAYMORE FOR AN OUTDOOR FITNESS ZONE AND SHADE STRUCTURE TOTALING $125,392.75 THRU A CONTRACT AWARD WITH THE SCHOOL BOARD OF MANATEE COUNTY IN ACCORDANCE WITH NORTH LAUDERDALE PROCUREMENT CODE 3-4(B) "E" AND "F" PROVIDING FOR CONFLICT, PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

CM_-_-_Tot_Park_Staff_Memo.docx
CM_-_Resolution_Tot_Park_Playground.docx
CXT_Quote-Updated.pdf

Tot_Park_-_Opt.1_-_Rev.1_-_Package.pdf
Tot_Park_ExoFit_Opt_2-with_Shade_Structure.pdf

c. PURCHASE AND INSTALL SECURITY GATE AND PERIMETER FENCING AROUND FIRE STATION 44

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AUTHORIZING THE CITY MANAGER TO ISSUE PURCHASE ORDERS FOR THE INSTALLATION OF PERIMETER FENCING, A RAPID-OPENING SECURITY GATE TO COAST TO COAST GARAGE DOOR LLC IN AN AMOUNT OF $60,875.68, AND A GALAXY ACCESS CONTROL/INTERCOM SYSTEM TO IDEAL TECH SOLUTIONS, LLC IN THE AMOUNT OF $12,423.89 AT FIRE STATION 44; PROVIDING FOR A PROJECT CONTINGENCY OF $7,329.96; FOR A TOTAL OF $80,629.53; PROVIDING FOR AN EFFECTIVE DATE.

cm_-_Memo_for_ST44_Security_Gate.pdf
RESO_for_ST44_Security_Gate.docx(ncp).pdf
Est_9894_from_Coast_To_Coast_Garage_Door_LLC_18712.pdf
Estimate_E022630_from_Ideal_Tech_Solutions.pdf
SlideDriverII_SpecSheet.pdf

d. APPROVAL OF EXPENDITURES TOTALING $38,000 FOR HAITIAN FLAG DAY FESTIVITIES

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA AUTHORIZING THE CITY MANAGER OR DESIGNEE TO MAKE EXPENDITURES FOR THE CITY OF NORTH LAUDERDALE HAITIAN FLAG DAY FESTIVITIES IN AN AMOUNT OF $38,000, PROVIDING FOR SEVERABILITY, PROVIDING FOR CONFLICTS, AND PROVIDING FOR AN EFFECTIVE DATE.

CM_-_-_Haitian_Flag_Day_Expenditures_Staff_Memo_2026.pdf
cm_-_Reso_Haitian_Flag_Day_Festivities_5_12_26 (NCP).pdf

e. RATIFICATION OF EXPENDITURES AND APPROPRIATION OF ADDITIONAL FUNDS FOR PUBLICATION OF CITYWIDE NEWSLETTER

A Resolution of the City Commission of the City of North Lauderdale, Florida, ratifying the City Manager's expenditure of $27,941.25 to Mailers Mailhouse for newspaper publication; and authorizing an additional $10,000 expenditure to Mailers Mailhouse in FY26, for a total FY26 authorization of $37,941.25.

CM_-_-_Mailers_Mailhouse_Agenda_Memo.pdf
Reso_Mailers_Mailhouse.docx(ncp).pdf

f. AMENDMENT TO PAY PLAN FOR TRANSFER - COMMUNITY FACILITATOR

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AMENDING THE 2025/26 PAY PLAN AUTHORIZING THE TRANSFER OF THE COMMUNITY FACILITAOR COORDINATOR POSITION FROM THE PARKS AND RECREATION DEARTMENT TO THE COMMUNITY DEVELOPMENT DEPARTMENT TO BETTER ALIGN ITS FUNCTIONS WITH THE CITY'S BROADER COMMUNITY PLANNING, OUTREACH AND DEVELOPMENT EFFORTS, PROVIDING FOR SEVERABILITY,

PROVIDING FOR CONFLICTS, AND PROVIDING FOR AN EFFECTIVE DATE.

CM - - - Memo - Approval of Employee Transfer â€“ Community Facilitator Coordinator.docx
cm - - RESO - MEMO - TRANSFER OF COMMUNITY FACILITATOR COORDINATOR POSITION.docx

11. OTHER BUSINESS

a. **RECOMMENDATION FOR APPROVAL OF BUILDING ENCLOSURE CONSULTING SERVICES PROPOSAL WITH BECI-FLORIDA, LLC FOR FIRE STATION NO. 34**

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AUTHORIZING THE CITY MANAGE TO ACCEPT AND ISSUE A PURCHASE ORDER FOR A PROPOSAL FROM BECI-FLORIDA LLC, IN AN AMOUNT OF $26,450.00 FOR BUILDING ENCLOSURE CONSULTING SERVICES FOR FIRE STATION 34; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

CM_-_FS_34_memo.pdf
cm_-_fs_34_STUCCO_Reso.pdf

12. REPORTS

a. **FOLLOW-UP ITEM REPORT - CITY MANAGER - 4/14/AGENDA**
CITY_MANAGER_FOLLOW-UP_REPORT.pdf

13. CITY MANAGER COMMENTS

a. **NEW DISTRICT 20 CONGRESSIONAL MAP**

b. **UPCOMING NORTH LAUDERDALE ACTIVITIES, MEETINGS AND EVENTS**
LL- fire Town Hall.jpg
Sandbag Giveaway.png
Senior Club May 2026.jpg
May Monthly Calendar.jpg
Thursday Senior Pickleball (1).jpg
North Lauderdale LetterheadCHLORINATION 2026.jpg
Memorial Day 2026.jpg
Path to US Citizenship May 30 2026.jpg
Summer Camp 26.jpg

c. **EMERGENCY MANAGEMENT TRAINING FOR ELECTED OFFICIALS**
EM Training for Elected Officials 2026.docx

14. COMMISSION COMMENTS

a. **MAYOR AND COMMISSION APPOINTMENTS TO DOWNTOWN DEVELOPMENT ADVISORY BOARD**
Memo to City Commission from Mayor Samson Borgelin.pdf

b. **CAR SHOW - JUNE 28, 2026 (SPONSORED BY COMMISSIONER DR. MARTIN)**
MEMO- May 12, 2026 Commission Dr. Martin item.pdf

c. **MAYOR'S COMMUNITY BUSINESS PARTNERSHIP INITIATIVE - SPONSORED BY MAYOR BORGELIN**

d. **CREATION OF NORTH LAUDERDALE COMMUNITY FOUNDATION INITIATIVE - SPONSORED BY MAYOR BORGELIN**

e. **MAYOR'S COMMUNITY PRAYER BREAKFAST/NATIONAL DAY OF PRAYER RECOGNITION - SPONSORED BY MAYOR BORGELIN**

15. CITY CLERK COMMENTS

a. **CLARIFICATION OF SCRIVENER'S ERRORS ON RESOLUTIONS NO. 26-04-1871, 26-04-1872 & 26-1873 (VERBAL)**
MEMO_-_Scriveners_error (1).pdf
RESOLUTION_NO._1871.pdf
RESOLUTION_26-04-1872_CGA_SIGN.pdf
RESOLUTION_26-04-1873_Kimley-Horn.pdf

16. CITY ATTORNEY COMMENTS

17. ADJOURNMENT

Pursuant to Chapter 286.0105, Florida Statutes, if a person decides to appeal any decision made by the Commission or Board with respect to any matter considered at such meeting or hearing, he may need to ensure that a verbatim record of the proceedings is made which record includes the testimony and evidence upon which the appeal is based. Pursuant to the provisions of the Americans with Disabilities Act, any person requiring special accommodations to participate in this hearing is asked to advise the Agency at least 5 days before the hearing by contacting the City Clerk's office at one of the following: (1) 701 SW 71st Avenue, North Lauderdale, FL 33068; (2) Phone 954-724-7056; (3) Fax 954-720-2151; or CityClerk@nlauderdale.org . If you are hearing or speech impaired, please contact the agency using the Florida Relay Service, 1 (800) 955-8771 (TTY/VCO), 1 (800) 955-8770 (Voice), 1 (800) 955-8773 (Spanish)

Agenda Packets for upcoming Commission or Board meetings will be available at the City's website, http://www.nlauderdale.org at least 48 hours prior to the meeting.

CITY OF NORTH LAUDERDALE REGULAR COMMISSION MEETING

APRIL 14, 2026

6:00 p.m.

Draft Minutes

1. **CALL TO ORDER:** The Honorable Samson Borgelin, Mayor of the City of North Lauderdale, officially called the meeting to order at 6:00 p.m. at the Commission Chambers 701 SW 71st Ave. North Lauderdale.

2. **MOMENT OF REFLECTION AND PLEDGE OF ALLEGIANCE -** Commissioner Lewis-Ricketts led the audience in the Pledge of Allegiance.

3. **ROLL CALL:** The City Clerk conducted a roll call to confirm there was a quorum.

Mayor Samson Borgelin	Present
Vice Mayor Mario Bustamante	Present
Commissioner Dee Lewis-Ricketts	Present
Commissioner Luke Lewis	Present
Commissioner Dr. Regina Martin	Present
City Manager Michael Sargis	Present
City Attorney Michelle Austin Pamies	Present
City Clerk Susan Slattery	Present

4. **APPROVAL OF MINUTES**

   a. **Approval of March 31, 2026 Commission Meeting Draft Minutes**

Commissioner Lewis-Ricketts moved to approve the minutes of March 31, 2026 Commission meeting. Commissioner Lewis seconded the motion. The City Clerk performed a roll call, and all members of the Commission voted in favor as presented.

The Motion to Approve March 31, 2026 Commission Meeting Draft Minutes Was Approved Unanimously as Presented.

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5. PRESENTATIONS

a. KEY TO THE CITY - KENNETH "KENNY" MCINTOSH

The Commission honored Commissioner Lewis's request to present the City's Key to Kenneth "Kenny" McIntosh, a champion with the Seattle Seahawks. After receiving the Key to the City, McIntosh joined his friends, family, and the Commission for a group photo to commemorate the moment.

b. ZYSCOVICH - DOWNTOWN CONCEPT

The Zyscovich Architectural Firm presented a preliminary blueprint framework illustrating the vision and key components of the downtown redevelopment initiative.

c. RETIREMENT - SUE ELLIS - POOL MANAGER

The Commission also recognized Ms. Sue Ellis, the Pool Manager, who retired after an impressive 24 years of dedicated service to the City.

PROCLAMATIONS – NONE: While the City Charter does not permit proclamations to be issued upon a death, the Mayor entered a formal sympathy statement into the record honoring the memory of Vice Mayor Nancy Metayer. Also, Mayor Borgelin made a motion to approve the purchase of floral arrangement to be delivered on April 17, 2026 to the celebration of life of Vice Mayor Metayer on behalf of Mayor and Commission. Commissioner Dr Martin seconded the motion.

6. PUBLIC DISCUSSION:

Terry Glasford and Bonnetta Nicasio, on behalf of Broadview Elementary School, requested the City's assistance with the cost of a unity mural on the school's campus.

Zoila Bustamante commented on the City's funds not used to cover the cost of traveling to Guatemala. Every traveler is responsible for their travel cost.

Menelik Solomon commented on the use of public funds, procurement, code compliance, utility billing and vague response from the City Clerk.

7. QUASI-JUDICIAL ITEMS: None

8. PUBLIC HEARING

PUBLIC HEARING AND FIRST READING - PROPOSED CHARTER AMENDMENTS

AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, PROVIDING FOR THE SUBMISSION TO THE ELECTORS OF THE CITY FOR APPROVAL OR REJECTION A SERIES OF PROPOSED AMENDMENTS TO THE CITY CHARTER WHICH RESULTED FROM THE CITY

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COMMISSION'S REVIEW OF THE RECOMMENDATIONS OF THE CHARTER REVIEW COMMISSION, IN ACCORDANCE WITH SECTION 9.9 OF THE CITY CHARTER; PROVIDING REQUISITE LANGUAGE FOR THE SUBMISSION OF SIX (6) BALLOT MEASURES TO THE ELECTORATE; CALLING A SPECIAL ELECTION ON THE PROPOSED AMENDMENTS TO THE CITY CHARTER TO BE HELD ON TUESDAY, THE 3RD DAY OF NOVEMBER, 2026; PROVIDING NOTICE OF ELECTION; PROVIDING FOR INCLUSION IN THE CHARTER; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

At the Mayor request, the City Attorney read the ordinance into records. The Mayor then invited the audience to comment on the item. Carol Cheyne and Alba Boada addressed the Commission on the matter. Following public comments, Commissioner Lewis-Ricketts move to discuss. Commissioner Lewis seconded the motion. Then, Commissioners discussed the items and asked questions, and made comments. Subsequently, Mayor Borgelin introduced the followings amendments to the ordinance:

a. Removal of item 3 regarding Vice Mayor rotation from the list. Mayor Borgelin moved to remove the item. Commissioner Lewis-Ricketts seconded, the City Clerk took a roll call, and Mayor Borgelin, Vice Mayor Bustamante, and Commissioner Lewis-Ricketts voted in favor of removing item 3. Commissioner Lewis and Commissioner Martin voted against.

b. Item 4: Mayor Borgelin commented on removing all secretarial duties from the City Clerk's Office and allowing each Commissioner to have a legislative aide. Based on the City Attorney's input, no changes were necessary, and Item 4 remained unchanged.

c. Mayor Borgelin then moved to expand the number of Charter Review Board members from five to eleven, as well as to grant the Commission the authority to appoint the Charter Review Board Chair and Vice Chair. Commissioner Lewis-Ricketts seconded the motion. The City Clerk conducted a roll call vote, and all members of the Commission voted in favor.

Subsequently, Commissioner Lewis-Ricketts moved to approve the ordinance first reading as amended, Vice Mayor Bustamante seconded. The City Clerk took the roll call, Mayor Borgelin, Vice Mayor Bustamante, and Commissioner Lewis-Ricketts voted in favor with amendments. Commissioner Lewis and Commissioner Martin voted against.

THE ORDINANCE WAS PASSED AND APPROVED WITH AMENDMENTS ON FIRST READING, WITH THREE VOTES IN FAVOR AND TWO VOTES AGAINST.

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9. CONSENT AGENDA

Commissioner Lewis moved to read the consent agenda without modification. Commissioner Martin seconded. The City Attorney read.

- Remove items from consent agenda if desired
- Commission motion, second and vote to read
- Attorney reads consent agenda
- Commission motion, second and vote to adopt the consent agenda

a. MINOR HOME REPAIR PROGRAM (MHRP) AND CENTRAL AIR CONDITIONING PROGRAM (CACP) ADDITIONAL FUNDING REQUEST FOR FY26

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AUTHORIZING THE CITY MANAGER OR DESIGNEE TO APPROVE THE REALLOCATION OF FUNDS REQUEST FOR FY26 TO THE MINOR HOME REPAIR PROGRAM (MHRP) AND CENTRAL AIR CONDITIOING PROGRAM (CACP) IN THE AMOUNT OF $200,000.00; PROVIDING FOR CONFLICT, PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

RESOLUTION NO. 26-04-1867 PASSED AND APPROVED UNANIMOUSLY.

b. 5TH AMENDMENT TO NLAU-008 CONSTRUCTION AGREEMENT TO REFLECT THAT $33,001.31 FUNDING ROLLED FROM THE DESIGN PHASE INCLUDES $1,221.31 OF SURTAX FUNDS ALREADY PAID TO THE CITY.

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AUTHORIZING THE MAYOR TO EXECUTE THE FIFTH AMENDMENT TO THE INTERLOCAL AGREEMENT BETWEEN BROWARD COUNTY AND THE CITY OF NORTH LAUDERDALE FOR SURTAX GRANT PROJECT NLAU-008 S.W. 64 TERRACE SOUND WALLS, SIDEWALKS, AND TRAFFIC CALMING IMPROVEMENTS TO ACCOUNT FOR A PAYMENT OF $1,221.31 ALREADY MADE TO THE CITY; PROVIDING FOR IMPLEMENTATION; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

RESOLUTION NO. 26-04-1868 PASSED AND APPROVED UNANIMOUSLY.

c. **AUTHORIZATION TO EXECUTE AGREEMENT FOR EUNA SOLUTIONS SOFTWARE**

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AUTHORIZING THE CITY MANAGER OR DESIGNEE TO EXECUTE AN AGREEMENT WITH EUNA SOLUTIONS FOR THE PURCHASE AND IMPLEMENTATION OF THE EUNA SOLUTIONS SOFTWARE, UTILIZING THE SOURCEWELL COOPERATIVE CONTRACT, IN AN AMOUNT NOT TO EXCEED

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$154,386.00 FOR A THREE-YEAR TERM, WITH TWO OPTIONAL ONE YEAR RENEWAL TERMS; PROVIDING FOR FUNDING; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

RESOLUTION NO. 26-04-1869 PASSED AND APPROVED UNANIMOUSLY.

d. RATIFICATION AND AMENDMENT OF RESOLUTION NO. 22-10-1160 — FIRE ENGINE PURCHASE; LOOSE EQUIPMENT AUTHORIZATION

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, RATIFYING AND CONFIRMING RESOLUTION NO. 22-10-1160 RELATING TO THE PURCHASE OF A FIRE ENGINE IN AN AMOUNT OF $769,115.00; AND AUTHORIZING PROCUREMENT OF LOOSE EQUIPMENT IN THE AMOUNT OF $180,884.30; PROVIDING FOR CONFLICTS, PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

Following the reading, Commissioner Lewis moved to approve the consent agenda as presented. Commissioner Martin seconded. The City Clerk then called the roll, and the motion passed unanimously.

RESOLUTION NO. 26-04-1870 PASSED AND APPROVED UNANIMOUSLY.

11. OTHER BUSINESS

a. REQUEST FOR A SERVICE AGREEMENT BETWEEN THE CITY OF NORTH LAUDERDALE AND CALVIN GIORDANO & ASSOCIATES, INC. TO UPDATE CHAPTER 106, ARTICLE V - GENERAL SUPPLEMENTARY REGULATIONS IN THE CITY'S CODE OF ORDINANCES.

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AUTHORIZING THE CITY MANAGER OR HIS DESIGNEE TO ENTER INTO A SERVICE AGREEMENT BETWEEN THE CITY OF NORTH LAUDERDALE AND CALVIN GIORDANO & ASSOCIATES, INC., TO UPDATE CHAPTER 106, ARTICLE V - GENERAL SUPPLEMENTARY REGULATIONS IN THE CITY'S CODE OF ORDINANCES; A COPY OF THE AGREEMENT IS ATTACHED HERETO AS ATTACHMENT A; PROVIDING FOR FINDINGS; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

Commissioner Lewis moved to approve item 11 a. Commissioner Martin seconded. The City Clerk then called the roll, and the motion passed unanimously.

RESOLUTION NO. 26-04-1871 PASSED AND APPROVED UNANIMOUSLY.

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b. REQUEST FOR A SERVICE AGREEMENT BETWEEN THE CITY OF NORTH LAUDERDALE AND CALVIN GIORDANO & ASSOCIATES, INC. TO UPDATE CHAPTER 94 - SIGNS IN THE CITY'S CODE OF ORDINANCES.

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AUTHORIZING THE CITY MANAGER OR HIS DESIGNEE TO ENTER INTO A SERVICE AGREEMENT BETWEEN THE CITY OF NORTH LAUDERDALE AND CALVIN GIORDANO & ASSOCIATES, INC., TO UPDATE CHAPTER 94 - SIGNS IN THE CITY'S CODE OF ORDINANCES; A COPY OF THE AGREEMENT IS ATTACHED HERETO AS ATTACHMENT A; PROVIDING FOR FINDINGS; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

Commissioner Martin moved to approve item 11 b. Commissioner Lewis seconded. The City Clerk then called the roll, and the motion passed unanimously.

RESOLUTION NO. 26-04-1872 PASSED AND APPROVED UNANIMOUSLY.

c. REQUEST FOR A SERVICE AGREEMENT BETWEEN THE CITY OF NORTH LAUDERDALE AND KIMLEY-HORN TO UPDATE CHAPTER 106 OF THE CITY'S CODE OF ORDINANCES, EXCLUDING ARTICLE V. - GENERAL SUPPLEMENTARY REGULATIONS.

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AUTHORIZING THE CITY MANAGER OR HIS DESIGNEE TO ENTER INTO A SERVICE AGREEMENT BETWEEN THE CITY OF NORTH LAUDERDALE AND KIMLEY-HORN TO UPDATE CHAPTER 106 OF THE CITY'S CODE OF ORDINANCES, EXCLUDING ARTICLE V. - GENERAL SUPPLEMENTARY REGULATIONS; PROVIDING FOR FINDINGS; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

Commissioner Martin moved to approve item 11c. Commissioner Lewis seconded. The City Clerk then called the roll, and the motion passed unanimously.

RESOLUTION NO. 26-04-1873 PASSED AND APPROVED UNANIMOUSLY.

d. 2026-2027 BOARD OF DIRECTORS APPOINTMENTS TO BROWARD LEAGUE OF CITIES

A RESOLUTION OF THE NORTH LAUDERDALE CITY COMMISSION APPOINTING A DIRECTOR, AN ALTERNATE DIRECTOR AND A SECOND ALTERNATE TO THE BROWARD LEAGUE OF CITIES BOARD OF DIRECTORS, EFFECTIVE MAY 30, 2026, THROUGH MAY OF 2027; PROVIDING THAT A COPY OF THIS RESOLUTION BE SENT TO THE BROWARD LEAGUE OF CITIES; AND PROVIDING AN EFFECTIVE DATE.

Commissioner Lewis moved to approve Mayor Samson Borgelin as Director, Luke Lewis Alternate Director, and Vice Mayor Mario Bustamante as 2nd Alternate Director to the Broward League of

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Cities. Commissioner Martin seconded. The City Clerk then called the roll, and the motion passed unanimously.

RESOLUTION NO. 26-04-1874 PASSED AND APPROVED UNANIMOUSLY.

e. AUTHORIZE NEGOTIATIONS WITH BROWARD SHERIFF'S OFFICE (BSO) TO PROVIDE LAW ENFORCEMENT SERVICES FOR THE CITY OF NORTH LAUDERDALE, FOR A PERIOD STARTING OCTOBER 1, 2026

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AUTHORIZING THE CITY MANAGER, CITY ATTORNEY OR DESIGNEE TO ENTER INTO NEGOTIATIONS WITH THE BROWARD SHERIFF'S OFFICE FOR LAW ENFORCEMENT SERVICES FOR THE CITY OF NORTH LAUDERDALE, FOR A PERIOD STARTING OCTOBER 1, 2026; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

Commissioner Martin moved to approve item 11e. Commissioner Lewis seconded. The City Clerk then called the roll, and the motion passed unanimously.

RESOLUTION NO. 26-04-1875 PASSED AND APPROVED UNANIMOUSLY.

f. **APPROVAL OF $93,494.04 TO CHEN MOORE AND ASSOCIATES (CMA) FOR LIFT STATIONS 5 & 11, STORM DRAINAGE CULVERT, BISCAYNE WELL #4 PROJECTS**

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, ACCEPTING PROPOSALS FROM CHEN MOORE AND ASSOCIATES, INC. FOR ADDITIONAL ENGINEERING SERVICES RELATED TO THE LIFT STATIONS 5 AND 11 PROJECT ($17,400), THE STORM DRAINAGE CULVERT REPLACEMENT PROJECT ($71,093.04), AND RECORD DRAWINGS FOR THE BISCAYNE WELL #4 PROJECT ($5,000), FOR A TOTAL AMOUNT OF $93,493.04; AUTHORIZING THE CITY MANAGER OR DESIGNEE TO EXECUTE ANY NECESSARY CONTRACT AMENDMENTS OR PURCHASE ORDERS; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING AN EFFECTIVE DATE.

Commissioner Lewis moved to approve 11 f. Commissioner Martin seconded. The City Clerk then called the roll, and the motion passed unanimously.

RESOLUTION NO. 26-04-1876 PASSED AND APPROVED UNANIMOUSLY.

12. REPORTS: None

DRAFT

13. CITY MANAGER COMMENTS

The City Manager commented on the upcoming items.

a. UPCOMING ITEMS

2026 Youth Basketball.jpg
Copy of North Lauderdale Marketplace with all dates .
District D - May Clean-up.
Gardening Day 2026
Summer Camp
North Lauderdale Letterhead CHLORINATION 2026.

14. COMMISSION COMMENTS

By unanimous consent, the Commission approved the followings items:

a. **Town Hall May 19, 2026 - Sponsored by Commissioner Lewis**
Memo - 04-14-2026 Commissioner Lewis - Town Hall - Fire Training Center.

b. **Ceremonial Item Request - Ronald Davis - Sponsored by Mayor Borgelin**
CCM 04-14-2026 - Mayor Borgelin Ceremonial Item Request.

c. Car Show and Back to School Pool Party - Sponsored by Commissioner Dr. Martin

District A: Commissioner Lewis sought consensus for his May 19th district A town Hall at Fire Training Center-Topic use of fire extinguishers.

District B: Vice Mayor Bustamante requested update on projects- concrete wall, murals on McNab Road, repaving Rock Island Road and 81st Avenue, residents' complaint about streetlights being out.

District C: Commissioner Martin extended appreciation to everyone who supported her food drive and sought consensus to allow the May Car Show and the July pool party backpack giveaway.

District D: Commissioner Lewis-Ricketts commented on Tea Time, letter to property owners reference mailboxes, CAC building update

Mayor Borgelin thanked the dedicated staff of the Mayor's Office, commented on the upcoming P3 Workshop scheduled for May 28, 2026, at Champions Hall, and spoke about the FIFA World Cup activities taking place in North Lauderdale. He also highlighted the Mayor's Night event on April 24, 2026, on the Downtown area, along with the keep North Lauderdale clean, safe, and healthy initiative.

DRAFT

15. CITY CLERK COMMENTS: No comment

16. **CITY ATTORNEY COMMENTS:** No comment.

17. ADJOURNMENT: There being no other business, meeting adjourned at 9:33 P.M.

DRAFT

CITY OF NORTH LAUDERDALE
PUBLIC WORKS/UTILITIES DEPARTMENT

TO: **Mayor and City Commission**

FROM: **Michael Sargis, City Manager**

BY; **Neil Buckeridge, Interim Public Works/Utilities Director**

DATE: **May 12th, 2026**

SUBJECT: **North Lauderdale/Waste Management Academic Scholarship Program Results**

The City undertook a comprehensive outreach effort over a three-month period to maximize awareness and participation in the scholarship program among North Lauderdale residents. This initiative included direct solicitation of applications from all public and private high schools throughout Broward County, ensuring broad visibility across diverse student populations.

In addition, the City leveraged its digital communication channels by prominently featuring program flyers on its official website and actively promoting the opportunity through its social media platforms. Flyers were also distributed to elected officials to further share with residents, significantly expanding community reach and engagement.

Through a generous $5,000 donation from Waste Management, the City was able to offer five (5) scholarships in the amount of $1,000 each to eligible North Lauderdale students. Applicants were required to meet the following criteria:

- Be a U.S. Citizen or Resident Alien
- Provide proof of North Lauderdale residency
- Maintain a minimum GPA of 2.5
- Complete a minimum of 40 community service hours
- Be accepted to or enrolled in a two- or four-year college or technical school

The City received a total of eleven (11) applications. Of these, two (2) were deemed ineligible due to applicants not residing in North Lauderdale. The remaining nine (9) applications were thoroughly reviewed by a selection committee comprised of the following City staff:

- Isabela Crowley, Planner
- Myriam Jacques, Public Works Superintendent
- Division Chief Brad Myers, North Lauderdale Fire Rescue
- Jonelle Powell, Recreation Programmer
- Heather Verga, Human Resources Manager

After careful evaluation of all submitted applications and supporting documentation, the committee selected five (5) outstanding candidates to receive a $1,000 the scholarships. The recipients are as follows:

	Name	High School	College
1.	Kelsie Reid 513 SW 72nd Ave District C	Coral Glades High School	Undecided between FAU, UCF, UM, FSU, and FIU
2.	Bryan Vasquez 8010 SW 7th Street District C	Somerset Preparatory Academy	University of West Florida Bachelor of Arts (BA) - Political Science Pre-Law
3.	Abraham Flynn 6901 Doral District A	Northwestern University	Northwestern University
4.	Leila Pierre 7519 Kimberly Blvd District A	Coconut Creek High School	University of West Florida
5.	Amanda Flynn 6901 Doral District A	Howard University School of Law	Howard University School of Law

North Lauderdale

PROCLAMATION

WHEREAS, the Office of the Professional Municipal Clerk, a time honored and vital part of local government exists throughout the world; and

WHEREAS, the Office of the Professional Municipal Clerk is the oldest among public servants; and

WHEREAS, the Office of the Professional Municipal Clerk provides the professional link between the citizens, the local governing bodies and agencies of government at other levels; and

WHEREAS, Professional Municipal Clerks have pledged to be ever mindful of their neutrality and impartiality, rendering equal service to all; and

WHEREAS, the Professional Municipal Clerk serves as the information center on functions of local government and community; and

WHEREAS, Professional Municipal Clerks continually strive to improve the administration of the affairs of the Office of the Municipal Clerk through participation in education programs, seminars, workshops and the annual meetings of their state, provincial, county and international professional organizations;

NOW, THEREFORE, The Mayor and City Commission of the City of North Lauderdale**,** hereby designate the week of May 3 – May 9, 2026, as

57th ANNUAL PROFESSIONAL MUNICIPAL CLERKS WEEK

Dated this 12th day of May, 2026

_____

MAYOR SAMSON BORGELIN

North Lauderdale

PROCLAMATION

WHEREAS, public works professionals focus on infrastructure, facilities, and services that are of vital importance to sustainable and resilient communities and to public health, high quality of life, and well-being of the people of City of North Lauderdale, Florida; and,

WHEREAS, these infrastructure, facilities, and services could not be provided without the dedicated efforts of public works professionals, who are engineers, managers, and employees at all levels of government and the private sector, who are responsible for rebuilding, improving, and protecting our nation's transportation, water supply, water treatment and solid waste systems, public buildings, and other structures and facilities essential for our citizens; and,

WHEREAS, it is in the public interest for the citizens, civic leaders, and children in City of North Lauderdale to gain knowledge of and maintain an ongoing interest and understanding of the importance of public works and public works programs in their respective communities; and,

WHEREAS, the year 2026 marks the 66th annual National Public Works Week sponsored by the American Public Works Association,

NOW, THEREFORE, the Mayor and City Commission of North Lauderdale, Florida hereby proclaims, May 17-23, 2026 as:

NATIONAL PUBLIC WORKS WEEK

and urge all citizens to join with representatives of the American Public Works Association and government agencies in activities, events, and ceremonies designed to pay tribute to our public works professionals, engineers, managers, and employees, and to recognize the substantial contributions they make to protecting our national health, safety, and advancing quality of life for all.

Dated this 12th day of May, 2026

_____

MAYOR SAMSON BORGELIN

North Lauderdale

PROCLAMATION

WHEREAS, NAMI Broward's Mission is to enhance awareness and provide programs in Broward County that support a world-class system for the treatment and recovery of individuals facing mental health challenges. NAMI Broward delivers support, education, and advocacy to nurture better understanding, coping strategies, and positive outcomes for people and their families navigating the complexities of mental health; and

WHEREAS, mental health conditions are treatable health concerns that are widespread and manageable; and

WHEREAS, comprehensive healthcare encompasses mental health care, which must be accessible to all individuals irrespective of race, gender, age, sexual orientation, socioeconomic status, values and cultural beliefs. It is vital that these factors are integrated into treatment, allowing the community to become a bastion of support; and

WHEREAS, the breadth of the mental health crisis affecting both children and adults is profound. One in five adults will encounter a mental health challenge in any given year. Half of all mental health conditions begin by age 14, and 75% by 24 years old. Prompt intervention leads to more favorable outcomes; and

WHEREAS, half of the children and adults living with mental health challenges never receive transformative treatment due to barriers to care and stigma. The resilience and recovery journey of individuals diagnosed with a mental health condition should be celebrated rather than stigmatized; and

WHEREAS, mental health challenges are not criminal issues. Nonetheless. Individuals with mental health diagnoses are disproportionately represented in jails and prisons. NAMI commends the implementation of Crisis Intervention Training for law enforcement officers, Diversion Programs, and Mobile Crisis Response Teams that effectively reduce involvement in the justice system and enhance safety; and

WHEREAS, individuals experiencing mental health challenges are capable of leading meaningful lives and contributing significantly to society. Communities aid those with mental health challenges by ensuring access to quality care and appropriate supports; and

NOW, THEREFORE, BE IT RESOLVED that they Mayor and City Commission of the City of North Lauderdale , do hereby proclaim May 2026, as,

"MENTAL HEALTH AWARENESS MONTH"

To promote mental health awareness, to inspire those living with mental health challenges to seek support, and be uplifted by our message: YOU ARE NOT ALONE

Dated this 12th day of May 2026

_____

MAYOR SAMSON BORGELIN

PROCLAMATION

WHEREAS, Ronald Davis has dedicated over 35 years as a resident of North Lauderdale, contributing significantly to the strength and unity of the Community; and

WHEREAS, his active involvement in local youth soccer programs has helped shape the lives of countless young individuals through mentorship, guidance, and leadership; and

WHEREAS, Ronald Davis played a vital role in the growth and development of the City's youth soccer programs, expanding opportunities for youth participation while fostering teamwork, discipline, and sportsmanship; and

WHEREAS, his unwavering commitment, volunteerism, and leadership have helped sustain soccer programs that benefit families throughout North Lauderdale and strengthen the fabric of the community;

NOW, THEREFORE, I, Samson Borgelin, Mayor and the City Commission of the City of North Lauderdale, do hereby proclaim April 28, 2026 as:

"RONALD DAVIS DAY"

in the City of North Lauderdale and thank Mr. Davis for his contributions and commitment to the City of North Lauderdale Youth Soccer Program.

Dated this 12th day of May 2026

_____

Mayor Samson Borgelin

North Lauderdale

PROCLAMATION

WHEREAS, the North Lauderdale Community Prayer Breakfast, in recognition of the National Day of Prayer will be held on Thursday, May 14, 2026, with the theme "One Community in Prayer, Unity & Hope"; and

WHEREAS, the National Day of Prayer has been part of our national heritage since it was declared by the First Continental Congress in 1775 and the United States Congress in 1952 approved as a Joint Resolution; and

WHEREAS, the United States Congress, in 1988 by Public Law 100-307, established an act to provide for setting aside the first Thursday in May as the date in which the National Day of Prayer is celebrated; and

WHEREAS, the Leaders and citizens across the nation are afforded the privilege of prayer with the joy of seeking divine guidance, strength, protection and comfort from God; and

WHEREAS, recognizing the love of God, the citizens of the City of North Lauderdale can treasure the freedom to gather in prayer, exercising reliance on God's power in the face of present challenges, and ask for blessings to be bestowed upon the City; and

NOW, THEREFORE, the Mayor and City Commission of the City of North Lauderdale, Florida do hereby recognize the National Day of Prayer with the

"NORTH LAUDERDALE COMMUNITY PRAYER BREAKFAST"

to be held on May 14, 2026 in the City of North Lauderdale, Florida.

Dated this 12th day of May, 2026

_____

MAYOR SAMSON BORGELIN

North Lauderdale

PROCLAMATION

WHEREAS, Haitian American Heritage Month is a jubilant celebration in the United States, embracing the rich heritage, culture, and contributions of the Haitian people; and

WHEREAS, first celebrated in Boston, Massachusetts in 1988, Haitian American Heritage Month is now observed nationwide throughout the month of May, from Florida to New York, with parades, festivals, cultural exhibitions, and community events; and

WHEREAS, the Haitian people made invaluable contributions to the fight for the independence of the United States of America, most notably through their heroic service in the Battle of Savannah in 1779, for which they are forever honored; and

WHEREAS, May 18 is Flag Day in Haiti, a day that celebrates the culture and heritage of the Haitian flag, honoring the forefathers of the nation and replenishing the resolve of all Haitians and Haitian Americans for a stronger future; and

WHEREAS, as educators, authors, community leaders, activists, athletes, artists, musicians, entrepreneurs, and public servants, Haitian Americans have made their mark in every facet of society and have contributed immeasurably to the betterment and diversity of the State of Florida and the United States of America; and

WHEREAS, the City of North Lauderdale is home to a proud and vibrant Haitian American community whose cultural heritage, work ethic, and civic engagement strengthen our city every day; and

WHEREAS, the United States and the State of Florida have thrived as a melding of immigrant communities, united by common values and the shared promise of a better tomorrow for all.

NOW, THEREFORE, I, Mayor Samson Borgelin, on behalf of the City Commission of the City of North Lauderdale, Florida, do hereby proclaim the month of May 2026 as:

HAITIAN AMERICAN HERITAGE MONTH

and

HAITIAN FLAG DAY — MAY 18, 2026

and encourage all residents of North Lauderdale to honor this observance, to celebrate the extraordinary contributions of our Haitian American neighbors, and to remember that the greatness of our city and our nation is found in its diversity.

Dated this 12th day of May, 2026

_____

MAYOR SAMSON BORGELIN

DAVID M. WOLPIN, PARTNER
DWolpin@wsh-law.com
954-763-4242

Memorandum

To: Mayor and City Commission, City of North Lauderdale, Florida

From: David M. Wolpin, Esq., Special Counsel for Charter Review Project

Date: May 4, 2026

Re: Ordinance Providing for Submission of Proposed City Charter Amendments to the Electors of the City

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I. INTRODUCTION.

As authorized and directed at the March 10, 2026, and April 14, 2026 meetings of the City Commission, this cover Memorandum shall serve to submit the attached Charter Amendment Ordinance to the City Commission for final reading on May 12, 2026. This Ordinance is prepared in conformance with applicable law, City Commission direction, and City Charter Section 9.9. Following adoption of the Ordinance, the proposed Charter amendments would be presented to the voters of the City for approval or rejection at the November 3, 2026 election

II. LIST OF THE FIVE (5) CHARTER AMENDMENT BALLOT QUESTIONS INCLUDED WITHIN THE PROPOSED ORDINANCE

The ballot questions provided for in Section 4 of this Charter Amendment Ordinance are as follows:

(1) AMENDMENTS TO CREATE UPDATED CITY CHARTER

Shall the City Charter be amended to reflect an updated Charter including revising the word "Council" to "Commission", recognizing existing single- member district election system, correcting and including references to State Law and Broward County Charter, and County election officials, allowing notices by website posting in lieu of newspaper publications, creating subparagraph headings for convenience of reference, deleting obsolete provisions , including changes made for clarity and consistency, and updating the Charter to satisfy applicable laws ?

YES [ ]

NO [ ]

(2) ELECTED OFFICIAL ATTENDANCE REQUIRED AT COMMISSION WORKSHOP MEEETINGS

The City Charter currently provides for the potential sanction of forfeiture of City elective office for the unexcused failure to attend four (4) consecutive regular Commission meetings. It is proposed to amend the Charter to apply the same attendance standards and sanctions for required attendance of City elected officials at Workshop Commission meetings.

Shall the above – described Charter amendment be adopted?

YES [ ]

NO [ ]

(3) AUTHORITY OVER CITY CLERK AND DEPUTY CITY CLERK

The City Charter currently provides for the City Clerk and Deputy City Clerk to be hired, terminated and report to the City Commission. It is proposed that the Charter be amended to place the hiring, termination, and reporting of the City Clerk and Deputy City Clerk under the authority and responsibility of the City Manager.

Shall the above – described Charter amendment be adopted?

YES [ ]

NO [ ]

(4) PROHIBITING WAIVER OF REQUIREMENT THAT THE CITY MANAGER MUST RESIDE IN BROWARD COUNTY, FLORIDA

The City Charter currently allows the City Commission to waive or excuse the requirement that the person serving as City Manager must reside in Broward County, Florida within six (6) months after being hired. It is proposed that the Charter be amended to prohibit the City Commission from waiving or excusing the requirement that the City Manager must reside in Broward County, Florida.

Shall the above- described Charter amendment be adopted?

YES [ ]

NO [ ]

(5) REVISING THE CHARTER REVIEW COMMISSION PROVISION

It is proposed that the Charter Review Commission be renamed the Charter Review Board, be expanded from 5 to 11 members , that the Board chair and vice- chair be designated by the City Commission , that State law be referenced for the review process, and that the Board have access to convenient meeting places and equipment to enhance public participation in the Charter review process.

Shall the above- described Charter amendment be adopted?

YES [ ]

NO [ ]

III. DESCRIPTION OF CERTAIN COMPONENTS OF THE CHARTER AMENDMENT ORDINANCE

Section 2 of the Ordinance contains the comprehensive mark- up of the Charter in track format (ie: proposed additions to existing charter text are shown in underline; proposed deletions from existing charter text are shown in strikethrough).

Section 3 of the Ordinance calls the Charter amendment election for November 3, 2026.

Section 4 of the Ordinance provides the five (5) ballot questions which are also set forth above in this Memorandum. Those five (5) ballot questions describe the chief purpose of each charter amendment measure. The ballot questions are what the voters would see on the ballot.

Section 6 of the Ordinance provides the Notice of Election form that would be published before the election.

IV. CONCLUSION

Kindly advise if any further information is required on the above and on the attached proposed Charter Amendment Ordinance.

Respectfully,

David M. Wolpin
Weiss Serota Helfman Cole + Bierman
Attorney for City of North Lauderdale Charter Review Project

Copy: City Clerk
City Manager
Charter Review Commission Members
City Attorney

ORDINANCE NO. 2026-___

AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, PROVIDING FOR THE SUBMISSION TO THE ELECTORS OF THE CITY FOR APPROVAL OR REJECTION A SERIES OF PROPOSED AMENDMENTS TO THE CITY CHARTER WHICH RESULTED FROM THE CITY COMMISSION'S REVIEW OF THE RECOMMENDATIONS OF THE CHARTER REVIEW COMMISSION, IN ACCORDANCE WITH SECTION 9.9 OF THE CITY CHARTER; PROVIDING REQUISITE LANGUAGE FOR THE SUBMISSION OF FIVE (5) BALLOT MEASURES TO THE ELECTORATE; CALLING A SPECIAL ELECTION ON THE PROPOSED AMENDMENTS TO THE CITY CHARTER TO BE HELD ON TUESDAY, THE 3RD DAY OF NOVEMBER, 2026; PROVIDING NOTICE OF ELECTION; PROVIDING FOR INCLUSION IN THE CHARTER; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, pursuant to Section 9.9 of the City Charter, the Charter Review Commission has determined that certain revisions and amendments are needed to the City Charter and has by report of December 23, 2025 submitted its recommendation for revisions and amendments of the City Charter (the "Recommended Charter Amendments") to the City Commission; and

WHEREAS, pursuant to Section 9.9 of the City Charter, the City Commission has on March 10, 2026 held a public hearing on the Recommended Charter Amendments and has determined that only the Charter Amendments set forth in this Ordinance shall be submitted to the electors of the City for approval or rejection.

NOW, THEREFORE, IT IS HEREBY ORDAINED BY THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AS FOLLOWS:

Section 1. **Recitals Adopted.** That the above-stated recitals are hereby adopted and confirmed.

Section 2. **Charter Amendments.** That pursuant to Section 9.9 of the City Charter and Section 166.031, Florida Statutes, the City Charter of the City of North Lauderdale, Florida, is hereby amended by amending the City Charter, to read as follows:[1]

PART I

NORTH LAUDERDALE CHARTER[2]

I. ARTICLE I. POWERS

Sec. 1.1 General Powers.

The existence and establishment of the Florida municipality ~~inhabitants~~ of the City of North Lauderdale, Florida, is hereby confirmed and is ~~as its limits are hereinafter established, [shall be] a body politic and corporate~~ known and designated as the "City of North Lauderdale" which herein shall include the lands of Broward County, hereinafter described, and the City shall have the jurisdiction, powers, rights and privileges as set forth in this Charter and applicable laws.

Sec. 1.2 Powers.

The City shall have all the powers possible for a city to have under the Constitution and laws of this State as fully and completely as though they were specifically enumerated in this Charter, in accordance with the provisions of the "Municipal Home Rule Powers Act," codified at Chapter 166, Florida Statutes, as the same now exists or as it may be amended from time to time, and with Article VIII, Section 2 of the Florida Constitution, entitled "Municipalities."

The City shall have all governmental, corporate and proprietary powers to enable it to conduct municipal government, perform municipal functions and render municipal services and to exercise any power for municipal purposes except as otherwise provided by law.

Sec. 1.3 Construction.

This Charter and all powers secured for the City by it shall be given the most liberal construction as is consistent with justice such that this Charter and the said powers shall be construed most favorably to the City, limited only by the prohibitions or preemptions of the

[1] / Proposed additions to existing City Charter text are indicated by underline; proposed deletions from existing City Charter text are indicated by ~~strikethrough,~~ Each in track format mode.

Constitution, General or Special Law or County Charter and any specific limitations as contained herein. As to Special Acts pertaining to the jurisdiction and exercise of powers by the City, and as to preemptive provisions of the Florida Constitution, General or Special Law or the County Charter, as now enacted or as hereafter enacted, amended or revised, until and unless the said preempted provisions are deemed unconstitutional, otherwise unlawful or not applicable in or to the City of North Lauderdale, said provisions shall, by operation of law, be deemed as amendments hereto and, when appropriate, shall be deemed as incorporated by reference as a part of this Charter. Any provision of this Charter that is amended or revised by operation of law as the result of preemptive or conflicting or superseding Constitutional, General or Special Law or County Charter provisions shall likewise, and by operation of law, be reinstated, reintegrated, revived and readopted as originally adopted in this Charter if at any time the preemptive or conflicting or superseding provision is, in whole or in part, amended, repealed, revived or declared unlawful, to the extent that said law is amended, repealed, revised or declared unlawful and to the extent that the original language and intention hereof can be logically so reinstated, reintegrated, revived and readopted.

Sec. 1.4 Specific Llimitations.

(a) Franchises. The power of the City to grant franchises shall be limited only to the extent that franchises shall not be granted for a period of greater than thirty (30) years, including all options and renewals of the grantee~~.~~, and shall be done by ordinance.

(b) Taxes. In addition to the prohibitions and limitations otherwise provided by law in regard to municipal borrowing, finance and taxation, the City of North Lauderdale shall not hereafter, except as otherwise provided in this section, levy, assess or collect any ad valorem real estate taxes of any nature (above levels in effect at the adoption of this section) until and unless approved by the affirmative vote of ~~of a minimum of~~ four (4) members of the City ~~Council~~Commission .

(c) Bond Debts. The City ~~Council~~ Commission shall approve all forms of bonded indebtedness by an affirmative vote of four (4) members.

(d) G.O. Bonds. Only general obligation bonds shall also be approved by a majority vote of the electors of the City of North Lauderdale in a referendum election on this issue.

(e) Revenue Bonds. Assuming City ~~Council~~ Commission approval to issue revenue bonds and/or any form of tax anticipation certificates, the power of the City of North Lauderdale to incur indebtedness in the form or nature of revenue bonds, or any form of tax anticipation certificates, is further limited such that said bonds or certificates shall be special obligations of the City, payable solely from and secured by a lien upon specific revenues of the City, and provided specifically that the same shall not be payable from ad valorem taxation and that no recourse shall be had for the payment of the revenue bonds, nor shall the credit or taxing power of the City be deemed to be pledged thereto. The revenue bonds or certificates and interest thereon shall not be a debt of the municipality,

nor a charge, lien or encumbrance, legal or equitable, upon the property of the municipality, or upon any income, receipts or revenues of the municipality other than such of the revenues as shall have been specifically pledged for the payment thereof, and every revenue bond or certificate shall recite in substance that said bond or certificate, including interest thereon, is payable solely from the revenue pledged for the payment thereof, and that the municipality is under no obligation to pay the same except from said revenue.

II. ARTICLE II. CORPORATE LIMITS

Sec. 2.1 Description of Corporate Limits.

The following area shall constitute the corporate limits of the City of North Lauderdale:

Commencing at the Southeast corner Section One (1), Township 49 South, Range 41 East; thence Westerly along a course S 89°57'49"W a distance of 5,281.80 feet to a point; thence Westerly along a course S 89°59'17"W a distance of 5,274.63 feet to a point; thence Northerly along a course N 1°15'41"W a distance of 7,216.15 feet to a point; thence Easterly along a course S 89°46'32"E a distance of 1,094.59 feet to a concrete monument set in ground; thence Easterly along a course S 89°44'25"E a distance of 1,543.24 feet to a point; thence Southerly along a course S 1°14'52"E a distance of 2,640.11 feet to a point; thence Easterly along a course S 89°45'09"E a distance of 1,319.15 feet to a point; thence Northerly along a course N 1°15'11"W a distance of 2,639.83 feet to a point; thence Easterly along a course S 89°44'25"E a distance of 1,318.92 feet to a concrete monument set in ground; thence Southerly along a course S 1°15'29"E a distance of 2,275.74 feet to a point; thence Easterly along a course S 89°56'37"E a distance of 2,639 feet to a point; thence Southerly along a course S 1°16'53"E a distance of 660.12 feet to a point; thence Easterly along a course S 89°56'34"E a distance of 2,639.27 feet to a point; thence Southerly along a course S 1°18'17"E a distance of 1,831.83 [feet]; thence Westerly along a course S 89°57'49"W a distance of 333.08 feet to a point; thence Northerly along a course N 1°18'17"W a distance of 842.26 feet to a point; thence Westerly along a course N 89°56'31"W a distance of 1,545.98 feet to a point; thence Southerly along a course S 0°02'11"E a distance of 844.47 feet to a point; thence Easterly along a course N 89°57'49"E a distance of 1,897.70 feet to a point; thence Southerly along a course S 1°18'17"E a distance of 2,415.59 feet to the point or place of beginning.

All of the above-aforementioned property located in Townships 48 and 49 South, Range 41 East, Broward County, Florida. Less and except therefrom Tracts 3, 4, 5, and 6 of Fort Lauderdale Truck Farms Subdivision of Section 2, Township 49 South, Range 41 East, according to the plat thereof recorded in Plat Book 4 at page 31 of the public records of Broward County, Florida.

Sec. 2.2 ~~{~~Annexed ~~l~~Lands lincluded.~~}~~

The corporate limits of the City of North Lauderdale shall also include, in addition to the area described above, those lands which have been annexed into the City of North Lauderdale since the date of the original charter 7/15/63, and those lands which shall be annexed into the City of North Lauderdale, in accordance with the laws of the State of Florida.

III. ARTICLE III. LEGISLATIVE FORM OF GOVERNMENT

Sec. 3.1 City Commission aand cCity mManager.

The municipal government herein provided shall be a "City Commission" and City Manager" form of government. There shall be a "City Commission" with all legislative powers of the City vested therein, consisting of five (5) members who shall be electors of the City, who shall be known and designated throughout this Charter and in the Code of Ordinances as "City Commissioners." or " Commission Members".

Sec. 3.2 City Commission; cComposition; eEligibility; eElection; tTerm of oOffice; ~~and~~ rRedistricting.

(a) City Commission. There shall be a City Commission composed of five (5) members; one (1) Mayor elected at-large and four (4) Commission Mmembers, collectively referred to as Commissioners or the City Commission. Each Commission Mmember shall be elected from one of the four (4) single member election districts within the City. Each Commission Mmember from each of the four (4) election districts shall be elected from votes cast from said election district only and shall reside in the election district from which such Commission Mmember is elected. The candidates receiving the greatest number of votes in each election district, or in the case of the Mayor in the at-large city-wide election, shall be deemed elected. Voters shall vote for only one (1) candidate in each election district which shall be the election district within which the voter resides. The Mayor shall be permitted to reside anywhere within the City and shall be elected at-large in the manner provided in this Charter.

(b) Qualifications for Ceommissioners. Only qualified electors who have been domiciled in the City of North Lauderdale for at least one (1) year immediately prior to qualifying for office and who shall have attained the age of eighteen (18) years old on or before the date the candidate files and qualifies in accordance with this Charter as a candidate for office, shall be eligible to hold the office of Mayor or Commissioner. Each Commissioner Mmember and candidates for Commission Mmember shall be elected from the election district in which he or she is domiciled for at least one (1) year prior to qualifying for such office by the greatest number of votes of all registered voters residing within that election district. Once elected, a Commission Mmember from an election district shall remain a domiciliary of the election district during his or her term of office. The Mayor shall have been domiciled anywhere within the City at least one (1) year prior to qualifying for such office

and shall be elected at-large by receiving the greatest number of votes of all registered voters within the City. Once elected, the Mayor shall remain a domiciliary of the City during his or her term of office.

(c) Term of Office. Beginning with the election of March 2002, members of the City Commission shall hold office for terms of four (4) years.

(d) Election Date. Commencing with a special election in November 2009, and in all applicable election years thereafter, all general city elections shall be held in November. The Mayor and/or several Commission Mmembers may have their current terms extended in order to accommodate this change. Commencing with the special election in November, 2009, the position of Mayor and City Commission Mmember seats in Districts A and B shall become vacant, and candidates for a one-time, five-year term of office may qualify for election to those seats by filing with the City Clerk a written notice of candidacy, which notice shall designate which of the Commission Mmember election districts of the City Commission the Candidate seeks to fill. Commencing with a general election in November 2010, City Commission Mmember seats in Districts C and D shall become vacant, and candidates for a one-time, six-year term of office may qualify for election to those seats by filing with the City Clerk a written notice of candidacy, which notice shall designate which of the Commission Mmember election districts of the City Commission the Candidate seeks to fill. The position of Mayor and Commission Mmember seats in Districts A and B shall be up for reelection to a four-year term in November 2014 and every four years thereafter. Commission Mmember seats in Districts C and D shall be up for reelection to a four-year term in November 2016 and every four years thereafter. The extension of the terms for candidates in the 2009 and 2010 elections shall be a one-time occurrence in order to preserve the staggered election process otherwise contained in this Charter. Thereafter, vacancies shall be filled in accordance with this Charter and as provided for by the State Election Code, as the same is presently constituted or as may be later amended from time to time.

(e) Redistricting. Following the decennial census in 2020, and every ten (10) years thereafter, or sooner if it is determined by the Commission that districts shall have become unbalanced due to population shifts, the City Commission shall contract with an accredited four (4) year college or university located within the State of Florida for the purpose of identifying and designating the four (4) election districts within the City of North Lauderdale. The City Commission shall adopt the redistricting plan as designated, provided that the plan incorporates the principles of nondiscrimination and fairness. In the event an elected Ccommission Mmember no longer resides in the district from which he or she is elected as a direct result of the revisions to district boundaries in accordance with this section, that Commission Mmember shall complete his or her term. Nothing contained within this section shall be construed to alter residence requirements for any candidate including incumbents, during subsequent regular elections. In the event no candidate

qualifies for election for any designated election district seats, then a special qualifying period shall be opened for five (5) calendar days after the close of the regular qualifying period or for such other time designated in accordance with law and any qualified elector residing ~~one from~~ anywhere within the City and domiciled there for one (1) year may qualify for such seat. Thereafter, if no person qualifies for such seat, a vacancy shall be declared and filled in accordance with this Charter.

Sec. 3.2.1 Initial ~~d~~Districts.

The City Commission shall adopt by ordinance the creation and establishment of the boundaries of the initial four (4) election districts not later than July 1, 2004. The ordinance shall provide for the implementation of said election districts to be effective for the elections to be held in the City of North Lauderdale commencing in March, 2005. The redrawing of election district boundaries shall not effect the right of a Commissioner to hold office for the remainder of his or her term even though the Commissioner's residence may no longer be within the district from which he or she was elected.

Sec. 3.3 Mayor and ~~v~~Vice ~~m~~Mayor.

(a) Annually. Annually, at the last meeting of November, the City Commission shall ~~elect~~ designate from its members, by majority vote, the Vice-Mayor. Thereafter, if at any time both the said elected Mayor and Vice-Mayor are unable to function in their respective capacities, the City Commission shall immediately from its members temporarily select an acting Mayor and acting Vice-Mayor, pending the currently elected Mayor or selected Vice-Mayor in the Mayor's or Vice-Mayor's absence, resuming the duties of Mayor and Vice-Mayor.

(b) Presiding Officer; Duties. The Mayor shall preside at all Commission meetings and shall be considered a member of the Commission. The ~~v~~Vice-~~m~~Mayor shall act as ~~m~~Mayor during the absence or disability of the Mayor. In the case of death, resignation or removal of the Mayor, the vacancy shall be filled in accordance with section 3.6 of this Charter. The Mayor shall preside at meetings of the Commission, shall be recognized as the head of city government for all ceremonial purposes, by the Governor for purposes of military law, for the execution of official proclamations, and city ordinances and resolutions. ~~But~~ However, the Mayor shall have no administrative duties except as required to carry out the responsibilities herein described in accordance with applicable law. The Vice-Mayor shall act as Mayor during the absence or disability of the Mayor and shall countersign all ordinances and resolutions of the City Commission.

Sec. 3.4 City ~~council~~Commission: ~~g~~General ~~p~~Powers and ~~d~~Duties.

(a) Legislative Power. All legislative powers of the City shall be vested in the City ~~Council~~ Commission, except as otherwise provided by general law or this Charter, which shall

provide for the exercise thereof and for the performance of all duties and obligations imposed upon the City by applicable Law.

(b) Offices and Departments. The City ~~Council~~ Commission shall have the power to create such offices, departments or divisions other than those provided herein, as may be necessary for the administration of the affairs of the City and to prescribe the duties and powers of the officers and employees of such office, department or division, other than those provided herein, and to provide for the appointment and fix the salary or compensation, except as otherwise provided herein of such officers or employees.

Sec. 3.5 Prohibitions.

(a) Office Holding. No ~~councilmember~~ Commission Member shall hold any other city office or city employment or serve on any City Advisory Board, or any other city-appointed office or position during the term for which he or she is elected to office. This provision shall not be construed to prevent any individual ~~councilmember~~ Commission Member from reporting to the ~~Council~~ Commission as a whole, on the affairs or activities of any specific board, office division or department, but he or she shall not be named a department head, commissioner or supervisor or serve in any other capacity wherein he or she could exercise individual authority over the affairs of a board, office, division or department of the City.

(b) Restriction. No individual ~~Councilmember~~ Commission Member shall in any manner dictate the appointment or removal of any City administrative officer or employee whom the City Manager or his or her designated subordinates are empowered to appoint.

(c) Non- interference. Except as provided in this Charter with respect to inquiries and investigations, the ~~Council~~ Commission and its members shall deal with officers and employees who are subject to the direction and supervision of the City Manager solely through the City Manager; and no individual ~~Councilmember~~ Commission Member shall give orders to any such officer or employee, either publicly or privately. No individual ~~Councilmember~~ Commission Member shall change or modify any administrative system, procedure or method installed and implemented by the City Manager, but any ~~Councilmember~~ Commission Member may express his or her views fully and freely on such matters and may openly discuss with the City Manager anything relevant pertaining to suggestions for the change or modification thereof. Nothing contained in the foregoing is to be construed to prohibit individual members of the ~~Council~~ Commission from closely scrutinizing, by questions and personal observation, all aspects of City government operations so as to obtain independent information to assist the members in the formulation of sound policies to be considered by the ~~Council~~ Commission. It is the express intent of this Charter, however, that recommendations for improvements in City government operations by individual ~~Councilmembers~~ Commission Members may be made to and through the City Manager so that the City Manager may coordinate efforts of

all City departments to achieve the greatest possible savings through the most efficient and sound means available.

(d) Post- Elected Official Service Restriction. No former elected City Official shall hold any compensated appointive City Office or employment until one (1) year after the expiration of the term for which he or she was elected.

Sec. 3.6 Vacancy; ~~f~~Forfeiture of ~~o~~Office; ~~f~~Filling of ~~v~~Vacancies.

(a) Vacancy. The office of a City Commission~~er~~ Member shall become vacant upon his or her death, resignation, removal from office in any manner prescribed by law or this Charter for forfeiture of ~~this~~ his or her office, or in the event a ~~Councilmember~~ Commissioner elected from a ~~Councilmember~~ Commission election district fails to reside in such election district.

(b) Forfeiture. A City Commission~~er~~ Member shall forfeit his or her office if he or she:

(1) lacks at any time during his or her term of office any of the qualifications for the office prescribed by this Charter or by law.,

(2) fails to attend four (4) consecutive regular or workshop meetings of the ~~c~~City ~~c~~Commission without being excused by the City Commission by formal action entered upon the minutes., or

(3) is convicted in a court of competent jurisdiction of a felony or other crime involving moral turpitude.

(c) Standards. The City Commission shall by ordinance provide standards and procedures for determining whether absences from Commission meetings shall be excused by the City Commission. The same standards and penalties shall be applied to absences from regular and workshop meetings of the City Commission.

(~~c~~d) Filling of Vacancy. In the event of a vacancy on the Commission the remaining members of the City Commission shall, by majority vote, choose a successor to fill the seat of the Commission ~~m~~Member whose seat became vacant. Such successor shall be a resident qualified voter from the same election district in which the vacancy has occurred if from a Commission ~~m~~Member election district. If a majority of said remaining members is unable to choose a successor to fill said vacancy within thirty (30) days following the occurrence of such vacancy, the Commission shall schedule a special election to be held not sooner than thirty (30) days nor more than ninety (90) days following the occurrence of the vacancy. The Commission M~~m~~ember chosen by the City Commission to fill a vacancy as specified above or a Commission M~~m~~ember elected at a special election to fill a vacant Commission seat shall serve out only the remaining term of the Commission M~~m~~ember whose seat became vacant. Notwithstanding any other quorum requirements established herein, if at any time the membership of the Commission is reduced to less than a quorum, the

remaining members shall forthwith call for a special election for additional members to fill all Commission vacancies.

(~~d~~e) Extraordinary Vacancy. In the event that all members of the Commission are removed by death or disability or forfeiture of office, within a period of seven days from removal by death, disability or forfeiture of office of the first member of the Commission to the fifth member of the Commission, then the City Manager or the City Clerk shall immediately notify the Governor of this fact and the Governor shall appoint an interim Commission that shall call a special election, as provided in (~~c~~d) above, and such election shall be conducted in the same manner as the first election under this Charter. During the interim period of time, from the seventh day of aforesaid until the Governor appoints an interim Commission, all of the duties and powers herein vested in the City Commission shall be vested in the City Manager and the City Clerk.

Sec. 3.7 Forfeiture H~~h~~earings.

(a) Commission Authority. The ~~Council~~ Commission shall be the Judge of the grounds constituting a forfeiture of a member's office.

(b) Process. Any one member of the ~~Council~~ Commission shall have the power to charge any other member with grounds which, if found to exist, would constitute a forfeiture of office.

If a charge is made against a ~~Council~~member of the Commission as aforementioned, immediately after said charge has been made, the ~~Council~~ Commission shall vote to determine whether or not probable cause exists that a member has committed acts which if found to exist would constitute forfeiture of office. Three (3) affirmative votes shall be necessary to find that said probable cause exists and the member making the charge and the charged member shall be excluded from voting.

(c) Public Hearing. A member so charged with conduct constituting grounds for forfeiture of his or her office, shall, upon demand ~~by~~ made by the charged member within seven(7) days from the finding of probable cause, be entitled to a public hearing; however, such public hearing shall not take place less than ten (10) days, nor more than twenty (20) days from the date of the request for a public hearing ~~of the charge, exclusive of the charging date; further,~~ Nnotice of such public hearing shall be published by the City in one or more newspapers of general circulation in the City at least one time and at least one week prior to the aforementioned public hearing. Alternatively, notice of such public hearing may be posted on the City's website.

(d) Resignation. Nothing contained herein shall prevent a charged member from resigning at any time from the date charged up to the time of the aforementioned public hearing and if the charged member elects to resign, then the ~~Council~~ Commission shall not be required to conduct a public hearing.

(e) Proceedings. In the event that a hearing shall be demanded by the charged member, then the City Attorney shall act on behalf of the City and shall present all evidence and other pertinent information relating to the charge to the ~~Council~~Commission. The charged member shall be entitled to be represented at the hearing by an attorney of his or her choice and at his or her own expense. In the conduct of the public hearing provided herein, the rules of evidence shall not be strictly followed and the administrative procedures as set forth in ~~the~~ any applicable Florida Statutes shall apply.

(f) Action. At the conclusion of the hearing as herein provided the affirmative vote of three (3) ~~council~~ Commission members shall be necessary to find that grounds for forfeiture of office exist and that a member has forfeited his or her office. The member making the charge and the charged member shall be excluded from voting. Upon three (3) affirmative votes being cast as aforementioned the office shall immediately become vacant.

(~~g~~d) Due Process. The charged member shall be given the opportunity prior to the public hearing to examine all evidence to be presented against him or her and at the hearing, shall be entitled to examine and/or cross examine witnesses. For the purposes above stated, the ~~Council~~ Commission shall have the power to subpoena witnesses, administer oaths, and require the production of evidence; and upon request by a charged member, the ~~Council~~ Commission shall exercise subpoena powers for the purpose of compelling the appearance of witnesses in defense of the charged member of the Commission~~councilmember~~.

Sec. 3.8 City ~~Council~~ Commission P~~p~~rocedure.

(a) Meetings. The ~~Council~~ Commission shall meet regularly at least once in every month at such times and places as the ~~Council~~ Commission may prescribe by rule. Special meetings may be held on the call of the Mayor, the City Manager or of three (3) or more members of the ~~Council~~Commission ; provided, however, that special meetings shall not convene until no less than a ~~twenty~~forty-~~four~~eight (48) -hours notice has been provided to each ~~Council~~member of the Commission ~~with appropriate legal notice~~ and to the public prior to said special meeting. For purposes of this Section, a special meeting is one that is not regularly scheduled and is required in order to handle circumstances which arise. A lesser period of notice to each member of the Commission and to the public shall be provided if authorized or permitted by applicable law, including, but not limited to the Broward County Charter. All meetings shall be open to the public, in accordance with ~~general~~ applicable law, except as may be exempted by ~~general~~ applicable law. The City Commission shall strive to enhance public access to and participation in all public meetings by the use of technology, convenient meeting locations, and the use of other available means and resources.

(b) Rules. The ~~Council~~ Commission shall determine its own rules and order of business and shall provide for keeping a journal of its proceedings to include regular, special and workshop meetings. This journal shall be a public record.

(c) Voting; Quorum . Voting on ordinances and resolutions shall be by roll call and the ayes and nays shall be recorded in the journal. Three (3) members of the ~~Council~~ Commission shall constitute a quorum. If at any time during a duly convened ~~Council~~ Commission meeting a quorum shall no longer exist, the meeting ~~shall~~ may be ~~automatically adjourned~~briefly recessed until a quorum is again established. ~~; however,~~ Nnothing herein contained shall prohibit or be construed to prohibit ~~the~~ the Commission or ~~Council or~~ any individual ~~Council~~member of the Commission from taking a temporary break from the meeting ~~or recess of a reasonable length of time during a duly convened Council meeting~~, generally not to exceed ten (10) minutes ~~, and the same shall not automatically terminate a duly convened Council meeting~~. No action of the ~~Council~~ Commission shall be valid or binding unless adopted by the affirmative vote of the majority of a quorum present.

Sec. 3.9 Ordinances and Rresolutions.

(a) Ordinance Required. In addition to other acts required by law or by specific provision of this Charter to be done by ordinance, those acts of the City ~~Council~~ Commission shall be by ordinance which:

(1) adopt~~s~~ or amend~~s~~ an administrative code or establishes, alters, or abolishes any City department, office or agency.,

(2) establishes a rule or regulation the violation of which carries a penalty;

(3) levies taxes authorized by general law.,

(4) grants, renews, or extends a franchise.,

(5) regulates the rate charged for its services by a public utility.,

(6) authorizes the borrowing of money not inconsistent with the limitations in the Constitution and general law of the State of Florida.,

(7) conveys or leases or authorizes the conveyance or lease of any lands of the City.,

(8) amends or repeals any ordinances previously adopted, except as otherwise provided by this Charter with respect to repeal of ordinances reconsidered under the referendum powers.

(b) Form. Each ordinance or resolution shall be introduced in writing and shall embrace but one subject and matters properly connected therewith. The subject shall be clearly stated in the title. No ordinance shall be revised or amended by reference to its title only. Ordinances to revise or amend shall set out in full the revised or amended act, section, subsection or paragraph of a section or subsection.

(c) Readings . Except as otherwise provided or required by law, a proposed ordinance shall be read by title, or in full, on at least two (2) separate days and shall, at least ten

(10) days prior to adoption, be noticed in a newspaper of general circulation in the City. Prior to second reading, all proposed ordinances shall be posted in a conspicuous place in City Hall and on the City's website . The notice of proposed enactment shall state the date, time and place of the meeting, the title or titles of the proposed ordinances and the place or places within the municipality where such proposed ordinances may be inspected by the public. Said notice shall also advise that interested parties may appear at the meeting and be heard with respect to the proposed ordinance. Posting on the City and or County website may be utilized in lieu of or as a supplement to newspaper publication if authorized by Florida Statutes.

(d) Required Vote and Records. The affirmative vote of the majority of a quorum present shall be necessary to enact any ordinance or resolution. The vote of each member of the ~~Council~~ Commission voting upon a proposed ordinance or resolution shall be entered on the official record of the meeting. All ordinances or resolutions passed by the governing body shall become effective ten (10) days after passage or as otherwise provided therein.

Sec. 3.10 Emergency Oordinances.

(a) Emergencies. To meet a public emergency affecting life, health, property or the public peace, the ~~Council~~ Commission may adopt one or more emergency ordinances, but such ordinances may not levy taxes, grant, renew or extend a franchise, regulate the rate charged by any utility for its services, or authorize the borrowing of money.

(b) Form. An emergency ordinance shall be introduced in the form prescribed for ordinances generally, except that it need not be pre-published and that it shall be plainly designated as an emergency ordinance and shall contain, after the enacting clause, a declaration stating that an emergency exists and describing it in clear and specific terms.

(c) Process. An emergency ordinance may be adopted with or without amendment or rejected at the meeting at which it is introduced; but the affirmative vote of at least four (4) members of the ~~Council~~ Commission shall be required for adoption. After its adoption, the ordinance shall be published and printed as prescribed for other adopted ordinances.

(d) Effective Date. Emergency ordinances shall become effective upon the adoption or at such later date as may be specified in the ordinance.

(e) Duration. Every emergency ordinance shall automatically stand repealed as of the sixty-first (61st) day following the date in which it was adopted; but this shall not prevent reenactment of the ordinance under regular procedures, or if the emergency still exists, in the manner specified in this section. An emergency ordinance may also

be repealed by adoption of a repealing ordinance in the same manner specified in this section for an adoption of an emergency ordinance.

Sec. 3.11 Authentication, Rrecording and Ddisposition of Ccharter Aamendments, Oordinances and Rresolutions.

(a) Authentication. The presiding officer of the ~~Council~~ Commission and the City Clerk shall authenticate by their signatures all ordinances and resolutions adopted by the ~~Council~~Commission. In addition, when any Charter amendments have been approved by the electors, the presiding officer of the ~~Council~~ Commission and the City Clerk ~~person charged with keeping the journal~~ shall authenticate by their signatures the Charter amendment, such authentication to reflect the approval of the Charter amendment by the electorate. The City Clerk shall keep properly indexed books in which shall be recorded in full all ordinances and resolutions passed by the ~~Council~~Commission. ~~Within one (1) year after the adoption of this Charter and at least every five (5) years thereafter, T~~the ~~Council~~ Commission shall provide for the preparation of a general codification of all City ordinances which shall be maintained in the City Clerk's office and posted or linked on the City's website. ~~The general codification shall be adopted by the Council by ordinance and shall be published promptly in bound or loose leaf form together with this Charter and any amendments thereto.~~ This codification shall be known and cited officially as the North Lauderdale City Code. Copies of the Code shall be furnished to City officers, placed in libraries and in public offices for free public reference and made available for purchase by the public at a reasonable price to be fixed by ~~Council~~the City in accordance with the Public Records Act. The City Clerk shall also maintain the City Charter in current form and shall enter all Charter amendments and send copies of the amendments to the Florida Secretary of State's Office.

(b) Public Access to Codes. The ~~Council~~ City shall ~~, by ordinance,~~ establish procedures for making and selling copies and/or certified copies and/or true copies of all resolutions, ordinances, technical codes adopted by reference in this Charter available ~~to people of the City~~ for public inspection and ~~available~~ for purchase ~~at a reasonable price~~, all in accordance with the Public Records Act. Further, the City shall provide access to electronic public records to the extent and as required by the Public Records Act and applicable law.~~:~~

Sec. 3.12 Codes of Ttechnical Rregulations.

The ~~Council~~ Commission may adopt any standard code of technical regulations by reference thereto in an adopting ordinance. ~~and such ordinance may amend the Code. The procedure and requirements governing such an adopting ordinance shall be as prescribed for ordinances generally except that:~~

~~(1) The requirements for distribution and filing of copies of the ordinance shall be construed to include copies of the code of technical regulations as well as adopting ordinance;~~

~~(2) A copy of each adopted code of technical regulations as well as of the adopting ordinance shall be authenticated and recorded by the City Clerk.~~

Copies of any adopted code of technical regulations shall be made available by the City Clerk for distribution in accordance with the Public Records Act ~~or for purchase at a reasonable price~~.

Sec. 3.13 Fiscal Year and Budget.

(a) Fiscal Year. The fiscal year for the City shall begin on the 1st day of October each year and shall end on the last day of September of ~~each~~ the following year.

(b) Budget. Not later than seventy-five (75) calendar days before the end of each fiscal year, or within fifteen (15) calendar days of the City's receipt of certified property information from the Broward County Property Appraiser, as provided by law, whichever occurs later, ~~The~~ the City Manager shall prepare and submit to the ~~Council~~ Commission a budget proposal of the expenditures and revenues of all City Departments for the ensuing fiscal year. The City ~~Council~~ Commission shall carefully consider each proposed budget and make such changes in the same as it deems advisable. Said budget proposal, as prepared and submitted, shall be open for inspection in the office of the City Clerk and no appropriation ordinance shall be passed by the City ~~Council~~ Commission until after such budget proposal shall have been posted at the City Hall for a period of at least ten (10) days prior to the first reading of the proposed ordinance adopting said budget. The proposed budget shall be posted and made available on the City website in accordance with Section 166.241, Florida Statutes.

(c) Adopting Budget. The ~~Council~~ Commission shall, by ordinance, adopt a budget on or before the 30th day of September of each year. An ordinance adopting an annual budget shall constitute appropriations of the amount specified therein as expenditures from the funds indicated and shall constitute a levy of the property tax therein proposed.

(d)Transfers. Upon request of the City Manager, the ~~Council~~ Commission may approve a transfer of any part of an unencumbered balance of appropriation or other available revenue to a purpose or object for which appropriation of the current year is proved insufficient.

Sec. 3.14 Appropriation Aamendments Dduring Ffiscal Yyear.

(a) Supplemental Appropriations. If during the fiscal year revenues in excess of those estimated in the budget are available for appropriation, the ~~Council~~Commission, by

ordinance, may make specific supplemental appropriations for the year up to the amount of such excess.

(b) Insufficiency in Revenues. ——If at any time during the fiscal year it appears to the City Manager that the revenues available will be insufficient to meet the amount appropriated, he or she shall report to the ~~Council~~ Commission without delay; and the ~~Council~~ Commission may, by ordinance, reduce one or more specified appropriations.

(c) Debt. No appropriation for debt service may be reduced or transferred, and no appropriation may be reduced below any amount required by law to be appropriated or by more than the amount of the unencumbered balance thereof.

(d) Effective. The supplemental and emergency appropriations and reduction or transfer of appropriations authorized by this section may be made effective immediately upon adoption.

(e) Restrictions. Budget amendments must comply with Section 166.241, Florida Statutes.

Sec. 3.15 City ~~C~~clerk.

(a) Appointment. The City ~~Council~~ Manager shall appoint a City Clerk. The City Clerk shall give notice of ~~Council~~ Commission meetings to its members and to the public, keep the journal of its proceedings, serve as secretary to the Planning and Zoning Board and perform such other duties as assigned by this Charter and the City Manager. The City Clerk is authorized and empowered to administer oaths. The City Clerk, subject to the approval of the City ~~Council~~Manager, may appoint one or more Deputy Clerks who shall perform all of the duties of the City Clerk in the absence~~s~~ of the City Clerk.

(b) Restriction. The City Clerk shall hold no other elective or appointed position within the City of North Lauderdale nor shall the City Clerk be an employee of the City of North Lauderdale in any other capacity than as City Clerk except as specifically provided in this Charter.

(c) Status. The City Clerk and the Deputy City Clerk shall not be subject to the provisions of and entitled to the benefits of the Civil Service System of the City, but shall, pursuant to the provisions of this Article and Section, be appointed by the City Manager and be employed by the City ~~Counci~~it. The City Clerk shall report to the City Manager, and shall be the head of the City Clerk Department of the City.~~, and under its jurisdiction and control, as otherwise provided for herein.~~ The City ~~Council~~ Manager shall contract for the services of the City Clerk and Deputy City Clerk.

(d) Suspension or Removal.

The City Clerk or the Deputy City Clerk may be immediately suspended or terminated and removed from office by the City Manager at the City Manager's discretion, in accordance with the above referenced contract. ~~upon a vote of three (3) members of the Council for failure to comply with any mandate of this Charter, the laws of Florida with respect to City Clerks, or for failure to exercise any of the duties, powers or responsibilities required of the City Clerk or Deputy City Clerk by the provisions of this Charter.~~

Sec. 3.16 [Investigations; Ssubpoena Ppower; Ppower to Aadminister Ooaths; Aaudits.]

(a) Investigations. The City ~~Council~~ Commission may make investigations into the affairs of the City and the conduct of any city department, office, or agency and for this purpose may subpoena witnesses, administer oaths, take testimony and require the ~~protection~~ production of evidence.

(b) Audits. The City ~~Council~~ Commission shall provide for an annual independent post-audit of its financial accounts in accordance with the rules of the Auditor General. Such audits shall be made by a certified public accountant or firm of such accountants who have no personal interest, direct or indirect, in the fiscal affairs of the City government or any of its offices. The ~~Council~~ Commission may provide for more frequent audits as it deems necessary. The ~~Council~~ Commission may designate such accountant or accounting firm annually or for a period not exceeding three (3) years provided the designation for any particular fiscal year shall be made no later than thirty (30) days after the beginning of such fiscal year. If the State of Florida through the Auditor General makes such an audit, the ~~Council~~ Commission may accept it as satisfying the requirements of this section.

A. ARTICLE IV. - [CITY MANAGER] AND ADMINISTRATIVE

Sec. 4.1 City Mmanager.

There shall be a City Manager who shall be the chief administrative officer of the City, who shall serve at the will and pleasure of the City ~~Council~~Commission.

Sec. 4.2 Appointment, Rremoval, Suspension,Ccompensation and Rresidency.

(a) *Appointment.* The City ~~Council~~ Commission shall appoint ~~a~~ the City Manager ~~not later than ninety (90) days from the filing of this Charter~~. Such appointment shall be by an affirmative vote of four (4) members of the City ~~Council~~Commission.

(b) *Removal or Suspension.* The City ~~Council~~ Commission may suspend or remove the City Manager by resolution adopted by an affirmative vote of four (4) members of the City ~~Council~~Commission . Such a resolution must state the reasons for suspension or removal. A

copy of this resolution shall be delivered to the City Manager within forty-eight (48) hours after its adoption. Delivery shall mean personal delivery or deposit of such notice into the United States Mail, by registered mail. Within five (5) days after the copy of the resolution has been delivered to the City Manager, he or she may file with the ~~Council~~ Commission a written request for a public hearing. Failure to file such a request in the time frame outlined above shall automatically waive the right of the City Manager to an appeal hearing. If a hearing is requested, it shall be held at a special ~~Council~~ Commission meeting not later than fifteen (15) days after the request is filed. The decision of the ~~Council~~ Commission at any such public hearing shall be final and conclusive and no appeal shall lie therefrom. Reinstatement of the City Manager by the City ~~Council~~ Commission shall be solely upon an affirmative vote of four (4) members of the ~~Council~~Commission. In the event the City Manager should be reinstated by the City ~~Council~~Commission, the City shall reimburse the City Manager for back pay due, if any.

(c) *Compensation.* The City Manager shall receive such salary as may be fixed by the City ~~Council~~ Commission for the first year of his or her service and thereafter.

(d) *Residency.* The City Manager need not be a resident of the City or State at the time of his or her appointment, but must become domiciled in the County of Broward not later than six (6) months from the date upon which he or she is hired~~, unless otherwise authorized by an affirmative vote of a minimum of three (3) members of Council~~.

Sec. 4.3 Qualifications.

The City Manager shall have the minimum qualifications of a combination of a bachelor's degree in public administration, business administration or other related fields from an accredited college or university, and three (3) years' public administration experience; or ten (10) years' experience in a City Manager or Assistant City Manager position, which is certified by the International City Manager Association.

Sec. 4.4 Acting Ccity Mmanager.

By letter filed with the City ~~Council~~Commission, the City Manager shall designate a qualified city administrative officer to exercise the powers and to perform the duties of the City Manager during the City Manager's ~~during his or her~~ temporary absence or disability.

Sec. 4.5 Powers and Dduties of the Ccity Mmanager.

The powers and duties of the City Manager shall be:

(a) Enforce Laws. To see that all laws, provisions of this Charter, ordinances and acts of the ~~Council~~ Commission subject to enforcement by the City Manager or by officers subject to his or her ~~discretion~~ direction and supervision are faithfully executed with all reasonable diligence.

(b) Executive Power. The City Manager shall exercise the administrative powers of the City through such departments as the ~~Council~~ Commission may, by ordinance ~~or resolution~~, from time to time establish. The head of each department shall be responsible to the City Manager for the operation thereof, and shall perform such duties and have such powers as may be prescribed by the City Manager.

(c) Appoint, Discipline, Removal. The City Manager or his or her designee shall have the authority to appoint, discipline and discharge all department heads, officers, personnel and employees of the City, other than those who, by the terms and provisions of the Charter, are appointed by the City ~~Council~~Commission or as otherwise provided by, any ordinance, civil service regulation, or resolution adopted by the City ~~Council~~ Commission governing appointment and discharge of City personnel and employees.

(d) Meetings. To attend all meetings of the ~~Council~~ Commission with the right to take part in the discussion, but having no vote.

(e) Recommendations. To recommend to the ~~Council~~ Commission for adoption such measures as he or she may deem necessary or expedient.

(f) Purchasing. The City Manager shall supervise the purchases by all departments and approve or disapprove such purchases. The City Manager may issue such rules governing purchasing procedures as he or she deems necessary and as complies with law.

(g) Delegation. Delegate to department heads and officers such of his or her duties and powers as he or she may deem necessary for efficient administration.

(h) Administrative Protocols. To develop such administrative policies and regulations in order to efficiently administer the City.

(i) Other Duties. Perform such other duties as are specified in this Charter or may be required by the City ~~Council~~Commission.

(j) Contracts. Sign contracts on behalf of the City pursuant to the provisions of the appropriate ordinances and/or resolutions.

(k) Emergencies. To have such powers as may be necessary in the event of a disaster or emergency which would facilitate the operation of the City consistent with general law and statute.

Sec. 4.6 No Active Participation ~~i~~In Political Campaign.

The City Manager of the City of North Lauderdale shall take no active part in the campaign or candidacy of any person who is a candidate for the office of City Commissioner or Mayor ~~Councilman [member]~~or in any recall election, upon penalty of immediate suspension from office or dismissal from employment.

Sec. 4.7 Vacancy of Ccity Mmanager Pposition.

If the City Manager's position shall become vacant due to removal from office, resignation or death, the City Commission shall appoint by a majority vote an Acting City Manager. Such appointment shall not be authorized for more than ninety (90) days. The City Commission shall use its best efforts to hire a qualified individual to become the City Manager within ninety (90) days [after] said position became vacant. If after the ninety (90) day period a qualified City Manager is not hired, the City Commission, by a simple majority vote, may extend the term of the Acting City Manager for an additional ninety (90) day period and continue the search for a replacement City Manager. Subsequent ninety (90) day periods may be added, subject to City Commission approval, until a suitable City Manager is hired.

IV. ARTICLE V. INITIATIVE, REFERENDUM AND RECALL

Sec. 5.1 Initiative and referendum defined.

(a) *Initiative.* The qualified electors of the City shall have power to propose ordinances to the ~~Council~~ Commission and in the event the ~~Council~~ Commission fails to adopt an Ordinance so proposed without any change in substance, to adopt or reject it at a City election, provided that such powers shall not extend to the budget or capital program or any ordinance relating to zoning, appropriation of money, levy of taxes or salaries of City officers or employees.

(b) *Referendum.* Qualified electors of the City shall have the power to require reconsideration by the ~~Council~~ Commission of any adopted ordinance and, if the ~~Council~~ Commission fails to repeal an ordinance so reconsidered, to approve or reject it at a City election, provided that such power shall not extend to the budget or capital program except on capital projects financed by tax revenue certificates for water and sewer systems or any emergency ordinance relating to appropriation of money or levy of taxes.

Sec. 5.2 Commencement of Pproceedings; Ppetitioners' Ccommittee; Aaffidavit.

(a) Commencement. Any five (5) qualified electors may commence initiative or referendum proceedings by filing with the City Clerk an Affidavit stating they will constitute the Petitioners' Committee and be responsible for circulating the Petition and filing it in proper form, stating their names and addresses and specifying the address to which all notices to the Committee are to be sent, and setting out in full the proposed initiative ordinance or citing the Ordinance sought to be reconsidered.

[b] Petition Blanks. Promptly after the Affidavit of the Petitioners' Committee is filed, the City Clerk shall issue the appropriate Petition blanks to the Petitioners' Committee.

Sec. 5.3 Petition [Form; Ccontents.]

(a) Execution. Initiative and referendum petitions must be signed by qualified electors of the City equal in number to at least fifteen (15) percent of the total number of qualified electors registered to vote as of the first day of the month within which the affidavit required by Section 5.2 of this Charter is filed.

(b) Uniformity. All papers of a petition shall be uniform in size and style and shall be assembled as one instrument for filing. Each signature shall be executed in ink or indelible pencil and shall be followed by the address of the person signing. Petitions shall contain or have attached thereto throughout their circulation the full text of the ordinance proposed or sought to be reconsidered.

(c) Affidavit. Each paper of a Petition shall have attached to it when filed an affidavit executed by the circulator thereof stating that he or she personally circulated the paper, the number of signatures thereon, that all the signatures were affixed in his or her presence, that he or she believes them to be genuine signatures of the person whose names they purport to be and that each signatory had an opportunity before signing to read the full text of the ordinance proposed or sought to be reconsidered.

Sec. 5.4 Procedure Aafter Ffiling.

(a) Timing. Within twenty (20) days after the petition is filed the City Clerk shall complete a certificate as to its sufficiency, specifying if it is insufficient, the particulars wherein it is defective and shall promptly send a copy of the certificate to the Petitioners' Committee by registered mail. A petition certified insufficient for lack of the required number of valid signatures may be amended once if the Petitioners' Committee files a Notice of intention to amend it with the City Clerk within five (5) days after receiving the copy of the Clerk's certificate and files a supplementary petition upon additional papers within ten (10) days after receiving the copy of such certificate. Such supplementary petitions shall comply with the requirements of Section 5.3 (b) and (c) above and within five (5) days after it is filed, the City Clerk shall complete a certificate as to the sufficiency of the petition as amended and promptly send a copy of such certificate to the Petitioners' Committee by registered mail as in the case of an original petition. If a petition or amended petition is certified sufficient or if a petition or amended petition is certified insufficient and the Petitioners' Committee does not elect to amend or request ~~Council~~ Commission review under subsection (b) of this section within the time required, the City Clerk shall promptly present his or her certificate to the ~~Council~~ Commission and the certificate shall then be a final determination as to the sufficiency of the Petition.

(b) Review Process. If a petition has been certified insufficient and the Petitioners' Committee does not file notice of intention to amend it or if an amended petition has been certified insufficient, the Committee may, within five (5) days after receiving a copy of such

certificate, file a request to be reviewed by the ~~Council~~Commission. The ~~Council~~ Commission shall review the certificate at its next meeting following the filing of such request and approve or disapprove it, and the ~~Council's~~ Commission's determination shall then be a final determination as to the sufficiency of the petition.

(c) No Prejudice. A final determination of insufficiency shall not prejudice the filing of a new petition for the same purpose.

Sec. 5.5 Referendum Ppetitions Effect.~~: suspension of effect of ordinance.~~

When a referendum petition is filed with the City Clerk, the ordinance sought to be reconsidered shall remain in full force and effect until such time as the ordinance in question is repealed as provided in Section 5.7(b). In the event such ordinance is repealed, such repeal shall be retroactive to the date of commencement of proceedings as set forth in Section 5.2(a).

Sec. 5.6 Action on Ppetitions.

(a) Processing. When an initiative or referendum petition has been finally determined sufficient, the ~~Council~~ Commission shall promptly consider the proposed initiative ordinance in the manner provided in Article III or reconsider the referred ordinance by voting its repeal. If the ~~Council~~ Commission fails to adopt a proposed initiative ordinance without any change in substance within sixty (60) days or fails to repeal the referred ordinance within thirty (30) days after the date the petition was finally determined sufficient, it shall submit the proposed or referred ordinance to the electors of the City.

(b) Timing of Election. The vote of the electors of the City on a proposed or referred ordinance shall be held not less than 30 days and not more than 90 days from the date of the final ~~council~~ Commission vote thereon. If no regular City election is to be held within the period prescribed in this subsection, the ~~Council~~ Commission shall provide for a special election; otherwise, the vote shall be held at the same time as such regular election, except that the ~~Council~~ Commission may in its discretion provide for a special election at an earlier date within the prescribed period. Copies of the proposed or referred ordinance shall be made available at the polls.

(c) Withdrawal . An initiative or referendum petition may be withdrawn at any time prior to the 15th day preceding the day scheduled for a vote of the electors of the City by filing with the City Clerk a request for withdrawal signed by at least four (4) members of the Petitioner's Committee. Upon the filing of such a request, the petition shall have no further force or effect and all proceedings thereon shall be terminated.

Sec. 5.7 Results of Eelection.

(a) Initiative. If a majority of the qualified electors voting on a proposed initiative ordinance vote in its favor, it shall be considered adopted upon certification of the election results and shall be treated in all respects in the same manner as ordinances of the same kind adopted by the ~~Council~~Commission. If conflicting ordinances are approved at the same election, the one receiving the greatest number of affirmative votes shall prevail to the extent of such conflict.

(b) Referendum. If a majority of the qualified electors voting on a referred ordinance vote against it, it shall be considered repealed upon certification of the election results.

Sec. 5.8 Recall Of Elected City Officials.

~~Qualified voters of the City shall have the power to remove from office any elected official of the City except that no elected official may be subjected to a recall election more than once in any twelve (12) month period of time.~~

The procedures applicable to the recall of any elected official of the City shall be as prescribed by Section 100.361, Florida Statutes ~~Laws of Florida, ch. 74-130~~.

V. ARTICLE VI. POLICE DEPARTMENT

Sec. 6.1 Public Ssafety/Ppolice Ddepartment Ccreated.

There is hereby created and established a Public Safety/Police Department for the City of North Lauderdale.

Sec. 6.2 Police Services Agreements ~~for police services~~.

With respect to any current or future agreement between the City of North Lauderdale and any third party for the provision of police services, the City Commission may only terminate the agreement for police services through the adoption of a resolution approved by the affirmative ~~a~~ vote of at least four (4) members ~~one more than a majority~~ of the ~~full~~ City Commission, and in accordance with the provisions of said agreement.

Secs. 6.3—6.5 Reserved.

VI. ARTICLE VII. FIRE-RESCUE DEPARTMENT

Sec. 7.1 [Power to Ccreate Ffire-Rrescue Ddepartment, Ppurchase Eequipment.-]

The City Commission may create, by Ordinance, a Fire-Rescue Department and may cause ~~to be constructed~~ suitable facilities to be constructed for the housing of personnel and apparatus and may authorize the purchase of equipment for said Department.

VII. ARTICLE VIII. NOMINATIONS AND ELECTIONS

[Sec. 8.0 ElectionsGenerally.]

(a) Generally. Except as otherwise provided herein, all City of North Lauderdale elections of every kind or nature shall be conducted in accordance with the provisions of the Constitution of the State of Florida, applicable State of Florida General and Special Law(s) and Act(s) relating specifically or by general application to municipal elections and electors in Broward County, Florida, and in accordance with any applicable provisions of the revised Charter of Broward County, Florida, all as presently enacted or as may be hereafter amended.

(b) Candidate Filing Fee.; ~~provided, however, that~~ Eexcept and only to the extent that any of the law(s) or act(s) aforesaid supersede the provisions of this Charter without option to the City to provide otherwise, the City imposed filing fee for elective municipal office candidates shall be five percent (5 %) of the City Commissioner Member's ~~'s~~ annual salary , and the qualifications of candidates, as elsewhere provided in this Charter shall be applicable.

(c) Regular Elections. ~~shall apply; and provided that, in accordance with Section 100.031, F.S., 2005 FL. Law Ch. 318 and 2004 FL Law Ch. 443, all~~ All regular Mayoral and Commission Member elections in the City shall take place in November.

(d) Other Electoral Matters.; ~~and further provided, that~~As ~~as~~ to any issues or matters upon which the law(s) or act(s) of the State, County or City ~~aforesaid is/~~are silent or nonexistent, or in regard to the exercise of any option or alternative available to the Cceity pursuant to or by virtue of said law(s) or act(s), the Cceity may address these electoral issues, matters, options or alternatives by ordinance.

Sec. 8.1 Electors.

Any person who is a resident of the Cceity who is qualified as an elector of this state and who registers with the Ssupervisor of ~~registration~~ Elections of Broward County, Florida, in the voter registration books and records of Broward County, Florida, in the

manner and at such times and places as provided by law for registering of electors to vote in state and county elections shall be an elector of the Ceity and entitled to vote in all applicable municipal elections.

Sec. 8.2 Nonpartisan Eelections.

All nominations and elections for the office of Mayor or Ceity Ceommission Mmember shall be conducted on a nonpartisan basis without regard for or designation of political party affiliation of any nominee on any ballot.

Sec. 8.3 [Reserved.]

Sec. 8.4 Form of Bballot.

(a) Ballot Form. Subject to compliance with applicable laws, ~~The~~ the ~~Council~~Commission, by ordinance, ~~shall~~ may prescribe the form of the ballot including the method for listing candidates for Mayoral and City ~~Council~~ Commission elections and any other City election.

(b) Other Ballot Measures. An ordinance or Charter amendment to be voted on by the ~~City~~ electors of the City shall be presented for voting by ballot title. The ballot title of a measure may differ from its legal title and shall be a short, concise statement describing the substance of the measure without argument or prejudice. Below the ballot title shall appear the following question:

Shall the above-described (ordinance) (amendment) be adopted?

Immediately below such question shall appear, in the following order, the word "for" and also the word "against" with a sufficient blank space therefor for the placing of the symbol "x" to indicate the voter's choice ~~or the lever opposite "for" or "against" if voting machines are used~~. Alternatively, the words “yes” or “ no” may be used if required or authorized by applicable law.

(c) Compliance With Law. All ballots shall comply with applicable law and the requirements of the Broward County Supervisor of Elections.

Sec. 8.5 ~~[~~County Rregistration ~~to~~to ~~be~~be Uused.~~]~~

In every municipal election, the City shall adopt and use the registration books and records authorized by law to be used in the general elections of Broward County and State of Florida, as the official registration books and records of the City, as indicated by the Broward County Supervisor of Elections.

Sec. 8.6 City Cclerk toto Rrepresent Ccity inin Mmatters Rrelating toto Voter Rregistration.

The City Clerk ~~of the City~~ shall be the official representative of the City in all transactions with the Supervisor of ~~Registration~~ Elections of Broward County, Florida in relation to matters pertaining to the use of registration books and records as herein provided.

[Sec. 8.7 [Reserved].]

Sec. 8.8 Elections.

(a) In General. All municipal elections, including general and special elections, in the City of North Lauderdale shall be held in accordance with applicable Florida general laws (including the Sstate Eelection Ccode) or special laws affecting elections in Broward County, Florida.

[(b) Reserved.]~~Repealed.]~~

(c) Special Elections. All special elections shall be called by resolution or ordinance of the City ~~Council~~Commission, adopted not less than forty-five (45) days before the date of such special election. Should the City ~~Council~~ Commission fail or refuse to call an election by resolution or ordinance as aforementioned, the Mayor shall do so by proclamation. The resolution, ordinance, or proclamation calling an election shall state where the election shall be held, the offices to be filled, or questions or ballot measures to be decided. A Notice of Election shall be published in accordance with the State Election Code of the State of Florida, and in particular, Chapter 100, Florida Statutes, as amended from time to time, such that publication shall be made at least twice, once in the fifth week and once in the third week prior to the week in which the election or referendum is to be held in a newspaper of general circulation in the City. A copy of the Notice of Election shall also be posted on the City's website, and within other electronic media maintained by the City, and at three (3) public places in the City not less than ~~fifteen~~ thirty (~~15~~30) days prior to said election. The notice of election referred to in the preceding sentences shall state where the election shall be held and shall name the office to be filled or the questions or ballot measures to be decided. Notwithstanding the above, posting on the City and or Broward County website may be utilized in lieu of or as a supplement to newspaper publication of the notice of election, if authorized by applicable Florida Statutes.

Sec. 8.9 [Reserved]~~Election board~~.

~~The Council shall establish an election board, which board shall be responsible for implementing the conduct of municipal elections in accordance with the provisions of this Charter, the ordinances or resolutions of the City and the laws of the State of Florida.~~

Sec. 8.10 Certification ~~of~~of Broward County Ccanvassing Bboard.

When available, ~~The~~ the City ~~Council~~ Commission shall adopt the certificate of the Broward County Canvassing Board~~, when available, so as at a meeting~~ to enter the results of the election into the minutes of the City ~~Council~~ Commission meeting.

Sec. 8.11 ~~Number of votes cast per electors~~. Election of Candidates.

~~(a) Each elector of the City shall be entitled to vote for as many candidates for the City Council as there are members to be elected to the Council; provided, however, that each elector shall be entitled to cast only one (1) vote per candidate.~~

~~(b)~~ Candidates receiving the greatest number of votes for the Mayoral or Commission Member office sought shall be declared elected to the applicable vacant seats on the City ~~Council~~Commission.

Sec. 8.12 Conduct ~~of~~of Ccandidates ~~for~~for Eelective Ooffice.

No candidate shall promise any money, office, employment or other thing of value, to secure his or her nomination or election, or give anything of value to individual voters for the purpose of securing their votes. A violation of any of these provisions shall disqualify such candidate from holding office if elected.

Each candidate for Mayor or Commission Member shall comply with all applicable election laws.

Sec. 8.13 Oath ~~of~~of Ooffice.

All elective officers, before assuming their duties, shall take and subscribe to the following oath of office:

> I do solemnly swear (or affirm) that I will support, protect and defend the Constitution governing the United States and of the State of Florida and the Charter of the City of North Lauderdale, and that I am duly qualified to hold office under the Constitution of the United States and of the State of Florida and the Charter of the City of North

Lauderdale and that I will well and faithfully perform the duties of the office for which I am elected upon which I am now about to enter, so help me God.

The oath required by Section 876.05, Florida Statutes, shall also be utilized.

VIII. ARTICLE IX. GENERAL PROVISIONS

Sec. 9.1 Civil Sservice Ssystem.

(a) The City ~~Council~~ Commission shall create, by ordinance, a Civil Service System, based upon the merit principle for the City. The ordinance creating the Civil Service System(presently set forth in City Code Section 46-36, et. seq.,) shall set forth the powers and duties of the civil service board. The ordinance creating the Civil Service System ~~to be created~~ hereunder shall be in substantial conformity with and within the spirit of Section 447.601, Florida Statutes. ~~F.S. ch. 174, insofar as said Chapter is not in conflict with any provisions of this Charter. This section shall not be construed to be an adoption of F.S. ch. 174.~~

(b) All persons regularly employed by the City of North Lauderdale shall be subject to the benefits and provisions of the Civil Service System with the exception of the following:

(1) Elected Officials;

(2) Persons appointed to fill vacancies in elective offices;

(3) (Reserved)~~Municipal Judges;~~

(4) City Attorneys;

(5) Members of advisory boards, commissions or committees;

(6) Persons or firms providing specialized, technical or professional services under contract with the City;

(7) Temporary and part-time employees;

(8) Volunteer Workers;

(9) All Department Head positions created by the City Commission from time-to-time;

(10) City Manager;

(11) City Clerk, and Deputy City Clerk.

(c) The Department Head position classifications excluded from the Civil Service System, as outlined above, shall be subject to appointment, suspension and removal by the City Manager, who shall be empowered to execute employment contracts with such employees, except that the Ceity Ceommission reserves to itself the power of

appointment, suspension and removal of the following Department Heads and/or personnel:

(1) The attorneys for the City.

~~(2) The City Clerk and Deputy City Clerk for the City.~~

Sec. 9.2 Organization ofof Bboards and Ccommissions.

Boards and commissions created in accordance with this Charter shall elect their officers from the appointed or selected members and shall determine their rules and procedures subject to the provisions of this Charter and the laws of the State of Florida and the approval of the City ~~Council~~Commission. Any vacancy occurring on any board or commission shall be promptly filled in the same manner as that in which the member vacating the position on the board or commission was appointed or selected.

Sec. 9.3 City Aattorney.

Appointment and Removal. The ~~Council~~ Commission shall appoint a City Attorney and such Assistant City Attorneys as it deems necessary who shall act as legal advisors to the City and its officers in matters relating to their official duties. The City Attorney shall review all contracts involving the expenditure by the City of monies equal to or in excess of $10,000.00 and shall submit written comments thereon to the City Manager and the City ~~Council~~Commission. Any person appointed to serve as City Attorney or Assistant City Attorney must be a member in good standing of the Florida Bar, duly licensed to engage in the practice of law in the State of Florida.

Sec. 9.4 Ethics Laws; ~~Conflict of interest;~~ Ethics Code ~~standards of conduct~~.

(a) Any City officer or employee who has a financial interest, direct or indirect, in any contract or transaction between the City and any person, firm, corporation, association, or other entity with whom the City officer or employee has a financial interest, shall make known that interest and shall refrain from voting or otherwise participating in any decision affecting the negotiations or consummation of the contract or transaction as aforementioned. Any City officer or employee who willfully conceals such a financial interest or willfully violates the requirements of that section shall be guilty of malfeasance in office or employment and shall forfeit his or her office or employment. Violation of this section with the knowledge expressed or implied of the person, firm, corporation, association or other entity contracting with or transacting business with the City shall render the contract voidable at the election of the City.

(b) All elected officials and employees of the City shall be subject to the standards of conduct for public officers and employees set by general law, including, Federal, State, County and City laws.

(c)The provisions of Chapter ~~F.S. ch.~~ 112, Ppart III~~3~~, Florida Statutes, are hereby adopted as applicable to all officers, employees, officials and/or appointees of the City. In addition, the ~~Council~~ Commission may, by ordinance, establish a code of ethics for officials ~~and~~ , employees and appointees of the City which may be supplemental to general law but in no case may such an ordinance diminish the provisions of applicable general law.

Sec. 9.5 Salaries, Ccompensation and Fidelity Bbonds.

(a) Commission Member Salary. The City Commission shall determine the annual salary of the City Commission Members ~~ers~~ by ordinance. Compensation for members of the City Commission shall be adjusted at the time of the approval of the annual budget, to be effective on October 1 of each calendar year. The City Commission shall be entitled to a cost of living increase in an amount equal to that ~~given~~ provided to the City's General Employees.

~~(a)~~(b) Bonds. The City Commission shall have the authority to establish such bonds as, in the opinion of the City Commission, are necessary for the faithful discharge of the duties of office. The premium of any bond required by the City Commission shall be paid by the City.

Sec. 9.6 State Llaws ~~as~~as Aamended.

All references, incorporations, or adoptions of specific State laws shall be construed to mean such State laws as amended from time to time.

Sec. 9.7 Interpretation.

The word "shall" wherever used in this Charter shall be construed and applied in the mandatory sense.

Any reference ~~to~~ in this Charter to "he," "man," or any other gender biased language shall be construed and applied in a neutral manner to include individuals of both genders.

For the purposes of this Charter, a “day” or “days” shall mean a calendar day or calendar days.

Sec. 9.8 Effect of ~~ive~~ Ppartial linvalidity.

A determination by a Court of competent jurisdiction of any part of this Charter as invalid shall not invalidate or impair the force or effect of any other part thereof, except to the extent that such other part is wholly dependent for its operation upon the part declared invalid.

Sec. 9.9 - Amendments to Ccharter; Rreview of Charter.

(a) Method. The Charter shall be amended in accordance with the provisions of F.S. ch. 166, including Section 166.031, F.S.~~.~~

(b) Timing. In January, 2025, and every eight (8) years thereafter, the ~~Council~~ City Commission shall appoint a Charter Review ~~Commission~~ Board to be composed of ~~five~~ eleven (~~5~~11) electors of the City which electors shall hold no other office, appointment, or employment with the City, provided, however, that members of purely advisory boards of the City shall be eligible for appointment to the Charter Review ~~Commission~~Board. The Board members serving as chair and vice- chair of the Board shall be designated by the City Commission. The Charter Review ~~Commission~~ Board shall review the Municipal Charter, and within one (1) year after such appointment, recommend to the City ~~Council~~ Commission such revisions and amendments as the ~~Commission~~ Charter Review Board determines to be desirable. Upon submission to the City ~~Council~~ Commission of any revisions or amendments proposed by the Charter Review ~~Commission~~Board , the City ~~Council~~ Commission shall submit such revisions and amendments to a public hearing for the purpose of receiving public input , not later than sixty (60) days subsequent to the receipt by ~~them~~ the City Commission of such proposed revisions or amendments.

(c) Parity. The City Commission shall extend to the Charter Review Board equal respect as is provided to other advisory boards of the City, and accordingly shall assure that the Charter Review Board has access to convenient and well equipped City meeting facilities and to technological resources which are designed to enhance the ease of public access and participation in the charter review process.

Sec. 9.10 - Purchases.

The City Commission shall adopt and maintain an ordinance establishing a procurement code for the City of North Lauderdale. The procurement code shall adopt and comply with applicable State laws.

ARTICLE X. - TRANSITION

Sec. 10.1 - Continuation of Fformer Ccharter Pprovisions.

All provisions of Laws of Florida, ch. 63-1674, (the former Charter) as amended by special law or otherwise which are not embraced herein and which are not inconsistent with this Charter shall become ordinances of the City subject to modification or repeal in the same manner as other ordinances of the City.

Sec. 10.2 - Ordinances Ppreserved.

All ordinances in effect upon the adoption of this Charter, to the extent not inconsistent with it, shall remain in force until repealed or changed as provided herein.

Sec. 10.3 - Rights of Oofficers and Eemployees.

Nothing in this Charter except as otherwise specifically provided shall impair the rights or privileges of persons who are City officers or employees at the time of adoption. Elected officers shall continue to hold their offices and discharge their duties thereof until their successors are elected.

Sec. 10.4 - [Continuation of Rrights, Cclaims and Pproceedings.]

All rights, claims, actions, orders, contracts and legal or administrative proceedings involving the City shall continue except as modified pursuant to the provisions of this Charter.

Sec. 10.5 - Schedule.

(a) At the time of its adoption, this Charter shall be in effect in order that the first election of members of the Council and the Mayor may be conducted in accordance with the provisions herein. The first election shall be held on the second Tuesday of April of the year 1975.

(b) This Charter shall be in full effect for all purposes on and after the date and time the majority of the electors of the City voting in a referendum upon such Charter adopt it and the adopted Charter is filed with the Department of State of the State of Florida.

(c) On the third Tuesday of April 1975, following the first election of Councilmembers and the Mayor under this Charter, the newly elected members of the Council shall meet at 7:30 p.m. at the City Hall, City of North Lauderdale and shall organize in accordance with the provisions of Article III of this Charter.

(d) The Council shall adopt ordinances and resolutions required to effect the transition. Ordinances adopted within sixty (60) days of the first Council meeting under this Charter for the purpose of facilitating the transition may be passed as emergency ordinances following the procedures of Article III, except that transition ordinances shall be effective for up to ninety (90) days.

(e) After an election, the newly elected officials shall be sworn in as soon as practicable at a time that shall be set and determined by the City Commission.

(f) The above provisions of this section shall be converted to a footnote and be maintained for historical reference only, since its purposes have been completed.

Section 3. Election Called. That a special election is hereby called, to be held in conjunction with the regular Commission election, on Tuesday, the 3rd day of November 2026, to present to the qualified electors of the City of North Lauderdale, the five (5) ballot questions provided in Section 4 of this Ordinance.

Section 4. Form of Ballot. That the form of ballot for the Charter Amendments provided for in Section 2 of this Ordinance shall be substantially as follows:

CITY OF NORTH LAUDERDALE CHARTER AMENDMENTS

(1) AMENDMENTS TO CREATE UPDATED CITY CHARTER

Shall the City Charter be amended to reflect an updated Charter including revising the word " Council" to "Commission", recognizing existing single- member district election system, correcting and including references to State Law and Broward County Charter , and County election officials , allowing notices by website posting in lieu of newspaper publications, creating subparagraph headings for convenience of reference, deleting obsolete provisions , including changes made for clarity and consistency, and updating the Charter to satisfy applicable laws ?

YES [ ]

NO [ ]

(2) ELECTED OFFICIAL ATTENDANCE REQUIRED AT COMMISSION WORKSHOP MEEETINGS

The City Charter currently provides for the potential sanction of forfeiture of City elective office for the unexcused failure to attend four (4) consecutive regular Commission meetings. It is proposed to amend the Charter to apply the same attendance standards and sanctions for required attendance of City elected officials at Workshop Commission meetings.

Shall the above – described Charter amendment be adopted?

YES [ ]

NO [ ]

(3) AUTHORITY OVER CITY CLERK AND DEPUTY CITY CLERK

The City Charter currently provides for the City Clerk and Deputy City Clerk to be hired, terminated and report to the City Commission. It is proposed that the Charter be amended to place the hiring, termination, and reporting of the City Clerk and Deputy City Clerk under the authority and responsibility of the City Manager.

Shall the above – described Charter amendment be adopted?

YES [ ]

NO [ ]

(4) PROHIBITING WAIVER OF REQUIREMENT THAT THE CITY MANAGER MUST RESIDE IN BROWARD COUNTY, FLORIDA

The City Charter currently allows the City Commission to waive or excuse the requirement that the person serving as City Manager must reside in Broward County, Florida within six (6) months after being hired. It is proposed that the Charter be amended to prohibit the City Commission from waiving or excusing the requirement that the City Manager must reside in Broward County, Florida.

Shall the above- described Charter amendment be adopted?

YES [ ]

NO [ ]

(5) REVISING THE CHARTER REVIEW COMMISSION PROVISION

It is proposed that the Charter Review Commission be renamed the Charter Review Board, be expanded from 5 to 11 members , that the Board chair and vice- chair be designated by the City Commission , that State law be referenced for the review process, and that the Board have access to convenient meeting places and equipment to enhance public participation in the Charter review process.

Shall the above- described Charter amendment be adopted?

YES [ ]

NO [ ]

Section **5. Balloting.** That balloting shall be conducted between the hours of 7:00 a.m. and 7:00 p.m. at the regular polling places for City elections, and early voting and voting by mail shall also be provided as provided for the regular City election. All qualified City electors who are timely registered in accordance with law shall be entitled to vote. The City Clerk is authorized to obtain any necessary election administration services from the Broward County Supervisor of Elections. The County registration books shall remain open at the Office of the Broward County Supervisor of Elections until twenty-nine (29) days prior to the date of such election, at which time the registration books will close in accordance with the provisions of the general election laws. The Broward County Supervisor of Elections is hereby authorized to take all appropriate action necessary to carry into effect and accomplish the provisions of this Ordinance. This special election shall be canvassed by the County Canvassing Board unless otherwise provided by law.

Section 6. Notice of Special Election. That notice of said special election shall be published in accordance with Section 100.342, Fla. Stat., in a newspaper of general circulation within the City at least 30 days prior to said election, the first publication to be in the fifth week prior to the election (to-wit: during the week commencing Sunday, September 27, 2026), and the second publication to be in the third week prior to the election (to-wit: during the week commencing Sunday, October 11, 2026), and shall be in substantially the following form:

"NOTICE OF SPECIAL ELECTION

PUBLIC NOTICE IS HEREBY GIVEN THAT PURSUANT TO ORDINANCE NO. _____ ADOPTED BY THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE,

FLORIDA (THE "CITY") A SPECIAL ELECTION HAS BEEN CALLED AND ORDERED TO BE HELD WITHIN THE CITY ON TUESDAY, THE 3RD DAY OF NOVEMBER 2026, BETWEEN THE HOURS OF 7:00 A.M. AND 7:00 P.M., AT WHICH TIME THE FOLLOWING CHARTER AMENDMENT PROPOSALS SHALL BE SUBMITTED TO THE QUALIFIED ELECTORS OF THE CITY.

CITY OF NORTH LAUDERDALE CHARTER AMENDMENTS

Those certain five (5) proposed amendments to the City Charter, which proposals are commonly referred to by the following ballot titles:

(1) **AMENDMENTS TO CREATE UPDATED CITY CHARTER**

(2) **ELECTED OFFICIAL ATTENDANCE REQUIRED AT COMMISSION WORKSHOP MEEETINGS**

(3) **AUTHORITY OVER CITY CLERK AND DEPUTY CITY CLERK**

(4) **PROHIBITING WAIVER OF REQUIREMENT THAT THE CITY MANAGER MUST RESIDE IN BROWARD COUNTY, FLORIDA**

(5) **REVISING THE CHARTER REVIEW COMMISSION PROVISION**

Polling place information and the full text of the proposed City Charter Amendments are available at the office of the City Clerk located at 701 SW 71st Avenue , North Lauderdale, Florida 33068 . Early voting and vote by mail shall also be available as provided for regular City elections.

_____

CITY CLERK"

Section 7. **Copies.** That copies of this Ordinance proposing the Charter Amendments are on file at the offices of the City Clerk located at 701 SW 71st Avenue, North Lauderdale, Florida 33068, and are available for public inspection during regular business hours.

Section 8. **Effectiveness.** That the Charter Amendments provided for in Section 2 above shall become effective if the majority of the qualified electors voting on the specific Charter

Amendment vote for its adoption, and it shall be considered adopted and effective upon certification of the election results. Following adoption of the Charter Amendments, the City Clerk shall file the adopted Charter Amendments with the Florida Department of State as provided by Section 166.031, F.S.

Section 9. Inclusion in the Charter. That subject to the requirements of Section 8 above, it is the intention of the City Commission and it is hereby provided that the Charter Amendments shall become and be made a part of the Charter of the City of North Lauderdale; and that the Sections of this Ordinance may be renumbered or relettered to accomplish such intention.

Section 10. Effective Date of Ordinance . That this Ordinance shall be effective immediately upon adoption hereof.

PASSED on first reading this 14th day of April 2026.

Commissioner Darrell (*Dee) Lewis-Ricketts _____
Commissioner Dr. Regina Martin _____
Commissioner Luke Lewis _____
Vice Mayor Mario Bustamante _____
Mayor Samson Borgelin _____

PASSED AND ADOPTED on second reading this ____day of_____, 2026.

Commissioner Darrell (*Dee) Lewis-Ricketts _____
Commissioner Dr. Regina Martin _____
Commissioner Luke Lewis _____
Vice Mayor Mario Bustamante _____
Mayor Samson Borgelin _____

_____
Samson Borgelin, Mayor

_____
Mario Bustamante, Vice Mayor

ATTEST:

_____
Susan Slattery, MMC
City Clerk

Approved as to Form and Legal Sufficiency for the Use and Reliance of the City Only:

By:_____
David M. Wolpin, As Special Counsel For Charter Review Project

By: _____
City Attorney, Michelle Austin Pamies, Esq.

Austin Pamies Norris Weeks Powell, PLLC

Business Impact Estimate

This form should be included in the "set for public hearing" agenda item for ordinances, and must be posted on the City of North Lauderdale's website by the time notice of the proposed ordinance is published.

Ordinance title/reference:

AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, PROVIDING FOR THE SUBMISSION TO THE ELECTORS OF THE CITY FOR APPROVAL OR REJECTION A SERIES OF PROPOSED AMENDMENTS TO THE CITY CHARTER WHICH RESULTED FROM THE CITY COMMISSION'S REVIEW OF THE RECOMMENDATIONS OF THE CHARTER REVIEW COMMISSION, IN ACCORDANCE WITH SECTION 9.9 OF THE CITY CHARTER; PROVIDING REQUISITE LANGUAGE FOR THE SUBMISSION OF SIX (6) BALLOT MEASURES TO THE ELECTORATE; CALLING A SPECIAL ELECTION ON THE PROPOSED AMENDMENTS TO THE CITY CHARTER TO BE HELD ON TUESDAY, THE 3RD DAY OF NOVEMBER, 2026; PROVIDING NOTICE OF ELECTION; PROVIDING FOR INCLUSION IN THE CHARTER; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

If any of the following exceptions to the Business Impact Estimate requirement apply, check the applicable box and leave the remainder of the form blank.

- ☐ The ordinance is required for compliance with federal or state law or regulation;
- ☐ The ordinance relates to the issuance or refinancing of debt;
- ☐ The ordinance relates to the adoption of budgets or budget amendments, including revenue sources necessary to fund the budget;
- ☐ The ordinance is required to implement a contract or an agreement, including, but not limited to, any federal, state, local, or private grant, or other financial assistance accepted by the City of North Lauderdale;
- ☐ The ordinance is an emergency ordinance;
- ☐ The ordinance relates to procurement; or
- ☐ The ordinance is enacted to implement the following:
  a. Part II of Chapter 163, relating to growth policy, county and municipal planning, and land development regulation, including zoning, development orders, development agreements, and development permits;
  b. Sections 190.005 and 190.046, regarding community development districts;
  c. Section 553.73, relating to the Florida Building Code; or
  d. Section 633.202, relating to the Florida Fire Prevention Code.

1. Summary of the proposed ordinance (must include statement of the public purpose, such as serving the public health, safety, morals, and welfare):

Ordinance to provide submission to the electors of North Lauderdale proposed Charter Amendments

2. Estimate of direct economic impact of the proposed ordinance on private, for-profit businesses in North Lauderdale:

No Fiscal Impact

3. Estimate of direct compliance costs that businesses may reasonably incur:

No fiscal impact

4. Any new charge or fee imposed by the proposed ordinance:

No fiscal impact

5. Estimate of the City of North Lauderdale's regulatory costs, including estimated revenues from any new charges or fees to cover such costs:

No fiscal impact

6. Estimate of the number of businesses likely to be impacted by the proposed ordinance:

No fiscal impact

7. Additional information (if any):

CITY OF NORTH LAUDERDALE
FINANCE DEPARTMENT

TO: **Mayor and City Commission**

FROM: **Michael Sargis, City Manager**

THROUGH: **Sophia Henderson, Finance Director**

BY: **Ian Superville, Purchasing & Contracts Manager**

DATE: **April 14, 2026**

SUBJECT: **Update City of North Lauderdale Code of Ordinances Chapter 3 Procurement Procedures – First Reading**

The City's Procurement process is governed by State Statutes (Chapters 287 & 166), our local City Ordinance, chapter 3 and other regulatory guidelines. The purpose of these adopted regulations is to ensure ethical standards in procurement, as well as to ensure fair competition in the process. Our local purchasing code is to promote efficient procedures for the purchase of goods and services, provide fair and equitable treatment of persons transmitting business with the city and maximize the value of public funds.

The City's Purchasing Ordinance was last updated in 2019 and staff is recommending revisions to modernize and clarify the process. These recommendations also seek to improve processes and create greater operational efficiencies.

A summary of the proposed revisions is listed below:

- Definitions: Update/clarify definitions, to include definitions of "Emergency", "Procurement Officer", "Public Notice", "Sole Source" and other terms utilized in the process;
- Exemptions to Bidding Requirements: Clarify conditions of exemptions to bidding. These include renewal of software licenses; partnerships with higher educational facilities; and, approval requirements by City Commission for items deemed "in the Best Interest of the City."
- Unsolicited Proposals: Include provisions for processing unsolicited proposals received by the City, including provisions for submitting, accepting, reviewing, evaluating proposals received.
- Increase Purchasing Thresholds: Thresholds were last increased in 2019, just prior to the Covid-19 pandemic. Since 2019 global supply chain issues, uncertainty of tariffs, customary inflation and more recently higher fuel prices have created significant price

increases. The cumulative inflation rate in the USA since 2019 has been approximately 27%. Consequently, items purchased in 2019 for $25,000 would now cost $32,000.

Staff seeks to adjust the purchasing thresholds to improve the overall process, expedite smaller dollar purchases, and allow for appropriate levels of efficiency in processing. The recommended changes are listed below:

Purchasing Thresholds

Current	Proposed	
$0 to $5,000	$0 to $7,500	One written quote; single quote, no competition required
$5,000.01 to $10,000	$7,501.01 to $15,000	Informal Quote – Completed Purchasing Memo signed by the Purchasing Manager with a minimum of 3 written quotations.
$10,000.01to $25,000	$15,000.01 to $50,000	Formal Quote – Completed Purchasing Memo signed by the Purchasing Manager and City Manager with a minimum of 3 written quotations.
$25,000.01	$50,000.01 +	Formal advertised solicitation (Bid, RFP, etc.)

The City's amended Procurement Procedures will increase efficiency, while ensuring that all goods and services are procured in an open, fair, and transparent process in adherence to policy and procedures.

RECOMMENDATION

City Administration recommends the City Commission consideration and approval of the amending of Chapter 3 of the City of North Lauderdale Code of Ordinances, Procurement Procedures, more specifically amending Section 3.2 definitions, Section 3.4 competitive bidding or competitive proposals required; exceptions, Section 3.8 award of contract, Section 3.10 change orders; and Section 3.18, Unsolicited Proposals.

ORDINANCE NO. _____

AN ORDINANCE OF THE CITY OF NORTH LAUDERDALE, BROWARD COUNTY, FLORIDA AMENDING PART II – CODE OF ORDINANCES, CHAPTER 3, PROCUREMENT PROCEDURES; SECTION 3-2, DEFINITIONS, SECTION 3-4, COMPETITIVE BIDDING OR COMPETITIVE PROPOSALS REQUIRED, EXCEPTIONS, SECTION 3-8, AWARD OF CONTRACT, SECTION 3-10, CHANGE ORDERS, SECTION 3.18, UNSOLICITED PROPOSALS; PROVIDING FOR ADOPTION; PROVIDING FOR CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR CODIFICATION; AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the City Commission adopted Chapter 3 of the City's Code of Ordinance entitled "Procurement Procedures" in April 2019; and

WHEREAS, the City of North Lauderdale ("City") maintains adherence to the adopted Procurement Procedures to ensure that all goods and services are procured by the City in an open, fair, and competitive process; and

WHEREAS, the City wishes to amend and update the City's Procurement Procedures by expanding definitions and increasing thresholds for more efficient operations; and

WHEREAS, the City Commission of North Lauderdale has determined that it is in the best interest of the City to amend the Code Ordinance Chapter 3, Procurement Procedures.

NOW, THEREFORE, be it ordained by the City Commission of the City of North Lauderdale as follows:

Section 1. The foregoing "**WHEREAS**" clauses are true and correct and are incorporated herein by this reference.

Section 2. The City Commission hereby amends Chapter 3 of the City's Code of Ordinances entitled "Procurement Procedures" as follows:

CODING: Words, symbols, and letters ~~stricken~~ are deletions; words, symbols, and letters underlined are additions. Words, symbols, and letters double underlined are additions after first reading; words, symbols, and letters ~~double stricken~~ are deletions after first reading.

Definitions.

For the purpose of this chapter, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

Addendum/addenda means a formal written notification to prospective bidders or proponents which provides clarification of the requirements for a solicitation. Whenever a potential bidder requests information or clarification regarding information that is not clearly referenced in a solicitation document, it is necessary to provide all bidders with the same information in writing, using the addendum document.

Advertisement means a formal announcement of an invitation for a solicitation; usually placed in a newspaper of general circulation and/or on an Internet website.

Best interest of the city means a commodity or service for which there is competition and/or more than one venue for purchase, but due to the specific circumstances involved, staff recommends purchasing from one particular source. Memo justification required by City Department with approval by Procurement and City Manager.

Best and Final Offer (BAFO) means a responsive proposal that contains a proposer's most favorable terms for price, services, and products to be delivered.

Blanket Order. An agreement to purchase goods from a specific supplier over a defined period of time, up to a maximum dollar amount. A blanket order generally includes established prices, terms, and conditions for a defined period of time, although without specifying quantities. Shipments are to be made when and as required by the City.

Business means any corporation, partnership, individual, sole proprietorship, joint stock company, joint venture, or any other private legal entity.

Business location. A permanent office or other site where the vendor operates, conducts, engages in, or carries on all, or a portion of, its business. A post office box shall not be sufficient to constitute a business location.

Consultants' Competitive Negotiation Act (CCNA). F.S. § 287.055, as may be amended from time to time, pertaining to the acquisition of mapping services or services from architects, engineers, land surveyors, and landscape architects.

Change order. Changes, due to unanticipated conditions or developments, made to an executory contract, which do not substantially alter the character of the work contracted for, and which do not vary so substantially from the original specifications as to constitute a new undertaking. The changes must reasonably and conscientiously be viewed as being in fulfillment of the original scope of the contract rather than as departing therefrom. Further, the changes, when viewed against the background of the work described in the contract and the language used in the specifications, must clearly be directed either to the achievement of

a more satisfactory result or the elimination of work not necessary to the satisfactory completion of the contract.

City standard/city standard commodities means a commodity or service that the city has established as the only type, brand, or manufacturer to purchase for ongoing compatibility, interchangeability, or for ease of maintenance. A city standard may also be available from only one source or distributor, or may have competition available, but the justification for purchase is ongoing standardization.

Commodities. Personal property, including, but not limited to, goods, supplies, apparatus, equipment, material and other forms of tangible personal property.

Construction means the process of building, altering, repairing, improving, or demolishing any public infrastructure facility, including any public structure, public building, or other public improvements of any kind to real property. It does not include the routine operation, routine repair, or routine maintenance of any existing public infrastructure facility, including structures, buildings, or real property.

Contract means all types of city agreements, regardless of what they may be called, for the procurement or disposal of supplies, services or construction.

Contract modification means any written alteration in specifications, delivery point, rate of delivery, period of performance, price, quantity, or other provisions of any contract accomplished by mutual action of the parties tb the contract.

Contractor. Any person or business entity having a contract with the city.

Cooperative purchasing. Situations where the city participates in joint procurement of commodities or services with other public entities within the state, in order to obtain lower prices through greater purchasing volume.

Data means recorded information, regardless of form or characteristic.

Designee means a duly authorized representative of a person holding a superior position.

Electronic means electrical, digital, magnetic, optical, electromagnetic, or any other similar technology.

Emergency means an unforeseen or unanticipated urgent threat to life, health, safety and the welfare of the community or public properties.

Emergency purchase means an unforeseen or unanticipated urgent and immediate need for goods or services where the protection of life, health, safety and the welfare of the community or the preservation of public properties would not be possible using any of the other procurement methods described in this division.

Employee means an individual drawing a salary from a governmental body.

Governmental body means any department, commission, council, board, bureau, committee, institution, legislative body, agency, government corporation, or other establishment or official of the executive, legislative, or judicial branch of the city.

Grant means the furnishing by the city of assistance, whether financial or otherwise, to any person to support a program authorized by law. It does not include an award whose primary purpose is to procure an end product, whether in the form of supplies, services or construction; a contract resulting from such an award is not a grant but a procurement contract.

Invitation for bid. A written solicitation for competitive sealed bids with the title, date and hour of the public bid opening designated therein and specifically defining the commodities or services for which bids are sought. The invitation for bid shall be used when the city is capable of specifically defining the scope of work for which a service is required or when the city is capable of establishing precise specifications defining the actual commodities required. The invitation for bid shall include instruction to bidders, plans, drawings and specifications, if any, bid form and other required forms and documents to be submitted with the bid.

Local business means a contractor who has a business location within North Lauderdale, is in compliance with all City licensing requirements, and is current on all City taxes. The contractor shall have the burden of demonstrating that it meets this definition.

May denotes the permissive.

Person means any business, individual, union, committee, club, other organization, or group of individuals.

Procurement means buying, purchasing, renting, leasing, or otherwise acquiring any supplies, services or construction. It also includes all functions that pertain to the obtaining of any supply, service or construction, including description of requirements, selection and solicitation of sources, preparation and award of a contract, disposition of assets, and all phases of contract administration.

Procurement officer means any person duly authorized to develop, recommend approval of and administer contracts and make written interpretations with respect thereto. The term also includes an authorized representative acting within the limits of authority as defined by this Code.

Public notice means the distribution or dissemination of information to interested parties using methods that are reasonably available. Such methods will often include publication in newspapers of general circulation, electronic or paper mailing lists, and/or web site(s) designated by the city and maintained for that purpose.

Policy means a governmental body's statement, having general or particular applicability and future effect, designed to implement, interpret, or prescribe law or policy, or describing organization, procedure, or practice requirements, which has been promulgated in accordance with the North Lauderdale City Code.

Procurement Code Exemption means a provision in the North Lauderdale City Code that waives competition requirements for the purchase of specific goods or services.

Professional services. Services rendered by members of recognized profession, or services requiring specialty training in the arts or sciences and/or requiring holding professional licenses. For example, attorneys, certified public accountants or actuaries. Excludes those services subject to CCNA requirements (see CCNA definition).

Procurement Department means office, division, or unit with authority for contracting needed goods, services, or construction and contracts for the City.

Procurement Manager is a procurement employee with supervisory responsibility and authority to act in the acquisition of goods and services for the City.

Project is defined as a logical grouping of eligible work to achieve a specific endeavor. Some elements of a project include a defined timeline, specific objectives, defined scope of work, service territory, budget or expenditure amount.

Shall denotes the imperative.

Signature means a manual or electronic identifier, or the electronic result of an authentication technique attached to or logically associated with a record that is intended by the person using it to have the same force and effect as a manual signature. Such signatures shall conform to Chapter 668, Florida Statutes, Electronic Commerce.

Small purchases mean a purchase of or contract for commodities or services that is estimated by the chief procurement officer to cost five thousand dollars ($5,000.00) or less.

Quotations. Unsealed telephonic, facsimile or written bids for commodities or services.

Request for letters of interest. A written solicitation for offers with the title, date and hour of the submission deadline designated. A request for letters of interests shall include, but is not limited to, general information and submission deadline. The city shall engage in competitive negotiations with responsible offerors determined to be reasonably susceptible of being selected for award for the purpose of clarification to assure full understanding of and conformance to the solicitation requirements. Offerors shall be accorded fair and equal treatment with respect to any opportunity for discussion.

Request for proposals. A written solicitation for competitive sealed proposals with the title, date and hour of the public opening designated. A request for proposals shall include,

but is not limited to, general information, functional or general specifications, a statement of work, proposal instruction and evaluation criteria. All requests for proposals shall state the relative importance of price and any other evaluation criteria. The city may engage in competitive negotiations with responsible proposers determined to be reasonably susceptible of being selected for award for the purpose of clarification to assure full understanding of and conformance to the solicitation requirements. Proposers shall be accorded fair and equal treatment with respect to any opportunity for discussion and revision of proposals and such revisions may be permitted after submissions and prior to award for the purpose of obtaining the best and final offer.

Request for qualifications. A written solicitation for competitive sealed offers with the title, date and hour of the public opening designated. A request for qualifications shall include, but is not limited to, general information, functional or general specifications, statement of work, instructions for offer and evaluation criteria. All requests for qualifications shall state the relative importance of the evaluation criteria. The city may engage in competitive negotiations with responsible offerors determined to be reasonably susceptible of being selected for award for the purpose of clarification to assure full understanding of and conformance to the solicitation requirements. Offerors shall be accorded fair and equal treatment with respect to any opportunity for discussion and revision of offers, and such revisions may be permitted after submissions and prior to award for the purpose of obtaining the best and final offer.

Responsible bidder, responsible offeror, or *responsible proposer*. A person or business entity having the capability in all respects to perform fully the contract requirements and sufficient experience, ability, reliability, capacity, facilities, equipment, financial resources and credit to give the city a reasonable expectation of good faith performance, determined solely within the city's discretion.

Responsive bidder, responsive offeror, or *responsive proposer*. A person who has submitted a bid, offer, or proposal that conforms in all material respects to the invitation for bid, request for letters of interests, request for qualifications, or request for proposals, determined solely within the city's discretion.

Services. The furnishing of labor, time or effort by a contractor, not involving the delivery of a specific end-product other than reports that are merely incidental to the required performance. This term shall not include employment agreements or collective bargaining agreements.

Single source. The commodities or services are available from more than one responsible vendor but because of city standardization, warranty, or other distinctive factors, the purchase is directed to one source. A City standard is the adoption of a single product or group of products to used by a department or citywide.

Sole source. ~~The commodities or services are available from only one responsible vendor~~. A commodity or service for which there is no known competition or one that is only available from one source - be it the manufacturer, their designated distributor, or the service supplier. A Sole Source letter describing the commodity or service from the manufacturer shall be required.

Supplies means all property, including but not limited to equipment, materials, printing, insurance, and leases of real property, excluding land or a permanent interest in land.

Using department means any department of the city which utilizes any supplies, services or construction procured under this Code.

Written or in writing means the product of any method of forming characters on paper, other materials, or viewable screens, which can be read, retrieved, and reproduced, including information that is electronically transmitted and stored.

Competitive bidding or competitive proposals required; exceptions.

PURCHASING THRESHOLDS

$0.00 - $7,500	One written quote; single quote, no competition required
$7,500.01 - $15,000	Informal Quote – Completed Purchasing Memo signed by the Purchasing Manager with a minimum of 3 written quotations.
$15,000.01 - $50,000	Formal Quote – Completed Purchasing Memo signed by the Purchasing Manager and City Manager with a minimum of 3 written quotations.
$50,000.01+	Formal advertised solicitation (Bid, RFP, etc.)

(a) Purchases of commodities, ~~materials or~~ supplies or services equal to or ~~greater~~ less than ~~$5,000~~ $7,500 ~~must have at least three documented written quotes~~ requires a single quote. Purchases of commodities, supplies or services ~~between $10,000.00 and up to $25,000.00 must have at least three competitive written quotations and shall require the pre-approval of the purchasing division and the city manager.~~ greater than $7,500.00 but less than $15,000 shall have at least three documented competitive written quotations and requires the approval of the purchasing and contracts manager. ~~Purchases of or contract for commodities or services in excess of $25,000.00 shall be based on a formal competitive solicitation and shall be pre-approved by the city commission~~. Purchases of commodities, supplies or services between $15,000.01 and up to $50,000.00 must have

at least three competitive written quotations and shall require the pre-approval of the purchasing division and the city manager. Purchases of or contract for commodities, supplies or services in excess of $50,000.00 shall be based on a formal competitive solicitation and shall be pre-approved by the city commission.

A formal competitive solicitation in the form of an invitation to bid, request for proposals, request for qualifications, request for letters of interest, or other authorized competitive solicitation process shall be made available simultaneously to all vendors, must include the time and date for receipt of bids, proposals, replies, and must include all evaluation criteria to be used in determining acceptability and relative merit of the bid, proposal or reply.

~~Exceptions~~ Exemptions to these bidding requirements ~~may be exempted as specifically~~ are provided herein. Approval levels still apply.

(b) Subject to written justification by the ordering department and the concurrence of the purchasing division, or city manager where applicable, the following are the only exemptions to the above competitive quotes and formal sealed competitive solicitations requirements:

a. Emergency purchases - The department director may make an emergency purchase up to $10,000.00 of commodities or services where there exists a clear and present threat to public health, property, welfare, safety or other substantial loss to the city.

Under emergency circumstances where the purchase of commodities or services in excess of $10,000.00 is necessary, the city manager may authorize the department director or purchasing division to secure by open market procedure any commodities or services, notwithstanding the estimated cost of the commodities or services.

Written justification describing the specific circumstance of the emergency, the commodities or services purchased, total cost, and vendor name shall be provided to purchasing division, the city manager, or city commission, as applicable, immediately, or as quickly as possible, after an emergency purchase is made.

An emergency purchase exception is not warranted for failure to plan or for situations deemed urgent when a threat to public health, property, welfare and safety does not exist.

b. Contracts for professional services.

c. Sole source purchases - Written documentation from the vendor certifying their sole source status is required.

d. Single source purchases - A written description of the distinctive characteristics that prohibit a competitive purchase must be provided and pre-approved by the purchasing division.

e. Utilization of other governmental agencies' contracts (Piggy-backing) -

Commodities or services that are the subject of contracts with the state its political subdivisions or other governmental entities including the United States government are exempted from competitive procurement provided the following conditions are satisfied:

(1) The contract expressly permits or the awarding jurisdiction and/or the vendor agree to allow the city to purchase therefrom; and,

(2) The commodities or services are the subject of a price schedule obtained through a competitive bid by another governmental agency and not on any preference; and,

(3) The price offered for the commodity or service exactly equals or is lower than the governmental contract from vendors awarded the governmental contract; and,

(4) The terms and conditions of the original contract or any extension options provided the other governmental agency are satisfactory to the City.

f. Contracts procured through cooperative purchasing.

g. Best interests of the city. Purchases of and contracts for commodities or services are exempt from this section when the city commission declares by a ~~simple majority~~ 4/5 supermajority affirmative vote that the process of competitive bidding and competitive proposals is not in the best interest of the city. ~~The city commission shall make specific factual findings that support its determination, and such contracts shall not be placed on the city commission consent agenda.~~

h. Federal or State funded procurements - ~~Specific rules and regulations mandated by Federal or State funding agencies supersede this chapter~~. Commodities available from the Federal government, the State of Florida, or Florida local governments.

i. The following contractual services are not subject to the competitive procurement requirement:

(1) Academic programs for Professional Development and reviews or services of lecturers, seminars by individuals; membership in professional, trade or similar associations, training for staff for continuing education, and performing artists;

(2) Travel expenses, hotel accommodations and hotel services for City business; subject to the Travel Code.

(3) Health services involving examination, diagnosis, treatment, prevention, medical consultation or administration; including medical, physician and veterinarian fees;

(4) Artistic services which are original and creative in character and skill in a

recognized field of artistic endeavor such as music, dance, drama, painting and sculpture, photography, culinary arts, fashion design and the like.

(5) Maintenance service of equipment. When considered to be in the best interest of the city and recommended by the using department and the services to be performed are by the equipment manufacturer, manufacturer's service representative or a distributor of the manufacturer's equipment, the services may be procured without following the competitive sealed bid process. This includes servicing or warranty work on equipment by an authorized dealer or representative when work by another party would void a warranty or guarantee.

(6) ~~Newspaper advertising for the purpose of required public notifications~~; Advertising in newspapers, periodicals, and related publications, television, radio, internet, or other signage assets, professional organizations, trade shows and other related media;

(7) Donations of goods/services to 501(C)(3)s, as approved by city commission;

(8) Sponsorships by the city.

(9) Utilities including but not limited to electric, water and communications, for which rates are subject to county, state or federal regulations;

(10) Copyrighted materials, except computer software;

(11) Food, clothing and other promotional items purchased for resale or distribution to the public or employees;

(12) Emergency food purchases for declared disaster;

(13) The purchase of items critical to the security of city facilities;

(14) The foregoing enumeration of services deemed to be exempt from the competitive procurement requirements is not intended to be an exhaustive or exclusive list. ~~The city manager or his or her designee may determine if a contractual service must be procured through the competitive procurement process if not expressly indicated herein.~~

(15) Renewal of software licenses and maintenance and licensing agreements to support continued, on-going use of proprietary software applications;

(16) Licenses;

(17) Shipping services, postage, overnight delivery, freight, storage charges, demurrage and courier services;

(18) Published books, manuals, maps, periodicals, films, technical pamphlets, and copyrighted educational aids for use in libraries and for other informational and instructional purposes in instances in which other applicable law does not provide a restrictive means for the acquisition of them;

(19) Real property and real estate transaction-related costs, including closing/processing fees, abstract of titles, and title insurance and services of professionals to assist in the identification, inspection, due diligence investigation and appraisal of properties for potential acquisition, and

maintenance of the properties after acquisition or such other services as may be necessary or desirable;

(20) Entertainment and entertainment/event related expenses for city sponsored events;

(21) Services provided by, or in partnership with, institutions of higher learning, not-for-profit organizations, state sponsored institutions, and other governmental and public agencies.

Award of contract.

(a)

(1) *City commission approval*. An initial purchase of, or contract for, commodities or services, ~~in excess of $25,000.00~~, where the expenditure by a single city department exceeds the aggregate sum of fifty thousand dollars ($50,000) or greater from the same person or entity during the course of a fiscal year shall require the approval of the City Commission, regardless of whether the competitive bidding or competitive proposal procedures were followed. However, emergency purchases as described in section 3-4(b)a., shall not require advance city commission approval. In such emergency situations that exceed ~~$25,000~~ $50,000, the city manager may approve the purchase or contract, subject to later ratification by the city commission. Emergency purchases are to be made only where there exists a clear and present threat to public health, property, welfare, safety or other substantial loss to the City.

(2) Acquisitions of, or contracts for, commodities or services from the same person or entity by multiple City departments exceeding the aggregate sum of seventy-five thousand dollars ($75,000) shall not be permitted from the same person or entity during the course of any fiscal year unless such purchases are first authorized by the City Commission. This provision shall not apply to purchases of utilities or to ongoing contracts.

(b) *City manager approval*. A purchase of, or contract for, commodities or services in an amount between
$10,000.00 and up to ~~$25,000~~ $50,000 shall require the approval of the city manager.

(c) *Department director approval*. A purchase of, or contract for, commodities or services in an amount up to
$10,000.00 shall require the approval of the department director.

Change orders.

(a) *Department director authority*. The department director is authorized to approve and initiate work on the following types of change orders determined in his or her judgment,

to be in the public interest:

(1) All change orders decreasing the cost of the contract to the city that do not materially alter the character of the work contemplated by the contract;

(2) A change order where the sum of all change orders plus the original contract does not exceed $10,000.00, including contingency;

(3) On a unit price contract, a change order consisting of unit quantity increases at the unit price bid, as long as the sum of all change orders plus the original contract does not exceed $10,000.00, including contingency;

(4) Budget funding must be available for change orders in all circumstances.

(b) *City manager authority*. The city manager is authorized to approve and initiate work on the following types of change orders determined in his or her judgment, to be in the public interest:

(1) All change orders decreasing the cost of the contract to the city that do not materially alter the character of the work contemplated by the contract;

(2) A change order where the sum of all change orders plus the original contract does not exceed ~~$25,000~~ $50,000, including contingency;

(3) On a unit price contract, a change order consisting of unit quantity increases at the unit price bid, as long as the sum of all change orders plus the original contract does not exceed $25,000.00, including contingency;

(4) Budget funding must be available for change orders in all circumstances.

(c) *City commission authority*. The city commission shall approve a contingency allowance as approval for a change order where the sum of all change orders issued under the contract results in a revised total contract amount in excess of ~~$25,000~~ $50,000. If the balance of the contingency allowance is insufficient to cover the costs of a change order, formal approval of a change order shall be obtained to initiate work.

(d) Work defined by the scope of a change order may not be commenced until final approval of the change order is obtained, except where such work is of an emergency nature as defined in section 3-48a - Emergency Purchases of this Code.

Sec. 3.18. Unsolicited proposals.

(a) *Purpose.* A public-private partnership is a contractual agreement between a local government and a private sector person or entity organized for the purpose of timely delivering services or facilities in a cost-effective manner that might not otherwise be possible using traditional sources of public procurement. Through this contractual agreement, the assets and professional skills of each sector (public and private) are shared and leveraged to deliver a service or facility to be used by the general public.

(b) *Definitions.* For purposes of this section, the words defined in F.S. § 255.065(1), (entitled "Definitions") including, without limitation, "qualifying project" and "private entity" shall have the same meaning in this section.

CODING: Words, symbols, and letters ~~stricken~~ are deletions; words, symbols, and letters underlined are additions. Words, symbols, and letters double underlined are additions after first reading; words, symbols, and letters ~~double stricken~~ are deletions after first reading.

(c) *Conditions for use.* The purchasing agent may receive unsolicited proposals for a qualifying project, subject to the conditions and procedures of this section. Any unsolicited proposal shall include sufficient detail and information for the city to evaluate the proposal in an objective and timely manner, and shall be accompanied by the application fee set forth in subsection (e).

(d) *Proposal contents.* Any unsolicited proposal shall include sufficient detail and information for the city to evaluate the proposal in an objective and timely manner and to determine if the proposal serves a public purpose and meets the criteria set forth in this section.

(1) The following material and information is required to be submitted:

a. A description of the project, including the conceptual design of the facility; or a conceptual plan for the provision of services, and a schedule for the initiation and completion of the qualifying project.
b. A description of the method by which the private entity proposes to secure the necessary property interests that are required for the qualifying project.
c. A description of the private entity's general plans for financing the qualifying project, including the sources of the private entity's funds and the identity of any dedicated revenue source or proposed debt or equity investment on behalf of the private entity.
d. The name and address of a person who may be contacted for additional information concerning the proposal.
e. The proposed user fees, lease payments or other service payments over the term of a comprehensive agreement, and the methodology for and circumstances that would allow changes to the user fees, lease payments and other service payments over time.
f. Any pricing or financial terms included in the unsolicited proposal must be specific as to when the pricing or terms expire.

(2) The following additional material and information must also be submitted in order for the city to review and evaluate the unsolicited proposal:

a. Description of the need for the project or facility and the public benefit to be served.
b. A site plan indicating the location of the project propose.
c. The proposed schedule for development of the project or the proposed term for operation of the project, along with an estimate of the life cycle cost of the proposed project.
d. A list of all public utilities, railroad lines, navigable waters and flight paths, if any, that will be crossed or affected by the proposed project and a statement of the plan to accommodate such crossings or effects.

e. Performance guarantees, if any, and any proposed bonding to be provided by the proposer, including ability to provide statutorily required public construction bonds or performance and payment bonds for construction of public facilities.

f. A listing of all proposed obligations and requirements of the city and any other governmental agencies, including, but not limited to, contributions to the project financing, development approvals and permitting.

g. Identification of whether the proposal involves turning over any operation, maintenance, or other responsibilities to the city, along with an estimate of costs.

h. Statement regarding ability to add capacity to the project if necessary.

i. Proposed safeguards to protect the city from additional costs or service disruption in the event of default or termination of contract.

j. The names of owners, directors, and officers of the proposer, and such information as may be necessary to evaluate the qualifications of the critical personnel to be engaged in the project.

k. Information on how the project would benefit small business enterprises and local contractors within the city.

l. A list of all engineering or construction firms to be proposed on the project and their qualifications and a description of their role in the proposal and project.

m. Signature of a responsible official or other representative authorized to obligate the proposer contractually.

(e) *Application fee.* The city shall charge fees to the private entity proposer to cover the costs of processing, reviewing and evaluating any unsolicited proposal, including a fee to cover the costs of staff time, and attorneys, engineers, consultants and financial advisors retained to evaluate the proposal, advertise, provide recommendations to the city, or negotiate a contract.

(1) All unsolicited proposals shall be accompanied by an initial application fee of $10,000 payable to the City of North Lauderdale in the form of a money order or cashier's check or other non-cancelable instrument. Personal checks will not be accepted. Proposals submitted without the application fee shall not be accepted.

(2) The city shall refund the application fee if the city determines that it will not evaluate the unsolicited proposal.

(3) If the initial application fee does not cover the city's costs to evaluate the unsolicited proposal, the city shall request in writing the additional amounts required. The private entity must pay the requested additional amounts within 30 days after receipt of the notice. The city may stop its review of the unsolicited proposal if the private entity fails to pay the additional amounts.

(f) Preliminary Review. Once the application and fee are submitted, the City will conduct a preliminary review to determine whether the project serves a public purpose and meets the statutory requirements for further consideration.

(g) *Public notice.* If the city determines that it is interested in further considering any unsolicited proposal, it shall publish a notice of receipt of same and invite competing bids during a competitive bidding period. The publication shall be accomplished in a manner that encourages competition to provide private entities interested in submitting alternative and perhaps competing proposals to provide a reasonable opportunity to submit a bid. The entity submitting the original unsolicited proposal may submit a more detailed proposal in response to the city's notice. A copy of the notice must be mailed to each local government in the affected area of the qualifying project, which shall include Broward County or any special district in which all or a portion of the qualifying project is located.

(h) *Receipt of proposals.* Sealed proposals in response to the public notice must be received by the purchasing and contract administration division no later than the time and date specified for submission in the publication. Sealed proposals shall be accompanied by the initial application fee.

(i) *Evaluation.* The selection of a proposer with whom to negotiate shall be in accordance with the evaluation committee procedures set forth within the City's Code of Ordinance.

(j) *Evaluation criteria.* When performing an evaluation of any proposal under this section, the following factors, along with all of the information required to be provided in the proposal, shall be considered, in addition to any others appropriate for the particular proposal:

(1) The proposal business terms, including the finance plans;

(2) Unique, innovative and meritorious methods, approaches, concepts, design techniques or cost reductions demonstrated by the proposal;

(3) Overall scientific, technical, or socioeconomic merits of the proposal;

(4) The proposer's capabilities, related experience, facilities, techniques or unique combinations of these;

(5) The professional qualifications, capabilities and experience of the proposer's team or key personnel critical to achieving the proposal objectives;

(6) The general reputation and financial condition of the proposer and its team members; the proposed finance plan; the financial viability and feasibility of the proposed project or facility; and the cost, if any, to the city to proceed with implementation of the proposal, including on-going operational or maintenance costs. The city may require the proposer to provide a technical study prepared by a nationally recognized expert with experience in preparing analysis for bond rating agencies;

(7) Any other information the city deems appropriate for evaluation of the proposed project or facility.

(k) *Rejection of proposals.* If an unsolicited proposal, or competing proposal received after public notice, is not deemed by the purchasing agent to be complete or in sufficient detail,

it may be rejected by the city manager. The city shall have no responsibility to itemize or advise the proposer of the incomplete items or terms of the proposal. The city shall refund any portion of the application fee paid which, in the determination of the purchasing agent, exceeds the direct costs associated with evaluating the proposal up to the time of rejection. The city, in its discretion, reserves the right to reject all proposals at any point in the process prior to the full execution of a comprehensive agreement with a proposer.

(l) *Commission consideration.* Upon completion of the evaluation for an unsolicited proposal for the qualifying project pursuant to this section and the city manager deems it to be in the best interests of the city to further evaluate the proposals or negotiate an agreement based on the proposal, the city manager shall obtain the city commission's approval to proceed with the evaluation and negotiation of a project based on the unsolicited proposal.

If the city commission votes to proceed with the evaluation of an unsolicited proposal involving architecture, engineering, or landscape architecture, the city must ensure a professional review and evaluation of the design and construction proposed by the initial or subsequent proposers to assure material quality standards, interior space utilization, budget estimates, design and construction schedules, and sustainable design and construction standards are consistent with public projects. Such review shall be performed by an architect, a landscape architect, or an engineer licensed by the State of Florida qualified to perform the review and such professional shall advise the city through completion of the design and construction of the project.

(m) *Comprehensive agreement.* The comprehensive agreement with the private entity shall contain at a minimum the terms and conditions set forth within F.S. § 255.065(7). The comprehensive agreement may authorize the private entity to impose fees to members of the public for the use of the facility in accordance with the provisions set forth within F.S. § 255.065(8).

(n) *Public records.* Pursuant to F.S. § 255.065(15):

(1) An unsolicited proposal received by a responsible public entity is exempt from F.S. § 119.07(1), and Section 24(a), Art. I of the State Constitution until such time as the responsible public entity provides notice of an intended decision for a qualifying project.

(2) If the city rejects all proposals submitted pursuant to a sealed competitive method for a qualifying project and the city concurrently provides notice of its intent to seek additional proposals for such project, the unsolicited proposal remains exempt until the city provides notice of an intended decision concerning the reissued sealed competitive method for the qualifying project or until the city withdraws the reissued sealed competitive method for such project.

(3) An unsolicited proposal is exempt for no longer than 90 days after the initial notice by the city rejecting all proposals.

(4) If the city does not issue a sealed competitive method for a qualifying project, the unsolicited proposal ceases to be exempt 180 days after receipt of the unsolicited proposal by the city.

(5) Any portion of a meeting of the City during which an unsolicited proposal that is exempt is discussed is exempt from F.S. § 286.011 and Section 24(b), Art. I of the State Constitution.

a. A complete recording must be made of any portion of an exempt meeting. No portion of the exempt meeting may be held off the record.

b. The recording of, and any records generated during, the exempt meeting are exempt from F.S. § 119.07(1) and Section 24(a), Art. I of the State Constitution until such time as the city provides notice of an intended decision for a qualifying project or 180 days after receipt of the unsolicited proposal by the city if the city does not issue a sealed competitive method for the project.

c. If the city rejects all proposals and concurrently provides notice of its intent to reissue a sealed competitive method, the recording and any records generated at the exempt meeting remain exempt from F.S. § 119.07(1) and Section 24(a), Art. I of the State Constitution until such time as the responsible public entity provides notice of an intended decision concerning the reissued sealed competitive method or until the responsible public entity withdraws the reissued sealed competitive method for such project.

d. A recording and any records generated during an exempt meeting are exempt for no longer than 90 days after the initial notice by the city rejecting all proposals.

Section 3. All Ordinances or parts of Ordinances, Resolutions or parts of Resolutions in conflict herewith be, and the same are hereby repealed to the extent of such conflict.

Section 4. If any clause, section, or other part or application of this Ordinance shall be held by any court of competent jurisdiction to be unconstitutional or invalid, such unconstitutional or invalid part or application shall be considered as eliminated and so not affecting the validity or the remaining portions or applications remaining in full force and effect.

Section 5. It is the intention of the City Commission of the City of North Lauderdale that the provisions of this Ordinance shall become and be made a part of the Code of Ordinances

of the City of North Lauderdale, Florida, that Sections of this Ordinance may be renumbered, re-lettered, and the word Ordinance may be changed to "Chapter," "Section," "Article," or such other appropriate word or phrase the use of which shall accomplish the intentions herein expressed.

Section 6. This Ordinance shall become effective immediately upon passage on second reading.

PASSED BY THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE ON FIRST READING AT ITS REGULAR COMMISSION MEETING ON THE _____DAY OF _____ 2026.

PASSED AND ADOPTED BY THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE ON SECOND READING AT ITS REGULAR COMMISSION MEETING ON THE _____ DAY OF _____2026.

APPROVED AS TO LEGAL FORM:

_____
CITY ATTORNEY,
AUSTIN PAMIES NORRIS WEEKS POWELL, PLLC

_____
MAYOR, SAMSON BORGELIN

_____
VICE MAYOR MARIO BUSTAMANTE

ATTEST:

CODING: Words, symbols, and letters ~~stricken~~ are deletions; words, symbols, and letters underlined are additions. Words, symbols, and letters double underlined are additions after first reading; words, symbols, and letters ~~double stricken~~ are deletions after first reading.

SUSAN SLATTERY, CITY CLERK

Requested by Administration	**Voted**
Vice Mayor Mario Bustamante	_____
Commissioner Dr. Regina Martin	_____
Commissioner Luke Lewis	_____
Commissioner Darrell (Dee) Lewis Ricketts	_____
Mayor Samson Borgelin	_____

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CITY OF NORTH LAUDERDALE
COMMUNITY DEVELOPMENT DEPARTMENT

TO: **Mayor and City Commission**

FROM: **Michael Sargis, City Manager**

BY: **Tanya Davis-Hernandez, Community Development Director**
Larry Rivero, Grants Manager
Monica White, Housing Specialist

DATE: **May 12th, 2026**

SUBJECT: **52nd Year (2026-2027) Community Development Block Grant Application**

Tonight, we are requesting your approval to ratify the submittal of the Community Development Block Grant application to Broward County for Year 52 funding. The County has notified City Administration that North Lauderdale's share of CDBG funds for the 52nd year (Fiscal Year October 2026 to September 2027) is approximately $268,858**.**

Background

The non-entitlement cities within Broward County are designated a yearly allocation of Community Development Block Grant funds. As you know, the City of North Lauderdale has received funding through this process for several years. Recent uses of funding are listed below.

50th Year

- BSO publicly accessible ADA restroom - $73,555
- Rehab and Hardening Program - $200,000

51st Year

- Rehab and Hardening Program - $268,858

While the 50th Year and 51st Year projects are ready to move forward, HUD staffing has been impacted by the federal government layoffs and shutdowns, delaying Broward County's issuance of the City's notice to proceed.

The City has researched all feasible options and has consulted with Broward County, city residents City staff, and City Administration. Based upon the needs of the City and the existing funding it is recommended that we direct the 52nd Year's funding of approximately $268,858 to be focused on the following program:

1. **Residential Rehab, Hardening, and Fixed ADA Improvements Program –** This program will provide approximately $268,858 in funding to provide residential properties meeting CDBG and program guidelines with the identified rehab and hardening to address the areas below.
    - Health & Safety
    - Weatherization/Hardening
    - Fixed ADA Improvements

RECOMMENDATION:

The City Administration recommends Commission's consideration and approval of the attached resolution authorizing the City Manager or designee to take necessary steps to apply for CDBG funding as applicable and implement the approved programs when funding becomes available. Additionally, we request the flexibility to adjust the funding and/or amend the programs incorporated into the application depending on the final response from Broward County. New programs will not be added without being brought back to the City Commission for consideration and approval. However, modifications to the allocations and descriptions or deletion of projects may be necessary to meet eligibility requirements.

RESOLUTION NO. _____

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA AUTHORIZING AND DIRECTING THE CITY MANAGER OF THE CITY OF NORTH LAUDERDALE, FLORIDA, TO APPLY FOR AND TO FILE SUCH DOCUMENTS AS MAY BE REASONABLY REQUIRED FOR AVAILABLE 52nd YEAR (FISCAL YEAR OCTOBER 2026 – SEPTEMBER 2027) COMMUNITY DEVELOPMENT BLOCK GRANT FUNDS IN THE ESTIMATED AMOUNT OF $268,858 FOR THE RESIDENTIAL REHAB, HARDENING, AND FIXED ADA IMPROVEMENTS PROGRAM PROVIDING THAT THE CITY MANAGER SHALL BE AUTHORIZED TO EXECUTE GRANT AWARD AGREEMENTS AND TO TAKE ALL NECESSARY ACTIONS, INCLUDING, BUT NOT LIMITED TO EXTENSIONS OF TIME, LINE-ITEM BUDGET AMENDMENTS, AND PROGRAM MODIFICATIONS TO IMPLEMENT SAID PROGRAMS IF AND WHEN FUNDING IS APPROVED; PROVIDING FOR FINDINGS AND CONCLUSIONS WITH REGARD TO THE BENEFITS TO BE DERIVED BY PROCESSING AND OBTAINING SUCH GRANT FUNDS; AND, PROVIDING AN EFFECTIVE DATE.

WHEREAS, the city of North Lauderdale has received Community Development Block Grant funding from Broward County for over 40 years; and

WHEREAS, the City has been notified of the availability of funding for the 52nd year and its desirous to applying for said funds; and

WHEREAS, a need has been identified to operate these types of programs to rehab and harden residences within the city of North Lauderdale; and

WHEREAS, Administration has recommended that an application be submitted for the Residential Rehab, Hardening, and Fixed ADA Improvements Program; and

WHEREAS, Commission hereby approves the submittal of said application.

NOW THEREFORE, BE IT RESOLVED BY THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA THAT:

Section 1: The foregoing "**WHEREAS**" clauses are hereby ratified and confirmed as being true and correct and are hereby a part of this Resolution.

Section 2: The City Manager of the City of North Lauderdale, Florida is hereby authorized and directed to apply for and to file such documents as may be reasonably required for available 52nd Year Community Development Block Grant funds in an estimated amount of $268,858 and to take appropriate actions to execute grant award agreements and to take

necessary actions, including, but not limited to extensions of time, line-item budget amendments, and program modifications to implement approved programs with regard to the Residential Rehab, Hardening, and Fixed ADA Improvements Program

Section 3: The City Commission finds and determines that it is in the best interest of the citizens and residents of the City of North Lauderdale, Florida, to apply for said Community Development Block Grant for the funding of the City's program listed in Section 2.

Section 4: All resolutions or parts of resolutions in conflict herewith are hereby repealed to the extent of such conflict.

Section 5: If any clause, section, other part or application of this Resolution is held by any court of competent jurisdiction to be unconstitutional or invalid, in part or application, it shall not affect the validity of the remaining portions or applications of this Resolution.

Section 6: This Resolution shall take effect immediately upon its passage and adoption.

PASSED AND ADOPTED BY THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, ON THIS 12TH DAY OF MAY 2026.

APPROVED AS TO LEGAL FORM:

_____
CITY ATTORNEY
AUSTIN PAMIES WEEKS NORRIS POWELL

_____
MAYOR, SAMSON BORGELIN

_____
VICE-MAYOR, MARIO BUSTAMANTE

ATTEST:

_____
CITY CLERK, SUSAN SLATTERY

Requested by Administration	**Voted**
Vice Mayor Mario Bustamante	_____
Commissioner Dr. Regina Martin	_____
Commissioner Luke Lewis	_____
Commissioner Darrell (Dee) Lewis Ricketts	_____
Mayor Samson Borgelin	_____

CITY OF NORTH LAUDERDALE
PARKS AND RECREATION DEPARTMENT

TO: **Mayor and City Commission**

FROM: **Michael Sargis, City Manager**

BY: **Patrick Cann, Parks and Recreation Director**

DATE: **May 12, 2026**

SUBJECT: **Renovations to TOT Park and Award Piggyback Agreements to GameTime, for a new playground, CXT LB Foster for new precast restroom building and with Exofit/Playmore for a new outdoor fitness zone**

Tot Park is 1.65 acres mini park serving a small neighborhood located at 400 SW 83rd Avenue. The park currently features two basketball courts, and a playground. During last year's Budget Process, Commissioner Dr. Regina Martin requested consideration for upgrades to TOT Park as a result of requests from residents who use the park. The City Commission approved $500,000 in the current Fiscal Year, for renovations including a new playground, a new exercise station equipment and a new restroom facility.

The City Manager met with Dr. Commissioner Regina Martin at TOT Park and also conducted a tour of some other facilities to solicit her input with the project and then directed the Parks and Recreation staff to seek proposals for a new playground, a new precast restroom facility and a new outdoor fitness area.

It is anticipated that Tot Park will be closed for a period of time between 90 – 120 days once the new items are ready for delivery and installation. With approval tonight, the anticipated project is expected to take approximately 180 days from start to finish.

In order to keep the project within the allocated amount, the City Manager also directed the Public Works Department to demolish the outdated playground and remove one of the existing basketball courts to accommodate the new exercise area and restroom as well as some fencing.

This project includes piggyback agreements for the major 3 components of the project (1) restroom building, (2) playground and (3) outdoor fitness equipment and shade structure with a total cost of $332,465.83. All items outlined above will be installed with proper building codes to assure all current codes and requirements are met.

The piggyback purchases and associated agreement have been reviewed by the City's Procurement Division and has approved the method of purchase in accordance with procurement section 3-4(B)f and or 3-4(B)e of the City Code of Ordinances and are as follows:

1. CXT LB Foster Company will provide a precast restroom building at a cost of $108,190.98 thru a Sourcewell Contract 052725-CXT and is authorized per exemption 3-4(B)f contracts procured through cooperative contracts of the City Code. CXT.

2. GameTime will provide a new playground at a cost of $98,882.10 thru an Omnia Partners / U.S.

Communities Contract #2017001134 and is authorized per exemption 3-4(B)f contracts procured through cooperative contracts of the City Code.

3. Playmore will provide an outdoor fitness zone and shade structure at a cost of $125,392.75 thru a contract award with the School Board of Manatee County and is authorized per exemption 3-4(B)e utilization of other governmental agencies contracts of the City Code.

Staff is still working on quotes for the needed support items utilizing the unappropriated $167,534.17 and will bring back to the Commission a separate item for those costs, however the 3 items outlined in the memo all have a lead time of 90 to 150 days so we want to begin the procurement process today. Support items will include:

- Public Works complete utility hook-ups both with City staff and private contractor to provide water, sewer and electrical hook-up stubs for final installation of restroom.

- Public Works will also coordinate a soil density test, submit permitting, coordinate fencing and bring the existing parking into compliance with the building code for parking lots.

- Public Works will coordinate and oversee the installation of a concrete pad for the fitness zone and concrete walkways to ensure ADA accessibility and connectivity to all of the amenities.

RECOMMENDATION

City Administration recommends Commission consideration and approval authorizing the City Manager or designee to enter into agreements totaling $332,465.83 for renovations to TOT Park (1) $108,190.98 to CXT LB Foster Company for a precast restroom building utilizing Sourcewell Contract 052725-CXT; (2) GameTime for a new playground totaling $98,882.10 utilizing Omnia Partners / U.S. Communities Contract #2017001134; and (3) Playmore for an outdoor fitness zone and shade structure totaling $125,392.75 thru a contract award with the School Board of Manatee County in accordance with North Lauderdale Procurement Code 3-4(B) “e” and “f”.

RESOLUTION NO._____

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AUTHORIZING THE CITY MANAGER OR DESIGNEE TO ENTER INTO AGREEMENTS FOR THE RENOVTION OF TOT PARK TOTALING $332,465.83 FOR (1) $108,190.98 TO CXT LB FOSTER COMPANY FOR A PRECAST RESTROOM BUILDING UTILIZING SOURCEWELL CONTRACT 052725-CXT; (2) GAMETIME FOR A NEW PLAYGROUND TOTALING $98,882.10 UTILIZING OMNIA PARTNERS / U.S. COMMUNITIES CONTRACT #2017001134; AND (3) PLAYMORE FOR AN OUTDOOR FITNESS ZONE AND SHADE STRUCTURE TOTALING $125,392.75 THRU A CONTRACT AWARD WITH THE SCHOOL BOARD OF MANATEE COUNTY IN ACCORDANCE WITH NORTH LAUDERDALE PROCUREMENT CODE 3-4(B) "E" AND "F" PROVIDING FOR CONFLICT, PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the City of North Lauderdale's Parks and Recreation Department is tasked with maintaining and operating TOT Park a 1.65-acre facility dedicated to providing the public with outdoor recreational opportunities; and

WHEREAS, the City Commission has allocated $500,000 at the request of District C Commissioner Dr. Regina Martin, and where the City Manager met with Commissioner Dr. Martin on staffs plan and received her consent for the said renovations; and

WHEREAS, the Purchasing Division has reviewed 3 piggyback agreements totaling $332,465.83 as follows:

1. CXT LB Foster Company will provide a precast restroom building at a cost of $108,190.98 thru a Sourcewell Contract 052725-CXT and is authorized per exemption 3-4(B)f contracts procured through cooperative contracts of the City Code. CXT.

2. GameTime will provide a new playground at a cost of $98,882.10 thru an Omnia Partners / U.S. Communities Contract #2017001134 and is authorized per exemption 3-4(B)f contracts procured through cooperative contracts of the City Code.

3. Playmore will provide an outdoor fitness zone and shade structure at a cost of $125,392.75 thru a contract award with the School Board of Manatee County and is authorized per exemption 3-4(B)e utilization of other governmental agencies contracts of the City Code.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA THAT:

SECTION 1: The foregoing "whereas" clauses are hereby incorporated herein and made a specific part hereof.

SECTION 2: The City Commission authorizes the City Manager or designee to award contracts/purchase order for the 3 vendors outlined above in this resolution in a total amount of $332,465.83.

SECTION 3: Funding for this contract is allocated through the Parks and Recreation Capital account for Fiscal Year 2026.

SECTION 4. **Conflict**. All resolutions or parts of resolutions in conflict herewith are hereby repealed to the extent of such conflict.

SECTION 5. **Severability**. If any clause, section, other part or application of this Resolution is held by any court of competent jurisdiction to be unconstitutional or invalid, in part or application, it shall not affect the validity of the remaining portions or applications of this Resolution.

SECTION 6. **Effective Date**. This Resolution shall take effect immediately upon its adoption.

PASSED AND ADOPTED BY THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, THIS 12TH DAY OF MAY, 2026.

APPROVED AS TO LEGAL FORM:

_____
CITY ATTORNEY
AUSTIN PAMIES NORRIS-WEEKS POWELL

_____
MAYOR SAMSON BORGELIN

_____
VICE MAYOR MARIO BUSTAMANTE

ATTEST:

_____
SUSAN SLATTERY, CITY CLERK

Requested by Administration	**Voted**
Commissioner Darrell (Dee) Lewis Ricketts	_____
Commissioner Dr. Regina Martin	_____
Commissioner Luke Lewis	_____
Vice Mayor Mario Bustamante	_____
Mayor Samson Borgelin	_____

Quote #: JCHA103A4O-1

CXT®, Inc. an L.B. Foster Company

Mailing Address:
CXT Incorporated, an LBFoster Co.
606 N. Pines Road, Suite 202
Spokane Valley, WA 99206

Phone: (800) 696-5766
Fax: (509) 928-8220
Date: 04/03/2026

To: **City of North Lauderdale**
701 S.W. 71st Avenue
North Lauderdale, FL 33068
Attention: Dan Mariano
Phone: (954) 597-4734

Re: Price based off Sourcewell Contract 052725-CXT

Our quotation for the Ozark I Flush Building building is as follows:	Per Building
Ozark I single flush toilet building with standard simulated cedar shake (Mocha Caramel) roof and barnwood (Buckskin) wall texture, two tone color, two 16-guage galvanized steel doors and frames, stainless steel plumbing fixtures (1-lavatory, 1-urinal, 1-water closet- all with I/R actuators), **no hot water heater**, Saniflow hand dryer, sanitary napkin disposal, one 3-roll toilet paper holder, one exhaust fan, two GFI outlets, two floor drains, one s/s mirror, ADA grab bars, ADA signs, one hose bib in chase area, J-boxes and conduit in room and chase, Haws drinking fountain, motion controlled interior lights and photo cell controlled exterior lights. PE Stamped drawings and State Approvals included.	$108,180.98
	$108,180.98

FOB: Freight FOB: Destination. Price includes off-loading and setting the building on a customer prepared pad and utility stub in the North Lauderdale, FL area. Final connection of utilities included.

Terms: Net 30 days subject to corporate credit approval.

Shipment: Within 90 days ARO after receipt of an approved MI (Manufacturing Insurrections) and State approvals.
The entire sales cycle from PO to delivery is within 150 days

Notes: **Sales tax not included**. # of Units: ___

Important: Tractor trailer and crane must have access to site and literally set up next to the utility pad for off-loading of the building. If drop deck trailer cannot gain access to the site then additional site access requirement fees will be incurred. Road must allow standard 120' truck and trailer clear passage to site. It is the customer's responsibility to address any encumbrances to site access.

This quotation is subject to the conditions on the attached sheet and the terms hereof shall constitute the exclusive agreement of the parties and all conflicting or additional terms in Buyer's purchase order or any other such documents of Buyer shall have no force or effect.

Accepted this _____ day of _____ 20_____

By:_____ (Customer Name)

_____ (Signed)

CXT, Incorporated

By _____ Jeff Chambers

Jeff Chambers
JChambers@lbfoster.com

CONDITIONS OF **SALE**

1. Taxes: Prices exclude all Federal/State/Local taxes. Tax will be charged where applicable if customer is unable to provide proof of exemption.
2. Payment Terms

All orders are cash in advance. At CXT's discretion, credit may be given after approval of credit application. Payment to CXT by the purchaser of any approved credit amount is net 30 days after submission of invoice to purchaser. Interest at a rate equal to the lower of (i) the highest rate permitted by law; or (ii) 1.5% per month will be charged monthly on all unpaid invoices beginning the 35th day (includes 5 day grace period) from the date of the invoice. Under no circumstances can a retention be taken and purchaser shall pay the full invoiced amount without offset or reduction. These terms are available upon approval of credit. If CXT initiates legal proceeding to collect any unpaid amount or other dispute arising out of or relating to this Quote, purchaser shall be liable for all of CXT's costs, expenses and attorneys fees associated with such litigation, including the fees and costs of any appeal.

3. Quotation Term: This offer is subject to acceptance within 60 days from the date of this quotation. After that time, prices are subject to change without notice.
4. Drawings

Prices do not include any documentation other than standard drawings, packing lists, and invoices, unless otherwise stated in quote. Special documentation, reports, or submittals can be supplied at an additional cost. If additional engineering, engineering seals, state approvals, drawings, or insignias are required additional charges may incur.

5. Delivery

Delivery will be scheduled immediately upon receipt of written customer approval of all building submittals, building worksheet(s) and signed contract/purchase order. In the event delivery of the buildings ordered is/are not completed within 30 days of the agreed to schedule through no fault of CXT, an invoice for the full contract value (excluding shipping and installation costs) will be submitted for payment, the terms of which will be as per item 2 in our quotation. Delivery and installation charges will be invoiced at the time of delivery and installation. Should the delivery and installation costs increase due to changes in the delivery period, this increase in cost will be added to the price originally quoted, and will be subject to the contract payment terms. In the event that the delivery is delayed more than 90 days after the agreed to schedule and through no fault of CXT, then in addition to the remedies above, a storage fee of *1 1/2%* of contract price per month or part of any month will be charged.

6. Fuel Costs

Fuel costs for crane and freight have been quoted at fuel prices furnished at the time of quotation. If at the time of delivery and installation these costs have risen, CXT reserves the right to adjust the freight and crane costs to reflect the fuel costs furnished at the time of delivery.

7. Responsibilities of the Customer

A. Stake exact location building is to be set, including orientation.

B. Provide clear and level site, free of overhead and/or underground obstructions.

C. Provide site accessible to normal highway trucks and sufficient area for the crane to install and other equipment to perform the contract requirements.

D. Customer shall provide notice in writing of low bridges, roadway width or grade, unimproved roads or any other possible obstacles from State highway and/or main county road to site. CXT reserves the right to charge the customer for additional costs incurred for special equipment required to perform delivery and installation.

E. Customer is responsible for all permits required.

F. Completing and complying with Pre-Order Information Worksheet that is incorporated herein by this reference.

8. Access to Site

For Installation methods described below in paragraph 9 A & B, delivery will be made in normal highway trucks and trailers. If at the time of delivery conditions of access are hazardous or unsuitable for truck equipment for any reason, CXT shall be entitled to payment for extra costs to ensure a safe and quality installation to the chosen site or will agree to an alternative site with better access.

To safely offload the facility referred to within this quotation, CXT must have clear and unobstructed access next to the gravel pad or hole where the facility will be placed. CXT is not responsible for cracked or damaged roads, driveways, sidewalks or aprons that are in the path of the delivery trucks or cranes at the final offloading site. Should CXT be required to obtain a larger crane than quoted due to site amenities or hardscapes, CXT will charge the customer the difference between the crane originally quoted, and the one that was hired to successfully offload the facility safely and efficiently.

9. Installation

A. **Full Install.** If the customer opts to have full installation of their new building, CXT will provide a backhoe trailered into the site, and prepare the customer site at the marked hole/pad area. The crane will arrive and set up next to the hole/pad. Any requirements to lift the building over obstacles or not having the ability of the crane to be right next to the hole could incur additional charges. The size of the crane varies however most cranes require an area of 18'x18' for their outriggers. Truck(s) carrying the vaults and the building systematically pull up right next to the crane and are offloaded onto the site. Any requirements to lift the building over obstacles or not having the ability of the truck to be right next to the crane could incur additional charges. Installation crew then performs all necessary excavation, backfill, compaction, site grading, and connection of utilities (if applicable). Please note: additional time and any special equipment needed by the installation crew for unscheduled site work will be billed to the customer.

B. **Set-Only Install.** If the customer opts to prepare the hole, and do earthwork preparation for the site, the customer will move all excess dirt to allow access by the crane and semi-truck. The crane will arrive and set up next to the hole/pad. Any requirements to lift the building over obstacles or not having the ability of the crane to be right next to the hole could incur additional charges. The size of the crane varies however most cranes require an area of 18'x18' for their outriggers. Truck(s) carrying the vaults and the building systematically pull up right next to the crane and are offloaded onto the site. Any requirements to lift the building over obstacles or not having the ability of the truck to be right next to the crane could incur additional charges. Customer performs ail necessary excavation, backfill, compaction, site grading, connection of utilities (if applicable). If the pad for a flush building, or a customer prepared excavation/hole prep is not to CXT specifications, and results in extra costs the customer will be responsible for these extra costs.

C. **Ship-Only**. If customer opts to self-install their building CXT can provide a drawing of the recommended lifting/rigging arrangement plus the four special lifting plates for the buildings itself with a charge of $5,000.00 to purchase the lifting plates and hardware to lift the building and vaults. The CXT arrangements will help prevent damage to the building. CXT will not take responsibility for any damage/accidents to the building or workers during the use or non-use of our recommended lifting/rigging arrangements.

D. CXT shall be entitled to reimbursement from customer for any expenses that are the result of conditions encountered at the site which are (1) subsurface or otherwise concealed physical conditions which differ materially from those indicated by the customer or (2) unknown physical conditions of an unusual nature, which differ materially from those ordinarily found to exist and generally recognized as inherent in construction activities at the customer's location.

E. Should customer request additions or changes to the work, CXT shall be entitled to payment for additional or changed work. Any request for additions or changed work shall be in writing executed by Customer Field Representative by signing the additional work required section of the Building Acceptance Form, incorporated herein by this reference.

10. Transportation

Your building(s) will be transported from our plant to your installation site via semi-truck with trailer. The length and clearance vary with the style of trailer used to accommodate your building model(s) and must be taken into consideration when determining access to site. If you ordered a(n)....

Cascadian/Rocky Mountain - Requires 1 truck: When shipped in 2-pieces (standard) the building with vault is shipped on a flatbed trailer. The length of the tractor-trailer can be up to 75' long. Must have a 14' height clearance to access site.

Gunnison - Requires 1 truck: Shipped with its vault, this building is typically shipped on a step-deck trailer. The length of the tractor-trailer can be up to 75' long. Must have 14' height clearance to access site.

Tioga Special • Requires 2 trucks: 1 to transport the building and 1 to transport vaults. The building is typically shipped on a step-deck trailer and 2 vaults are typically transported on a flatbed trailer. The length of the tractor-trailer can be up to 75' long. Must have 14' height and 14' width clearance to access site.

Dbl Cascadian/Dbl Rocky Mountain • Requires 2 trucks: 1 to transport the building and 1 to transport the vaults. The building is typically shipped on a dbl-drop or low boy trailer (approximate ground clearance of 4 to 6") and the 2 vaults are typically transported on a flatbed trailer. The length of the tractor-trailer can range from 75' to 80'. Must have 14' height and 14' width clearance to access site.

Cortez/Ozark I/Teton/Pioneer - Requires 1 truck: Generally shipped on a step-deck trailer. The length of the tractor-trailer can be up to 75' long. Must have a 14' height and 14' width clearance to access site.

Large Flush, Sectional, or Custom Bldgs -
(Arapahoe/OzarkII/Cheyenne/Montrose/Taos/Rainier/PomonayNavajo/Malibu/Kodiak/FontanayDiablo/Denali)
Requires 2-4 trucks, depending on size of building. Each section will be shipped on an RGN trailer (approximate ground clearance of 4 to 6"). The length of the tractor-trailer can range from 80' to 115'. Must have 14' height and 14' width clearance to access site. The Denali model could ship on either an RGN trailer or a dbl-drop.

Schweltzer/Mendocino - Requires 1-2 trucks, depending on size of building. Generally shipped on a step-deck trailer. The length of the tractor-trailer can be up to 75' long. Must have 14' height and 14' width clearance to access site.

11 CXT Warranty

CXT warrants that all structures sold pursuant hereto will, when delivered, conform to specifications of the building listed on the quote. Structures shall be deemed accepted and meeting specifications unless notice identifying the nature of any non-conformity is provided to CXT in writing within one (1) year of delivery. It is specifically understood that CXT's obligation hereunder is for credit or repair only. CXT will repair structural defects against materials and workmanship for one (1) year from date of delivery provided CXT is first given the opportunity to inspect said structure. CXT warranties all components sold within all structures pursuant here to when delivered within structures. Components deemed accepted and meeting specifications shall be warranted for a period of one (1) year against defects in the materials and/or workmanship from said date of delivery. CXT is not responsible for components that are damaged due to misuse, acts of violence, negligence, acts of God, or accidents. Shipping, handling, installation or other incidental or consequential costs, unless otherwise agreed to in writing by CXT, are not included.

This warranty shall not apply to:

Any goods which have been repaired or altered without CXT's express written consent, in such a way as in the reasonable judgment of CXT, to adversely effect the stability or reliability thereof;

To any goods which have been subject to misuse, negligence, acts of God, or accidents;

To any goods which have not been installed to manufacturer's specifications and guidelines, improperly maintained, or used outside of the specifications for which such goods were designed.

12. Disclaimer of Other Warranties

THE WARRANTY SET FORTH ABOVE IS IN LIEU OF ALL OTHER WARRANTIES, EXPRESS OR IMPLIED. ALL OTHER WARRANTIES ARE HEREBY DISCLAIMED. CXT MAKES NO OTHER WARRANTY EXPRESS OR IMPLIED, INCLUDING WITHOUT LIMITATION, NO WARRANTY OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE OR USE.

13. Limitation of Remedies

In the event of any breach of any obligations hereunder; breach of any warranty regarding the goods, or any negligent act or omission of any party, the parties agree to submit all claims to binding arbitration. Any settlement reached shall include all reasonable costs including attorney fees. In no event shall CXT be subject to or liable for any incidental or consequential damages. Without limitation on the foregoing, in no event shall CXT be liable for damages in excess of the purchase price of the goods herein offered.

14. Acceptance

The foregoing terms will be deemed accepted in full by signature and return of one copy to CXT, subject to customer credit approval. A copy of any applicable form of payment security device (i.e. payment bonds) available to CXT shall be included with the signed copy of this agreement.

15. Timing of Billing to Buyer

Seller will invoice Buyer upon shipment from its supplier or facility, unless otherwise indicated on the face of this document.

16. Storage of Material For Buyer

If, at Buyer's request, goods covered by this document are held at Seller's facility or service provider for more than 21 days after they are available for shipment, Buyer shall accept Seller's invoice and pay said invoice based on payment terms set forth herein.

17. Material Reservation

Seller will only reserve material for 30 days with receipt of an executed purchase order, quote or order acknowledgement acceptable to Seller. After that time, material availability, price and shipment date may be adjusted, at Seller's option.

Playpalette: Summer Slice

2/10/26

Intellectual property of GameTime, a PlayCore Company. The site shown in rendering is an interpretation and may not reflect exact site conditions.

Tot Park ~ Option 1 Revision 1

North Lauderdale, FL

GameTime
A PLAYCORE Company
www.gametime.com

drp Dominica Recreation Products
www.playdrp.com

Playpalette Scrubber Slice

2/10/26

Intellectual property of GameTime, a PlayCore Company. The site shown in rendering is an interpretation and may not reflect exact site conditions.

Tot Park ~ Option 1 Revision 1

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Playpalette: Summer Slice

2/10/26

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Tot Park ~ Option 1 Revision 1

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Dominica Recreation Products
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Playpalette: Summer Slice

2/10/26

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Tot Park ~ Option 1 Revision 1

North Lauderdale, FL

Playpalette: Summer Slice

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North Lauderdale, FL

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www.gametime.com

drp Dominica Recreation Products
www.playdrp.com

NOT TO SCALE

CONCEPTUAL DRAWING ONLY

GameTime
A PLAYCORE Company

ISO 9001 ISO 14001

150 PlayCore Drive SE
Fort Payne, AL 35967
www.gametime.com

IMPORTANT: Soft resilient surfacing should be placed in the use zones of all equipment, as specified for each type of equipment, and at depths to meet the critical fall heights as specified by the U.S. consumer Product Safety Commission, ASTM standard F 1487 and Canadian Standard CAN/CSA-Z-614

Minimum Area Required: See Drawing

This play equipment is recommended for children ages 5-12

DRAWING NO: 2

DATE: 02/10/2026

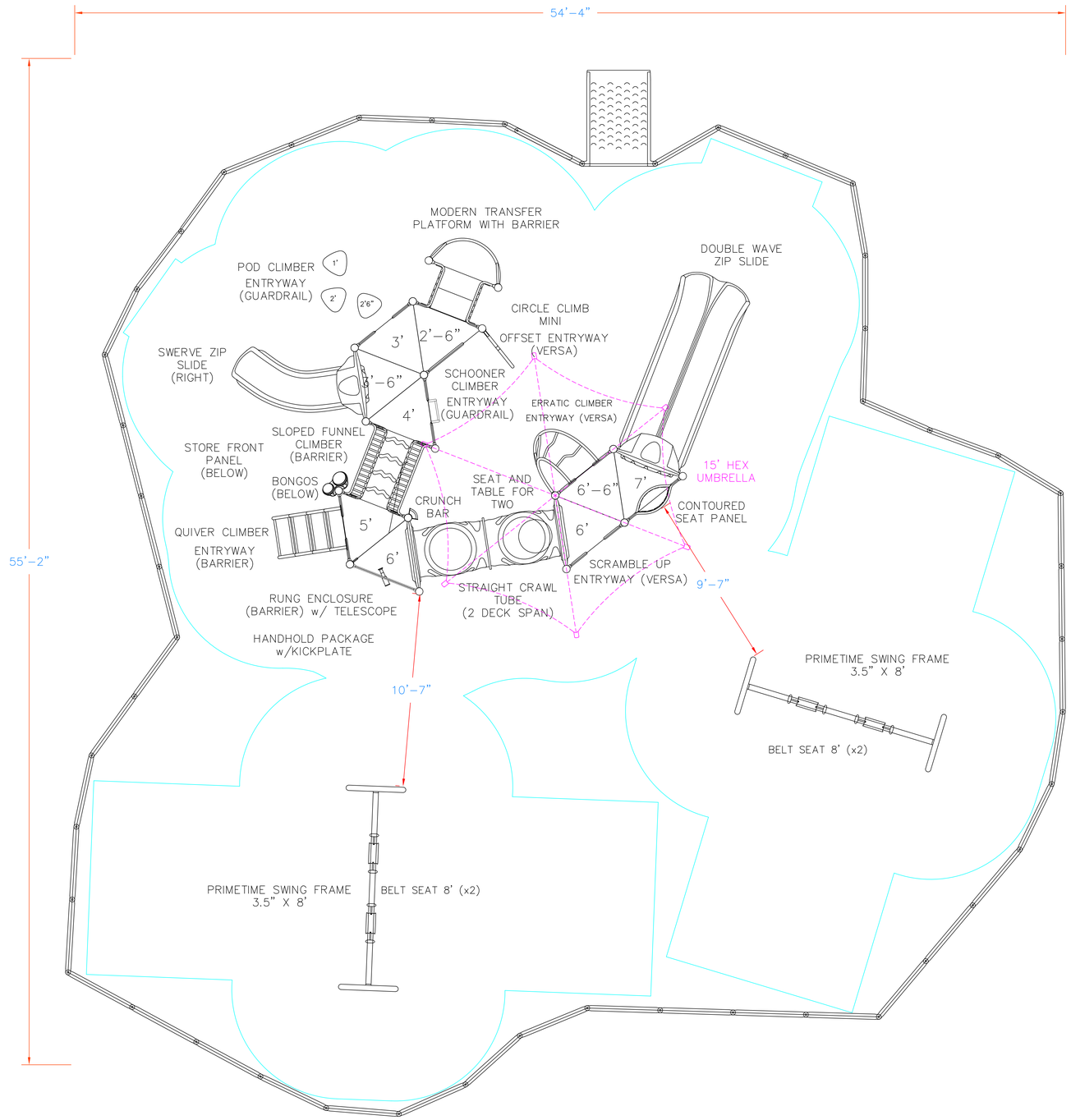
DRAWN BY: Veronica S.

PROJECT TITLE: Tot Park - Opt.1 - Rev.1
City of North Lauderdale
North Lauderdale, FL

REPRESENTATIVE: DRP

SHEET NO: 1

NOT TO SCALE
CONCEPTUAL DRAWING ONLY



GameTime®
A PLAYCORE Company

ISO 9001 ISO 14001

150 PlayCore Drive SE
Fort Payne, AL 35967
www.gametime.com

IMPORTANT: Soft resilient surfacing should be placed in the use zones of all equipment, as specified for each type of equipment, and at depths to meet the critical fall heights as specified by the U.S. consumer Product Safety Commission, ASTM standard F 1487 and Canadian Standard CAN/CSA-Z-614

Minimum Area Required: See Drawing

DATE: 02/10/2026

This play equipment is recommended for children ages 5-12

DRAWING NO: 2

DRAWN BY: Veronica S.

PROJECT TITLE: Tot Park - Opt.1 - Rev.1
City of North Lauderdale
North Lauderdale, FL

REPRESENTATIVE: DRP

SHEET NO: 1

GameTime
c/o Dominica Recreation Products, Inc.
P.O. Box 520700
Longwood, FL 32752-0700
800-432-0162 * 407-331-0101
Fax: 407-331-4720
www.playdrp.com

02/10/2026
Quote #
107764-01-05

Tot Park - Option 1 - Rev.1

City of North Lauderdale
Attn: Dan Mariano
457 S.W. 83 Ave.
North Lauderdale, FL 33068
United States
Phone: 954-597-4734
dmariano@nlauderdale.org

Ship to Zip 33068

Quantity	Part #	Description	Unit Price	Amount

		~~
		• ***Customer responsible for:***
		  ◦ *Providing access to site*
		  ◦ *Providing site plan*
		  ◦ *Removing 2 palm trees near fence*
		  ◦ *Removing existing EWF surfacing*
		  ◦ *Cutting any tree roots prior to installation*		

1	INSTALL	5-Star Plus - Removal and Disposal of Existing Playground Equipment and Concrete Slab	$3,300.00	$3,300.00
1	Utility	5-Star Plus - Utility Locate	$1,400.00	$1,400.00
1	178749	GameTime - Owner's Kit	$98.07	$98.07
1	RDU	GameTime - 5-12 PowerScape System	$75,528.00	$75,528.00
1	Replace	DRP Promo - DRP Replacement Playground Promotion- **Discount offer valid until June 30, 2026** *See terms and conditions at www.playdrp.com/replace*	($37,764.00)	($37,764.00)
1	RDU	GameTime - Single-Bay PrimeTime Swing Set - A	$2,624.00	$2,624.00
1	RDU	GameTime - Single-Bay PrimeTime Swing Set - B	$2,624.00	$2,624.00
47	4850	GameTime - 8" Playcurb Pkg	$93.66	$4,402.02
1	4854	GameTime - Accessible Playcurb	$636.00	$636.00
1	INSTALL	5-Star Plus - Five Star Plus Playground Installation Services- *Performed by a Certified Installer, includes meeting and unloading delivery truck, signed completion forms, site walkthrough, and 3-Year Labor Warranty!*	$28,820.00	$28,820.00
80	EWF-8	GT-Impax - Engineered Wood Fiber - 8" Compacted Depth- *per cubic yard - ADA Compliant - IPEMA Certified - ASTM F1292 & F1951 Compliant* *Approx.~ 2275 SF*	$59.70	$4,776.00
1	INSTALL	GT-Impax - Spreading of Wood Fiber- *Wood Fiber will be delivered by large truck and dumped in staging area. Installer will use bob-cat or similar to move wood fiber into site, one load at time. Installer not responsible for sod or sidewalks from staging area to job site.*	$1,600.00	$1,600.00
1	Permits	5-Star Plus - Building Permits- *Estimated Costs of Permits plus Time. If actual permit fees are significantly higher or lower, final invoice will be adjusted accordingly. If additional time spent acquiring permits, due to lack of information from owner, final invoice to be adjusted.* ***Survey & Siteplan are to be provided by the owner for the permit application. Correct legal address will be required.***	$1,500.00	$1,500.00
1	Sealed	5-Star Plus - Signed/Sealed FBC 2023 8th Edition Building Code Drawings	$1,350.00	$1,350.00
			Sub Total	$90,894.09
			Discount	($2,505.97)
			Freight	$10,493.98

GameTime
c/o Dominica Recreation Products, Inc.
P.O. Box 520700
Longwood, FL 32752-0700
800-432-0162 * 407-331-0101
Fax: 407-331-4720
www.playdrp.com

02/10/2026
Quote #
107764-01-05

Tot Park - Option 1 - Rev.1

Quantity	Part #	Description	Unit Price	Amount
			Total	$98,882.10

Prepared by: Veronica Salles | Project Manager
800-432-0162 ext. 100 veronica.salles@gametime.com

All pricing in accordance with Omnia Partners / U.S. Communities Contract #2017001134.
All terms in the Omnia Partners / U.S. Communities Contract take precedence over terms shown below.
For more information on the Omnia Partners / U.S. Communities contract please visit Omnia Partners Public Sector GameTime

Signed/Sealed Drawings may be included when expressly stated on proposal.
Permits and permitting services may be included when expressly stated on the proposal. Unless specifically noted, permit fees, third-party reviews, inspections, bonds, and jurisdictional requirements are not included. The owner is responsible for providing **current and accurate site plans, surveys, and required property information** as needed by the permitting authority. **The permit process cannot begin until all required information is received from the owner.** Permitting timelines vary by jurisdiction and are **outside of our control**. Delays related to permitting, reviews, or approvals are not considered manufacturing or installation delays. Additional requirements arising during the permitting process, including but not limited to engineering revisions, soil testing, or jurisdictional comments, shall be treated as a **change in scope**.

Orders from **governmental agencies, school districts, municipalities, and other public entities** may be accepted with a purchase order, signed quotation, or written authorization. Payment terms are Net 30 unless otherwise stated. Deposit requirements may apply for **custom or made-to-order products**, including Landmark Designs items.
When installation is included as a **turn-key project**, payment for installation-related work is due **upon completion and acceptance of the work**, unless otherwise stated. For larger or extended projects, **progress invoices may be issued** based on work completed or materials delivered to the site. GameTime reserves the right to invoice for **materials manufactured, shipped, or received on site**.

Installation Terms: Installation, when included, is performed by an **independent, certified installer** and is based on **standard installation conditions**. Installation assumes suitable soil, normal excavation conditions, proper sub-base, and unrestricted site access.The following are **excluded unless expressly stated**: drainage design or correction; soil remediation or import/export; rock, roots, debris, or concealed conditions; dewatering; erosion control; sod replacement; landscaping; irrigation repair; and site restoration.If unsuitable soil, drainage issues, high water table, or concealed conditions are encountered, **additional costs may apply**. The owner is responsible for site readiness, utility marking, site access, and protection of the work area before, during, and after installation.

Billing Information

(bill to): _____

(address): _____

_____

(contact): _____

(phone): _____

(email): _____

Shipping Information

(ship to): _____

(address): _____

_____

(contact): _____

(phone): _____

(email): _____

Sales Tax Exemption Certificate Number # : _____ Please provide a verifiable certificate

Proposal

#EST3232

Bill To

Ship To
Highland Park
7701 Forest Blvd
North Fort Lauderdale FL 33068

Proposal Date	Project Manager
4/3/2026	Daniel Flesher

Title: ExoFit Opt 2
Memo:

Project Name	Project ID	Terms
City of North Lauderdale : Tot Park	24462	Net 30

Quantity	Description	Unit Price	Total Extended
1	**ExoFit** Fitness Bike	$2,775.00	$2,775.00
1	**ExoFit** Air Walker (3-1 to 3-3)	$3,190.00	$3,190.00
1	**ExoFit ECT** Elliptical	$3,190.00	$3,190.00
1	**ExoFit SLP** 2-Person Leg Press	$3,805.00	$3,805.00
1	**ExoFit SCP** Chest Press	$3,190.00	$3,190.00
1	**ExoFit PUDS** Push-up/Dip Station (3-1 to 3-3)	$2,750.00	$2,750.00
1	**ExoFit** Sit-Up Bench	$2,750.00	$2,750.00
1	**ExoFit** Standard Sign-GL	$2,150.00	$2,150.00
11	**ExoFit** Embedded Anchor- Large	$190.00	$2,090.00
	Subtotal Subtotal		$25,890.00
	School District of Manatee County Contract 26-0041-MR Discount	-5%	($1,294.50)
1	**Freight** ExoFit	$3,910.00	$3,910.00
1	**Athletic Equipment Installation** Priced per Manatee Contract 26-0041-MR	$9,766.00	$9,766.00
1	**Miscellaneous Service** Core Drill	$1,500.00	$1,500.00
1	**Shade** Oversize HIP RBP 43' x 27' x 10' Entry	$28,557.00	$28,557.00
1	**Freight** Shade	$7,562.50	$7,562.50
1	**Shade Installation**	$36,553.00	$36,553.00
1	**Dumpster for General Trash**	$2,156.25	$2,156.25
1	**Receive and Unload Deliveries**	$1,725.00	$1,725.00

Proposal

#EST3232

2	**Engineered Drawings**	$2,126.25	$4,252.50
1	**Building Permit** Processing and Fees	$4,815.00	$4,815.00

THIS PROPOSAL IS SUBJECT TO THE ATTACHED TERMS AND CONDITIONS	**Subtotal**	$125,392.75
	Tax	$0.00
	Total	$125,392.75

Accepted By

Printed Name: _____ Signature: _____ Date: _____

PLEASE SIGN AND RETURN ONE COPY WHEN ORDERING. PO/Reference #:_____ ***THANK YOU!***

Standard Terms and Conditions

General Terms:

Acceptance by a signature, purchase order, or contract based on this proposal indicates that you are in full agreement with all terms and conditions of this proposal, including the following:

- Prices are valid for 30 days, unless otherwise noted. After 30 days, prices are subject to change without notice.
- Sales Tax will be charged unless a valid Sales Tax Exemption Certificate is presented with order.
- Specify all colors and options in writing. Any discrepancies that arise due to oral selections will be the responsibility of the customer.
- If the customer is installing equipment, all equipment is to be installed according to the manufacturer's instructions and applicable guidelines.
- Installation, site work, permits, engineering, etc. are not included unless noted.

Warranties. All equipment, surfacing, and installation is warranted by Playmore for a period of one year from substantial completion date. After one year, any additional manufacturer's warranties will remain in effect. Manufacturer's warranty claims to be processed by manufacturer. Playmore assumes no responsibility for these additional warranties.

Playground Surfacing. All playground equipment is to be installed over safety surfacing per CPSC guidelines and ASTM standards. If the customer installs something contrary to the guidelines, they accept all responsibility for any liability and future litigation that may arise.

Installation Standard Services Include (as required):

- Shipping Notification/Receiving Instructions
- Pre-Installation On-Site Meeting
- Public Utility Check (Sunshine State One Call)
- Moving New Equipment at Job Site
- Layout of Equipment
- Installation of Equipment per Manufacturer's Instructions
- Trash Clean Up (Leave on-site)
- Post-Installation Walk Through

Installation Customer Responsibilities (unless otherwise noted in proposal):

- Site Plans and Surveys
- Trash Disposal or Dumpsters
- Provide Area for Storage and Staging
- Site Security
- Private Utility Locates
- Removal of Existing Equipment
- Site Prep, Grading, Drainage Systems, etc.
- Accept Deliveries and Unload Equipment

Building Permits:

Building permits are the responsibility of the owner. If a building permit is required for your project, 5% will be added to the total price if not already included in the proposal.

NOTE – All zoning, planning, health, environmental, architectural, etc. permits, reviews, and approvals are the responsibility of others as well as any required site plans or other supporting documents. If signed and sealed engineered drawings are needed, additional charges will apply if not included in the proposal.

Theft/Vandalism. The customer is responsible for securing the site and equipment and accepts all responsibility for theft and vandalism. Any additional equipment and labor required to replace such equipment is the responsibility of the customer.

Access/Utilities. Access must be provided to the installation area for heavy trucks and equipment. Access of equipment and personnel is the obligation of the customer to provide until the project is fully completed. We will take every precaution to avoid damage, however any damage caused by the normal installation of our product, such as to sod, concrete sidewalks, private underground utilities, etc., will be the responsibility of the customer, as will any additional costs associated with limiting damage, such as providing plywood over sod for access unless included in proposal. If access is not reasonably close to the jobsite, any additional costs incurred due to having to transport materials and/or supplies will be the responsibility of the customer if not included in the proposal.

Rock/Foreign Object Clause. Most installations require digging of holes and footing equipment in concrete below finished grade. Removal of existing ground covers such as asphalt, concrete, tan bark, sand, pea gravel, wood fiber, rubber matting, poured-in-place rubber surfacing, or any other material that interferes or delays the digging of holes, is the responsibility of others, unless otherwise noted. If excessive underground obstructions such as rocks, coral, asphalt, concrete, pipes, drainage systems, root systems, water, or any other unknown obstructions are discovered, charges will be added to the original proposal.

Any other responsibilities must be clearly outlined in the proposal.

PlayMoreWorryLess™ Playground Warranty and Inspection Program

Playground Installation Warranty

In addition to all applicable manufacturer product warranties, Playmore warrants its installation services for a period of one (1) year from the date of project completion.

During this warranty period, Playmore will, at no cost to the Owner, provide all labor necessary to correct defects resulting from improper installation workmanship.

This warranty does not cover conditions resulting from normal wear and tear, misuse, vandalism, acts of nature, or failure to perform routine maintenance.

Complimentary Playground Inspection Service

For the service life of installed playground equipment, Playmore offers one (1) complimentary annual playground inspection, to be conducted in coordination with an Owner representative.

- Inspections will be performed by a Certified Playground Safety Inspector (CPSI).
- The inspection consists of a visual assessment of the play area to identify potential safety, maintenance, or warranty-related concerns.
- Inspection findings and recommendations are advisory and do not replace the Owner's responsibility for routine maintenance and repairs.

To schedule the annual inspection, please contact Customer Service at (888) 886-3757.

CITY OF NORTH LAUDERDALE
FIRE RESCUE DEPARTMENT

TO: **Mayor and City Commission**

FROM: **Michael Sargis, City Manager**

BY: **Dave Sweet, Fire Chief**

DATE: **May 12th, 2026**

SUBJECT: **Purchase and Install Security Gate and Perimeter Fencing around Fire Station 44**

Fire Station 44, located at 7700 Hampton Blvd, is a critical emergency response hub for the city's northwest area. It currently lacks adequate perimeter security to control access, exposing personnel, apparatus, and infrastructure to risks from unauthorized entry, vandalism, tampering, or theft.

Staff requests approval to install perimeter fencing and a rapid-opening security access gate designed for emergency response, integrated with the Galaxy access control intercom system.

The fencing and rapid-opening gate system will establish a secure boundary and ensure immediate apparatus exit without delay by opening in under 5 seconds (versus 10–20 seconds for standard gates). This will be achieved via automated sliding mechanisms with high-speed motors, sensors, keycard/remote access, emergency overrides, and alarm integration, while complying with NFPA national response standards to maintain uninterrupted response times.

The Galaxy access control system will securely manage gate entry: authorized users can open the gate quickly using card readers/credentials; emergency vehicles can exit automatically and instantly; and visitors will use a call button/intercom for staff to remotely verify and grant access.

Funding for this project will be split between the 2026 Fire Rescue budget and the 2026 IT Department budget. The cost breakdown is as follows:

- $60,875.68 for fencing and gate purchase and installation (Fire Rescue 2026 Capital Improvement budget)
- $12,423.89 for the Galaxy access/intercom system purchase and installation (IT Department 2026 budget)

The base project cost totals $73,299.57.

A contingency fee $7,329.96 is included to account for unforeseen conditions that may arise during installation, such as site conditions, material cost fluctuations, minor design adjustments, or integration requirements between systems. This contingency ensures the project can be completed without delays or the need for additional approvals for minor cost overruns.

The total project cost including contingency is not to exceed $80,629.53 of which is available in the Fire/Rescue 25-26 Budget.

The fencing and gate installation contractor will be Coast to Coast Garage Door, LLC, via City of Deerfield Beach Bid No. 22-30-RC (permitted under North Lauderdale's procurement code and exemption 3-4(B)e for piggybacking governmental contracts). The Galaxy access control system will be installed by city-registered vendor Ideal Tech Solutions, LLC. permitted under procurement code 3-4(B)d single source

RECOMMENDATION

City Administration recommends City Commission consideration and approval of the attached resolution authorizing the City Manager to issue Purchase Orders totaling $80,629.53 for the following components related to the Security Fence/Gate at Fire Station 44; (1) Purchase order to Coast to Coast Garage Door, LLC in an amount not to exceed $60,875.68 utilizing pricing available through City of Deerfield Beach Bid No. 22-30-RC for installation of perimeter fencing and a rapid-opening security gate at Fire Station 44; and (2) Purchase order to Ideal Tech Solutions, LLC for the purchase and installation of the Galaxy access/intercom system in an amount not to exceed $12,423.89; as well as a contingency for all components in the amount of $7,329.96 to cover unforeseen conditions.

RESOLUTION NO. _____

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA AUTHORIZING THE CITY MANAGER TO ISSUE PURCHASE ORDERS FOR THE INSTALLATION OF PERIMETER FENCING, A RAPID-OPENING SECURITY GATE, AND A GALAXY ACCESS CONTROL/INTERCOM SYSTEM AT FIRE STATION 44; PROVIDING FOR A PROJECT CONTINGENCY; AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, Fire Station 44, located at 7700 Hampton Boulevard, serves as a critical emergency response hub for the northwest area of the City of North Lauderdale; and

WHEREAS, the facility currently lacks adequate perimeter security to control access, thereby exposing personnel, apparatus, and infrastructure to risks associated with unauthorized entry, vandalism, tampering, or theft; and

WHEREAS, City staff has identified the need to install perimeter fencing and a rapid-opening security access gate integrated with a Galaxy access control intercom system to enhance site security while maintaining emergency response efficiency; and

WHEREAS, the proposed rapid-opening gate system is designed to open in under five (5) seconds, ensuring compliance with National Fire Protection Association ("NFPA") standards and maintaining uninterrupted emergency response times; and

WHEREAS, the Galaxy access control system will allow authorized users to access the site via credentials, enable automatic emergency vehicle egress, and provide visitor access through an intercom system for remote verification; and

WHEREAS, the cost for the fencing and gate installation is $60,875.68, and will be funded through the Fire Rescue Department's Fiscal Year 2026 Capital Improvement budget; and

WHEREAS, the cost for the Galaxy access control/intercom system is $12,423.89, and will be funded through the Information Technology Department's Fiscal Year 2026 budget; and

WHEREAS, the total base project cost is $73,299.57; and

WHEREAS, a ten percent (10%) contingency in the amount of $7,329.96 is recommended to account for unforeseen conditions, including but not limited to site conditions, material cost fluctuations, and minor design or integration adjustments; and

WHEREAS, the total project cost, inclusive of contingency, shall not exceed $80,629.53; and

WHEREAS, Coast to Coast Garage Door, LLC, has been selected for the fencing and gate installation through the City of Deerfield Beach Bid No. 22-30-RC, in accordance with the City of North Lauderdale's procurement code and piggybacking provisions under exemption Section 3-4(B)e; and

WHEREAS, Ideal Tech Solutions, LLC, is a City registered vendor and will provide and install the Galaxy access control/intercom system; and

WHEREAS, City Administration recommends approval of this project to enhance security and operational efficiency at Fire Station 44.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA:

SECTION 1. The foregoing "**WHEREAS**" clauses are hereby ratified and confirmed as being true and correct and are hereby made a part of this Resolution.

SECTION 2. The City Commission hereby authorizes the City Manager to issue a purchase order to Coast to Coast Garage Door, LLC, in an amount not to exceed $60,875.68, utilizing pricing

available through City of Deerfield Beach Bid No. 22-30-RC, for the installation of perimeter fencing and a rapid-opening security gate at Fire Station 44.

SECTION 3. The City Commission hereby authorizes the City Manager to issue a purchase order to Ideal Tech Solutions, LLC, in an amount not to exceed $12,423.89, for the purchase and installation of the Galaxy access control/intercom system.

SECTION 4. The City Commission hereby approves a project contingency in the amount of $7,329.96, representing ten percent (10%) of the base project cost, to address unforeseen conditions as necessary.

SECTION 5. The total project cost, inclusive of contingency, shall not exceed $80,629.53.

SECTION 6. This Resolution shall become effective immediately upon its adoption.

PASSED AND ADOPTED BY THE CITY COMMISSION OF THE CITY OF THE CITY OF NORTH LAUDERDALE, FLORIDA. ON THIS 12TH DAY OF MAY 2026.

APPROVED AS TO FORM:

_____
CITY ATTORNEY,
AUSTIN PAMIES NORRIS WEEKS POWELL, PLLC

_____
MAYOR, SAMSON BORGELIN

_____
VICE MAYOR, MARIO BUSTAMANTE

ATTEST:

_____

CITY CLERK SUSAN SLATTERY

Requested by Administration	**Voted Yes**	**Voted No**
Commissioner Darrell (Dee) Lewis Ricketts	_____	_____
Commissioner Dr. Regina Martin	_____	_____
Commissioner Luke Lewis	_____	_____
Vice Mayor Mario Bustamante	_____	_____
Mayor Samson Borgelin	_____	_____

Coast To Coast Garage Door LLC
P.O. Box 590929
Tamarac, FL 33359

Estimate

Date	Estimate #
4/22/2026	9894

Billing Address	Job location
City Of North Lauderdale 701 S.W 71 Ave North Lauderdale, FL 33068	Fire Station 44 7700 Hampton Blvd North Lauderdale, FL 33068 US

Customer W.O.#	Terms	P.O. No.
	Net 30	

Item	Description	Qty	Rate	Contract #	Total
Scope of work	Scope of work Aluminum Fence and Cantilever Gate Installation Fence: Furnish and install approximately 64 linear feet of 6-foot-tall aluminum two-rail fence system. Fence panels to be fabricated out of aluminum with vertical pickets and horizontal rails. Install all necessary line posts, end posts, and concrete footings as required for proper support. Gate: Furnish and install one aluminum cantilever slide gate for a 22-foot clear opening. Gate to match the fence style and height. Gate frame to be constructed of heavy-duty aluminum with internal bracing for structural support. Install required cantilever rollers, roller posts, gate guides, end stops, and all necessary hardware for proper operation. Set roller posts in concrete footings. Upon completion, adjust and test gate for smooth and proper operation. Clean work area and remove all installation debris.		0.00		0.00

Estimate is valid for 30 days

Total

Print _____

Signature

E-mail	Web Site	Phone #	Fax #
SERVICE@C2CGARAGEDOORS.COM	COAST2COASTGARAGEDOOR.COM	954-653-1600	954-840-9257

Lic # BWD 13-GD-18700-X, 15-F-19807-X :PB U-22055 :MD 17BS00060 :MC GD6891

Coast To Coast Garage Door LLC

P.O. Box 590929
Tamarac, FL 33359

Estimate

Date	Estimate #
4/22/2026	9894

Billing Address	Job location
City Of North Lauderdale 701 S.W 71 Ave North Lauderdale, FL 33068	Fire Station 44 7700 Hampton Blvd North Lauderdale, FL 33068 US

Customer W.O.#	Terms	P.O. No.
	Net 30	

Item	Description	Qty	Rate	Contract #	Total
03 Fence	Manufacture approximately 64' of aluminum fence panel (2 rail -6' tall) Manufacture 1 cantilever slide gate approximately 36' x 6' Standard picket spacing . Includes 2 post (4 x 4 x 10' steel) Includes 2 trolly's and 2 guide roller brackets . Include 1 set of receiving brackets. Include 2 Bottom rollers for back side of gate when in the open position (12" rollers on a 3" post)	1	20,614.08		20,614.08
Fence Install	Fence and Gate Install Labor	1	7,500.00		7,500.00

Estimate is valid for 30 days

Total

Print _____

Signature

E-mail	Web Site	Phone #	Fax #
SERVICE@C2CGARAGEDOORS.COM	COAST2COASTGARAGEDOOR.COM	954-653-1600	954-840-9257

Lic # BWD 13-GD-18700-X, 15-F-19807-X :PB U-22055 :MD 17BS00060 :MC GD6891

Coast To Coast Garage Door LLC

P.O. Box 590929
Tamarac, FL 33359

Estimate

Date	Estimate #
4/22/2026	9894

Billing Address	Job location
City Of North Lauderdale 701 S.W 71 Ave North Lauderdale, FL 33068	Fire Station 44 7700 Hampton Blvd North Lauderdale, FL 33068 US

Customer W.O.#	Terms	P.O. No.
	Net 30	

Item	Description	Qty	Rate	Contract #	Total
Furnish Material ...	Gate Operator Scope One HySecurity slide driver II SD50F operators with drive rails. Operator to include: - Photo eye safety sensors (active during closing cycle) - Safety edge installed on the trailing edge of the gate (active during opening cycle) - Operating speed up to 3 feet per second - Gate equipped with one (2) virtual loop detector - One standalone keypad.	1	22,701.60		22,701.60
Labor	Install one HySecurity slide driver II SD50F operators with drive rails.	1	2,560.00		2,560.00

Estimate is valid for 30 days

Total

Print _____

Signature

E-mail	Web Site	Phone #	Fax #
SERVICE@C2CGARAGEDOORS.COM	COAST2COASTGARAGEDOOR.COM	954-653-1600	954-840-9257

Lic # BWD 13-GD-18700-X, 15-F-19807-X :PB U-22055 :MD 17BS00060 :MC GD6891

Coast To Coast Garage Door LLC
P.O. Box 590929
Tamarac, FL 33359

Estimate

Date	Estimate #
4/22/2026	9894

Billing Address	Job location
City Of North Lauderdale 701 S.W 71 Ave North Lauderdale, FL 33068	Fire Station 44 7700 Hampton Blvd North Lauderdale, FL 33068 US

Customer W.O.#	Terms	P.O. No.
	Net 30	

Item	Description	Qty	Rate	Contract #	Total
Furnish Material ...	Furnish Material & Install Electrical Scope of Work Furnish and install electrical conduit from the existing meter room to the location of the new gate operator, approximately 200 linear feet. Conduit to be installed underground (or surface-mounted where required) in accordance with local code requirements. Provide and pull appropriate electrical wire through the new conduit to supply power to the new gate operator. Make final electrical connections at the meter room and at the gate operator. Test power to ensure proper voltage and safe operation of the system. All work to be performed in compliance with applicable local electrical codes.	1	7,500.00		7,500.00

Estimate is valid for 30 days

Total $60,875.68

This is a estimate only, This estimate is for completing the job described above, based on our evaluation. It does not include additonal labor or material which may be required if problem arise. Upon acceptance of this estimate a 50% deposit is required. All Credit Card Transaction Subject to 4% Processing Fee.

Print _____

Signature _____

E-mail	Web Site	Phone #	Fax #
SERVICE@C2CGARAGEDOORS.COM	COAST2COASTGARAGEDOOR.COM	954-653-1600	954-840-9257

Lic # BWD 13-GD-18700-X, 15-F-19807-X :PB U-22055 :MD 17BS00060 :MC GD6891

Ideal Tech Solutions

2836 Stirling Rd, Unit P
Hollywood, FL 33020
(954) 241-4641
accounting@idealtech.solutions
www.idealtech.solutions

ESTIMATE

ADDRESS
Information Technology Services
701 SW 71st Ave
N. Lauderdale, FL 33068

ESTIMATE NO. E-022630
DATE 02/26/2026
EXPIRATION DATE

PREPARED BY

PROJECT NAME

DESCRIPTION	QTY	RATE	AMOUNT
Installation of Galaxy on Fire Station 44 New Gate All Labor and Materials Included	1	13,077.78	13,077.78
Lot of Cabling, Hardware and Accessories: 18/6 Cabling and Cat-6 cabling Mounting Hardware Wire Management Conduit, junction box, fittings, etc.	1		0.00
Galaxy 635 DRM Board with Surge Protection	1		0.00
WIRELESS WIEGAND BRIDGE KIT -900 MHZ WIRE REPLACEMENT PRODUCT -1 KIT REQUIRED PER WIEGAND DEVICE OR WIRELESS RELAY SOLUTIC -12VDC	2		0.00
Maxtek RFID Long Range 50ft Wiegand Antenna - 10ft Wire Harness - Power Supply - Mounting Bracket and Hardware - 1-year Manufacturer Warranty Property Name:	1		0.00
CLICK2ENTER Emergency System - INCLUDES 24VDC Power Supply	1		0.00
Custom Antenna Post - Powder Coated White or Black	1		0.00
Linear Receiver	1		0.00
Galaxy Reader with Keypad	1		0.00
Gooseneck-Curb Mount, 42	1		0.00

Scope of Work:
Install conduit and cabling to the gate motor
Form antenna concrete pad on right-side of the driveway
Install custom antenna post and RFID antenna
Install hybrid card reader on the existing post
Install the receiver and terminate all cabling
Calibrate and test for proper operation

Warranty: 30 Days on Service Labor and 1-Year on new installs
1-Year Manufacture Warranty on Parts (Unless listed above differently)

DESCRIPTION	QTY	RATE	AMOUNT
Note: A 5% discount has been applied to this estimate (-$657.09)	1	0.00	0.00

- All communication conduit provided by others with a pull string
- All concrete slabs provided and installed by others
- Gate operator and gate installed by others

A signature below constitutes acceptance of all the above proposed scope of work equipment, and terms hereof. The required payment schedule will be 50% upon acceptance and the balance due upon completion. All equipment will remain the property of Ideal Tech Solutions (ITS) until the final balance has been paid. ITS reserves the right to substitute any equipment that has been discontinued with models of equal or superior performance. If the above project is delayed by the customer for any reason more than 30 days, ITS reserves the right to invoice the customer for an additional 25% deposit which is due within 15 days upon notice. Any deviation or change request will be executed only upon written request. Any additional insurance Limits, Excess and/or Umbrella coverage's will be an additional cost to the customer. Any cancellation request after receipt of 50% deposit will be subject to a 25% cancellation fee for the total installation cost.

SUBTOTAL	13,077.78
TAX	0.00
DISCOUNT	
TOTAL	$12,423.89

Accepted By: _____ _____ Date: _____

(Print Name Here) (Sign Here)

SlideDriver™ II

Maximum security combined with extreme durability

The most secure slide gate operator with power to move any gate, customizable for every unique application.

Features:

Powerful:
Move gates up to 20,000 lb.

Tough:
Secure steel chassis and taper resistant cover.

Reliable:
UPS models remain functional during a power outage.

Programmable:
Configure for specific site requirements.

Fast:
1-3 ft/s operating speed. Emergency fast operate at 3 ft/s.

Smart:
Integrated primary/ secondary controls and preprogrammed relay settings.

All weather performance:
Wide temperature range without heater.

Durable:
Decades long life and low maintenance.

Made in USA:
Designed, tested and built with global materials.

SlideDriver™ II

Next Generation

Builds on a legacy of security and reliability with the new SmartTouch™ 725 controller

NEW!

powered by SmartTouch 725

Technical Specifications

Model	SlideDriver II SD15	SlideDriver II SD40	SlideDriver II SD50F	SlideDriver II SD80V	SlideDriver II SD200V
Duty Cycle	Continuous				
Horsepower	1 hp	1 hp; DC Option 2 hp	2 hp		5 hp; DC Option 4 hp
Drive	Hydraulic		Hydraulic with VFD motor control		
Drive Wheels	Two 6 inch (15 cm) AdvanceDrive wheels		Two 8 inch (20 cm) AdvanceDrive wheels	One 8 inch (20 cm) AdvanceDrive wheel, One 8 inch XtremeDrive wheel and 27 ft (8 m) of rack	Two 8 inch (20 cm) AdvanceDrive wheels, Two 8 inch XtremeDrive wheels and 52 ft (16 m) of rack
Rate of Travel	1 ft/s (30 cm/s)		Field adjustable, 2.2 ft/s (70 cm/s) or 3 ft/s (91 cm/s). Emergency Fast Operate 3 ft/s (91 cm/s)	Field adjustable, .75 ft/s (23 cm/s) or 1 ft/s (30 cm/s).	
Gate Length Max.	Limited only by weight				
Gate Weight Max.	Up to 1,500 lb (680 kg)	Up to 4,000 lb (1,814 kg)	Up to 5,000 lb (2,268 kg)	Up to 8,000 lb (3,629 kg)	Up to 20,000 lb (9,072 kg)
Pull Force	300 lb (136 kg)			600 lb (272 kg)	1,200 lb (544 kg)
UpS Battery BackUp Cycles*	Optional 230V AC Power SUpply w/HyInverter AC™	Select option SB-2-2J for DC configuration. Requires DC Power SUpply DCPS-60, purchased separately.	Optional 230V AC Power SUpply w/HyInverter AC™		Select option SB-2-2T for DC configuration. Requires DC Power SUpply DCPS-150 ordered separately.**
Temperature Rating	-40° to 158° F (-40° to 70° C)				
Single Phase Voltages	115/208-230V 60 Hz, 110/220V 50 Hz***		208-230V 60Hz,220V 50Hz***		N/A
Three Phase Voltages	208-230/460V 60Hz,220/380/440V 50Hz***				
Included Accessories	One premium EMX IRB-MON photo eye, one 5-foot premium ASO edge sensor				N/A
Communication	BlueBUS, USB, Ethernet, T4, RS-485, Bluetooth, OXI receiver				
User Controls	SmartTouch 725 Controller with 70+ configurable settings. 32 character OLED display and 7 tactile buttons, or Bluetooth smartphone interface, for programming. SmartTouch 720 Available without Bluetooth or Ethernet.				
Relays	8 Configurable relays: Two 250V 20A electromechanical relays and six 30VDC 2A solid state relays		Three configurable user relays: Two 30VDC 2A solid state, one 240VAC, 20A electromechanical. Optional I/O Expansion module for 8 additional relay outputs.		
Enclosure	N/A				
Finish	Zinc plated with powder coating				
ETL Listed (UL 325)	Usage Class I, II, III, IV		Usage Class III, IV		
Warranty	5 year w/product registration				

*The actual number of gate cycles available from battery power depends upon gate resistance to travel, cycle length, battery size, state of charge and health, ambient temperature, accessory power draw and frequency of gate cycles during power outage.

**SlideDriver II SD200 UPS has a 2,000 ft/hr (610 m/hr) expected duty cycle. Actual duty cycle depends on site specific conditions and gate configuration.

***Refer to Installed Options on pricing for all 50Hz voltages, which are special order.

MADE IN THE USA WITH GLOBAL MATERIALS

HySecurity a Nice company

support.hysecurity.com

Nice/HySecurity is an industry leader of automated gate and perimeter security solutions.

The HySecurity brand provides high-quality, ultra-reliable industrial gate operators and crash-rated, Hostile Vehicle Mitigation (HVM) vehicle barriers designed to secure and protect critical infrastructure and facilities worldwide.

Nice

Niceforyou.com

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CITY OF NORTH LAUDERDALE
PARKS AND RECREATION DEPARTMENT

TO: **Mayor and City Commission**

FROM: **Michael Sargis, City Manager**

BY: **Patrick Cann, Parks and Recreation Director**

DATE: **May 12, 2026**

SUBJECT: **Approval of Expenditures for Haitian Flag Day Festivities**

The Parks and Recreation Department is planning the 3rd Annual Haitian Heritage Flag Day Festival Celebration, which will include (2) two events during the month of May:

- Adult Soccer Tournament - Saturday, May 16, 2026, at Highland Park

- Mayor's Community Fun Night - Friday, May 29, 2026, at the City Hall Sports Complex, from 6:00 p.m. to 9:00 p.m.

The anticipated costs for both events are expected to exceed the City Manager's approval threshold of $25,000. Therefore, in order to comply with the City's Procurement Code, staff is seeking City Commission approval for an expenditure amount not to exceed $38,000 for both events.

These funds will support all event-related needs, including the soccer tournament, dance demonstrations, singers, a live band, school bands, bounce houses, cultural cuisine, guest speakers, entertainment, sound systems, security, decorations, marketing and promotion, printing, advertisements, radio spots, banners, arts and crafts, concessions, supplies, and other materials necessary to support event logistics.

The City anticipates more than 3,000 guests will attend these events. The goal is to create a safe, festive, and welcoming atmosphere that attracts residents and visitors while promoting community spirit and engagement.

Staff is requesting City Commission approval for expenditures in an amount not to exceed $38,000. All purchases will be made in accordance with the City's Procurement Policy, and no individual purchase is anticipated to exceed the City Manager's $25,000 approval threshold without separate Commission approval. Funding is allocated in the Parks and Recreation Department Fiscal Year 2026 Budget.

RECOMMENDATION

City Administration recommends Commission consideration and approval of the Resolution, authorizing the City Manager or designee of expenditures for the 3rd Annual Haitian Flag Day Festivities in an amount of $38,000.00.

RESOLUTION NO. _____

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AUTHORIZING THE CITY MANAGER OR HIS DESIGNEE TO EXPEND AN AMOUNT OF $38,000 FOR THE CITY OF NORTH LAUDERDALE HAITIAN FLAG DAY FESTIVITIES; PROVIDING FOR SEVERABILITY; PROVIDING FOR CONFLICTS; AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, for the past year, the City of North Lauderdale has hosted an annual Haitian Flag Day Festival for the residents and guests of North Lauderdale; and

WHEREAS, this cultural special event is held at the City Hall Sports Complex and this year will include a Soccer Tournament on Saturday, May 16th at HighlandPark and a Festival in the Park at the City Hall Sports Complex on May 29, 2026; and

WHEREAS, in order to facilitate this event for the residents and guests, the Parks and Recreation Department must purchase various items, including concessions, decorations, marketing and promotion, printing, advertisements, radio spot ads, banners,artists, musicians, dancers, entertainment, sound system, fun activities, arts and crafts, guest speakers, event management support, security and related materials and supplies to support the logistics for this event; and

WHEREAS, the City staff anticipates these events to cost more than $25,000.00 and is seeking Commission approval in an amount of $38,000.

BE IT RESOLVED BY THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA THAT:

Section 1: The foregoing "**WHEREAS**" clauses are hereby incorporated herein and made a specific part hereof.

Section 2. Pursuant to the City's Procurement Policy, all purchases over $25,000 require City Commission approval.

Section 3. The City Commission approves a total amount of $38,000 for items necessary to facilitate the Haitian Flag Day Festival events.

Section 4. All resolutions or parts of resolutions in conflict herewithare hereby repealed to the extent of such conflict.

Section 5. If any clause, section, other part or application of thisResolution is held by any court of competent jurisdiction to be unconstitutional or invalid, in part or application, it shall not affectthe validity of the remaining portions or applications of this Resolution.

Section 6. This Resolution shall take effect immediately uponits adoption.

PASSED AND ADOPTED BY THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, THIS 12th DAY OF MAY 2026.

APPROVED AS TO FORM:

_____
CITY ATTORNEY,
AUSTIN PAMIES NORRIS WEEKS POWELL, PLLC

_____
MAYOR, SAMSON BORGELIN

_____
VICE MAYOR, MARIO BUSTAMANTE

ATTEST:

_____
CITY CLERK SUSAN SLATTERY

Requested by Administration	**Voted Yes**	**Voted No**
Commissioner Darrell (Dee) Lewis Ricketts	_____	_____
Commissioner Dr. Regina Martin	_____	_____
Commissioner Luke Lewis	_____	_____
Vice Mayor Mario Bustamante	_____	_____
Mayor Samson Borgelin	_____	_____

CITY OF NORTH LAUDERDALE
PARKS AND RECREATION DEPARTMENT

TO: **Mayor and City Commission**

FROM: **Michael Sargis, City Manager**

DATE: **May 12, 2026**

SUBJECT: **Ratification of Printing Expenditures**

The City publishes a quarterly newsletter throughout the fiscal year, professionally printed and mailed. The City anticipated using the Florida Prison P.R.I.D.E program as this is a more cost-effective option under normal circumstances, however their production and turnaround schedule require a longer lead time and don't always fit into the schedule of items in the newsletter.

Due to the condensed timeframe in which all content items were finalized for the last three quarterly newsletters, PRIDE could not accommodate our current timeline. As such, we proceeded with a local printing vendor for these three editions. The City used, Mailers Mailhouse for the first two publications, at a cost of $18,578.55 not including postage. The cost for the City's recent Summer edition was $9,362.70 not including the postage. This has placed the total expenditure with Mailers Mailhouse over the $25,000 City Manager's authorized threshold

The newsletter is time-sensitive, as it contains important seasonal updates and information for residents. In order to ensure timely delivery to households by the second week of May, the City Manager authorized the expenditure over the $25,000 threshold, and notified the Commission on April 28th, 2026 by email, and is requesting ratification of the Fiscal Year newsletter expenditures totaling $27,941.25.

We will strive to utilize the P.R.I.D.E program for future newsletters when the scheduling timeframe allows, in order to maintain cost efficiency wherever possible. However, in the event the Fall edition requires the use of the local vendor, we request an additional $10,000 for this Fiscal Year newsletter expenses.

RECOMMENDATION

City Administration recommends City Commission consideration and approval to ratify the City Manager's total expenditure of $27,941.25 with Mailers Mailhouse for the newsletter publication and authorize an additional $10,000 expenditure during this fiscal year, for a total FY26 authorization of $37,941.25 with Mailers Mailhouse.

RESOLUTION NO. _____

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, RATIFYING THE CITY MANAGER'S EXPENDITURE OF $27,941.25 TO MAILERS MAILHOUSE FOR NEWSPAPER PUBLICATION; AUTHORIZING AN ADDITIONAL $10,000 EXPENDITURE TO MAILERS MAILHOUSE IN FISCAL YEAR 2026 FOR A TOTAL AUTHORIZATION OF $37,941.25; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the City publishes quarterly newsletters to inform the community of seasonal updates, time-sensitive information, various events and activities; and

WHEREAS, the City utilized Mailer Mailhouse to publish the last two editions at a combined cost of $18,578.55, based on the need to ensure timely production and delivery to households; and

WHEREAS, the City also used Mailer Mailhouse at a cost of $9,362.70 to produce and deliver the Summer Newsletter, based on the need to ensure timely delivery; and

WHEREAS, such expenditure created a total expenditure of $27,941.25 with Mailer Mailhouse for Fiscal Year 2026, which exceeded the City Manager's expenditure threshold of $25,000; and

WHEREAS, the City Manager notified the Commission via an April 28, 2026, email of his intent to authorize this expenditure, the justification and his intent to seek the Commission's ratification at an upcoming meeting;

NOW, THEREFORE, BE IT RESOLVED by the City Commission of the City of North Lauderdale, Florida, that:

Section 1. The foregoing "**WHEREAS**" clauses are hereby ratified and confirmed as being true and correct and are hereby made a specific part of this Resolution upon adoption hereof.

Section 2. The City Commission ratifies the City Manager's recent $9,362.70 expenditure to Mailer Mailhouse for production and publication of the Summer Newsletter.

Section 3. The City Commission further authorizes an additional $10,000 expenditure with Mailer Mailhouse during fiscal year 2026, for a total authorized expenditure of $37,941.25.

Section 4. If any clause, section, other part, or application of this Resolution is held by any court of competent jurisdiction to be unconstitutional or invalid, in part or application, it shall not affect the validity of the remaining portions or applications of this Resolution.

Section 5. That this resolution shall take effect immediately upon adoption.

Section 6. That the funding for this construction will be provided by Community Development Block Grant.

PASSED AND ADOPTED by the CITY COMMISSION of the City of North Lauderdale, Florida, this 12th day of May 2026.

APPROVED AS TO FORM:

_____
CITY ATTORNEY,
AUSTIN PAMIES NORRIS WEEKS POWELL, PLLC

_____
MAYOR, SAMSON BORGELIN

_____
VICE MAYOR, MARIO BUSTAMANTE

ATTEST:

_____
CITY CLERK SUSAN SLATTERY

Requested by Administration	Voted Yes	Voted No
Commissioner Darrell (Dee) Lewis Ricketts	_____	_____
Commissioner Dr. Regina Martin	_____	_____
Commissioner Luke Lewis	_____	_____
Vice Mayor Mario Bustamante	_____	_____
Mayor Samson Borgelin	_____	_____

CITY OF NORTH LAUDERDALE
HUMAN RESOURCES DEPARTMENT

TO: **Mayor and City Commission**

FROM: **Michael Sargis, City Manager**

BY: **Ramona Woods, Human Resources Director**

DATE: **May 12, 2026**

SUBJECT: **Approval of Employee Transfer – Community Facilitator Coordinator**

The position of Community Facilitator Coordinator (CFC) was created in 2024 within the Parks and Recreation Department to support community engagement initiatives. City Administration is recommending the transfer of this position to the Community Development Department to better align its functions with the City's broader community planning, outreach, grants, social services and development efforts.

The Community Facilitator Coordinator works toward creating a more cohesive and engaged community by collaborating with residents, community leaders, and local organizations to enhance the overall well-being of the City and its residents. Given the nature of these responsibilities, the position is more appropriately aligned within the Community Development Department.

Position Change: - The employee will transition from the Parks and Recreation Department to the Community Development Department while maintaining the title of Community Facilitator Coordinator. If approved, the position will be updated and reflected in the appropriate area of the City's organizational chart.

Salary Impact: - There is no change to the employee's current salary as a result of this transfer.

Fiscal Impact: - There is no fiscal impact associated with this action.

Essential Job Functions:

- Act as a representative of the City of North Lauderdale, participating in community events and activities to promote its mission and values.
- Raise awareness and mobilize residents to participate in City initiatives, including Grants, Social Services, Boards and Committees.
- Provide training to the community.
- Liaise with community leaders, residents, and religious leaders to support City projects and activities.
- Document processes, lessons learned, and best practices, and share them with City administration.

- Plan and organize activities with community groups, including underserved populations.
- Assist in resolving disputes and misunderstandings among residents.
- Conduct regular meetings with community groups to assess progress and address challenges.
- Compile monthly reports for submission to the City and Commission.
- Develop and maintain strong relationships with community groups.
- Develop and implement community engagement plans.
- Coordinate with key partners to ensure initiatives are progressing as planned.
- Engage parents and adults to support youth empowerment programs.
- Visit schools to assess student environments and support initiatives.
- Establish and support practitioner networks on school sites.
- Establish and facilitate a Parent Advisory Group.
- Conduct community data analysis and planning.
- Develop work plans aligned with the City's strategic plan
- Develop and implement recruitment plans to increase volunteer engagement.
- Maintain volunteer, intern, and donation databases and related communications.

RECOMMENDATION

City Administration recommends the Commission's consideration and approval of the amendment to the pay plan related to the Community Facilitator Coordinator position from the Parks and Recreation Department to the Community Development Department.

RESOLUTION NO. _____

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AMENDING THE 2025/26 PAY PLAN AUTHORIZING THE TRANSFER OF THE COMMUNITY FACILITAOR COORDINATOR POSITION FROM THE PARKS AND RECREATION DEARTMENT TO THE COMMUNITY DEVELOPMENT DEPARTMENT TO BETTER ALIGN ITS FUNCTIONS WITH THE CITY'S BROADER COMMUNITY PLANNING, OUTREACH AND DEVELOPMENT EFFORTS, PROVIDING FOR SEVERABILITY, PROVIDING FOR CONFLICTS, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the City of North Lauderdale created a Community Facilitator Coordinator position within the Pay and Compensation Plan; and

WHEREAS, this position works toward creating a more cohesive and engaged community by collaborating with residents, community leaders, and local organizations to enhance the overall well-being of the City and its residents, and development efforts**,** and

WHEREAS, Given the nature of these responsibilities, the position is more appropriately aligned within the Community Development Department; and

BE IT RESOLVED BY THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA THAT:

SECTION 1: The foregoing "WHEREAS" clauses are hereby ratified and confirmed as being true and correct and are hereby made a specific part of this Resolution.

SECTION 2: The City Commission hereby approves the transfer of the Community Facilitator Coordinator position to the Community Development department as its functions are more appropriate aligned.

SECTION 3: That all Resolutions, or parts of Resolutions, Ordinances or parts of Ordinances, in conflict herewith, be and the same are hereby repealed to the extent of such conflict.

SECTION 4: That this Resolution shall take effect immediately upon adoption.

PASSED and ADOPTED by the City Commission of the City of North Lauderdale, Florida, this 12TH day of May 2026.

_____
MAYOR SAMSON BORGELIN

_____
VICE MAYOR MARIO BUSTAMANTE

ATTEST:

_____
CITY CLERK SUSAN SLATTERY

_____
CITY ATTORNEY,
AUSTIN PAMIES NORRIS WEEKS POWELL, PLLC

Requested by Administration	**Voted Yes**	**Voted No**
Commissioner Darrell (Dee) Lewis Ricketts	_____	_____
Commissioner Dr. Regina Martin	_____	_____
Commissioner Luke Lewis	_____	_____
Vice Mayor Mario Bustamante	_____	_____
Mayor Samson Borgelin	_____	_____

CITY OF NORTH LAUDERDALE
PUBLIC WORKS/UTILITIES DEPARTMENT

TO: **Mayor and City Commission**

FROM: **Michael Sargis, City Manager**

THROUGH: **Neil Buckeridge, Public Works/Utilities Director**

BY: **Ekaterina Kolotova, Project Manager of Public Works/Utilities**

DATE: **May 12th, 2026**

SUBJECT: **Recommendation for Approval of Building Enclosure Consulting Services Proposal with BECI-Florida, LLC for Fire Station No. 34**

Public Works/Utilities along with Fire/Rescue was tasked with investigating persistent window leaks at Fire Station No. 34., located at 6151 Bailey Road, North Lauderdale. BECI conducted ASTM E1105 Water Penetration Testing and confirmed water intrusion issues. Their investigation concluded that the station requires targeted repairs, specifically:

- Stucco Replacement and Repair on the SE Elevation-(Second floor around the Windows)
- Window Wall Glazing Repair
- Window Wall Perimeter Sealant Repair
- Fixed Window Glazing and Perimeter Sealant Repair

Engaging the same firm that identified the deficiencies will provide continuity, expert oversight during bidding and construction, and assurance that the selected contractor corrects the leaks of the windows. To ensure the repairs are properly scoped, competitively bid, and completed with no future leaks, staff recommends continuing with BECI for the full scope of building enclosure consulting services outlined in their proposal dated March 20, 2026. These services include:

- Scope Development – Preparation of bidding documents, identifying the correct quantity of materials needed. Bid assistance, including RFI and RFQ.

- Quality Assurance Site Visits – Five (5) on-site visits to document construction conditions, materials, and conformance with specifications, with photo logs and non-conformance reports.

- Post Construction Services – Punch-list inspection, issuance of AIA G704 Certificate of Substantial Completion, warranty review, collection of close-out documents, and delivery of As-Built Restoration Documents.

ASTM E1105 Water Penetration Testing – Field testing of windows (with investigation and re-testing as needed).

- Equipment – Lift rental for two (2) days.

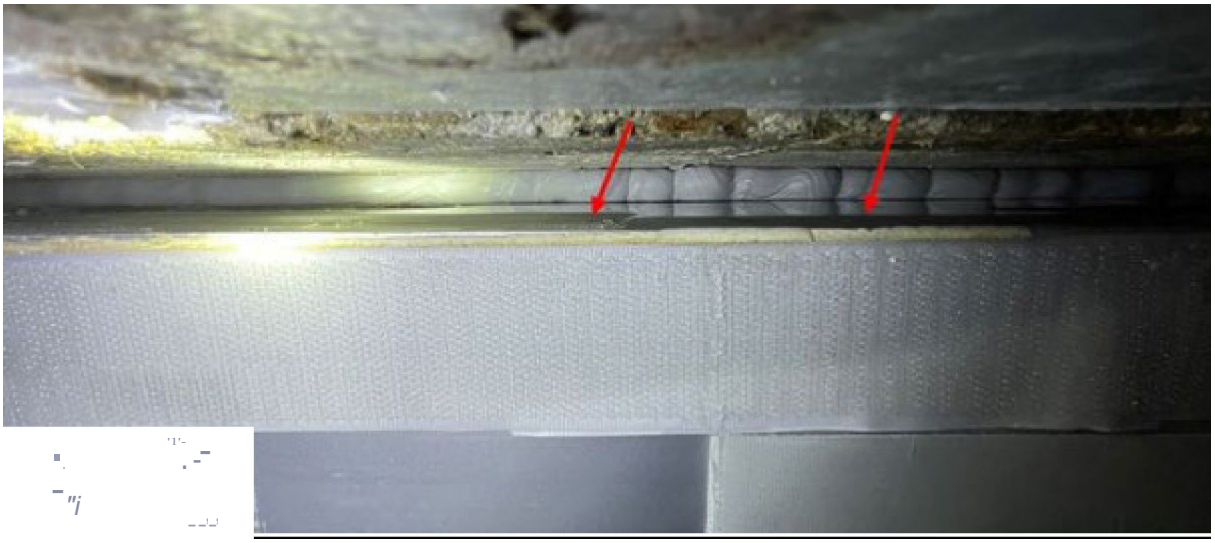
The total proposed lump-sum fee is $26,450**,** broken down as follows:

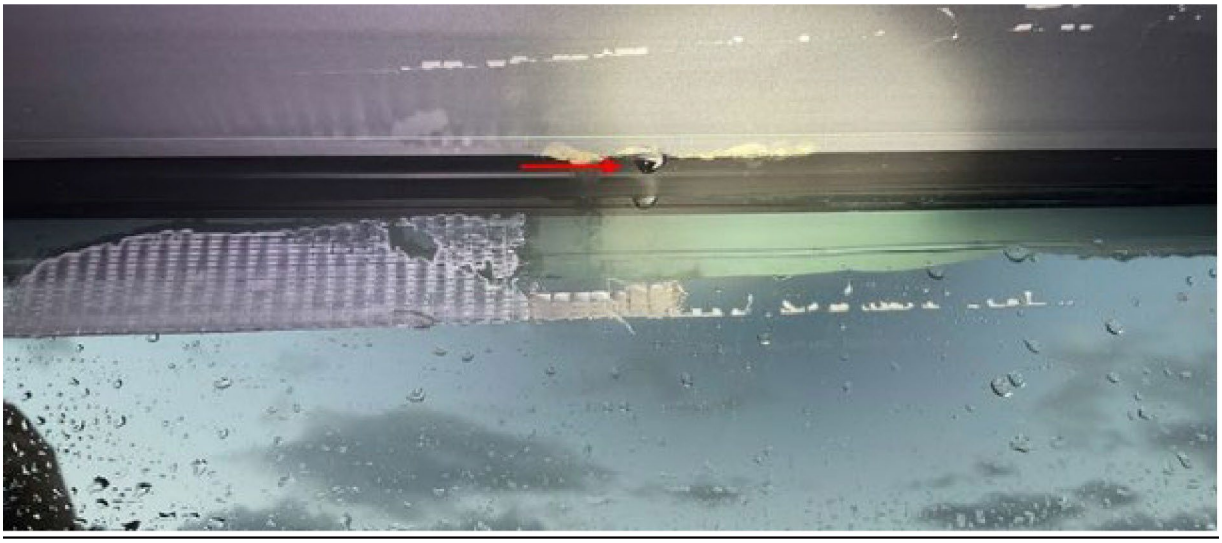
- Scope Development: $5,000
- Quality Assurance Site Visits (5 @ $1,800): $9,000
- Post Construction Services: $4,200
- ASTM E1105 Water Penetration Testing: $6,250
- Lift for 2 Days: $2,000

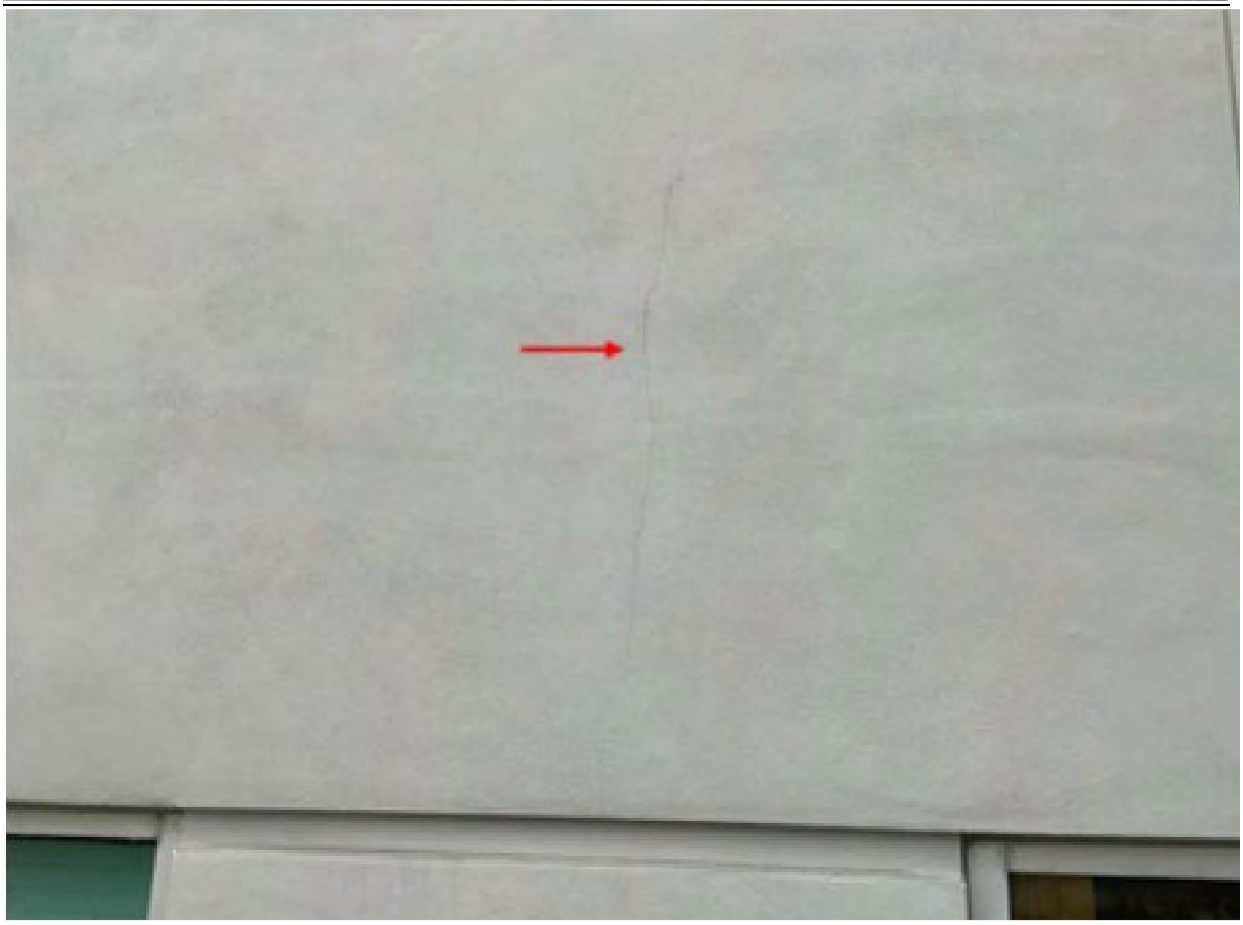
This amount is for budgetary purposes; final billing will reflect actual services provided.

Recommendation

City Administration recommends Commission consideration and approval authorizing the City Manager to accept the proposal submitted by BECI-Florida, LLC for the above building enclosure consulting services and issue a purchase order in the amount of $26,450 in accordance with Procurement Code 3(4)(b) contracts for professional services.







RESOLUTION NO. _____

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AUTHORIZING THE CITY MANAGE TO ACCEPT AND ISSUE A PURCHASE ORDER FOR A PROPOSAL FROM BECI-FLORIDA LLC, IN AN AMOUNT OF $26,450.00 FOR BUILDING ENCLOSURE CONSULTING SERVICES FOR FIRE STATION 34; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the City of North Lauderdale has experienced persistent window leaks at Fire Station No. 34 located at 701 SW 71st Avenue; and

WHEREAS, BECI-Florida, LLC conducted the testing and determined that the building requires stucco replacement and repair on the southeast elevation, window wall glazing repair, window wall perimeter sealant repair, and fixed window glazing and perimeter sealant repair; and

WHEREAS, BECI-Florida, LLC has submitted a proposal dated March 20, 2026, to provide comprehensive building enclosure consulting services, including scope development for bidding, quality assurance site visits, post-construction services, and additional water penetration testing to ensure the repairs are properly performed, and the leaks are resolved; and

WHEREAS, the consulting services purchase is made in accordance with Procurement Code 3(4)(b) contracts for professional services; and

WHEREAS, it is in the best interest of the citizens and residents of the City of North Lauderdale to approve the proposal from BECI-Florida, LLC;

NOW, THEREFORE, BE IT RESOLVED by the City Commission of the City of North Lauderdale, Florida, that:

Section 1. The foregoing "Whereas" clauses are hereby ratified and confirmed as being true and correct and are hereby made a specific part of this Resolution upon adoption hereof.

Section 2. The City Commission finds and determines that it is in the best interest of the citizens and residents of the City of North Lauderdale, Florida, to approve the proposal from BECI-Florida, LLC for Building Enclosure Consulting Services for Fire Station No. 34 in the total amount of $26,450.00.

Section 3. That the City Commission authorizes the City Manager or designee to execute the necessary agreement and/or issue a purchase order to BECI-Florida, LLC in a maximum amount of $26,450.00 to complete the work.

Section 4. If any clause, section, other part, or application of this Resolution is held by any court of competent jurisdiction to be unconstitutional or invalid, in part or application, it shall not affect the validity of the remaining portions or applications of this Resolution.

Section 5. That this resolution shall take effect immediately upon adoption.

PASSED AND ADOPTED by the CITY COMMISSION of the City of North Lauderdale, Florida, this 12TH day of May, 2026.

APPROVED AS TO LEGAL FORM:

_____
CITY ATTORNEY,
AUSTIN PAMIES NORRIS WEEKS POWELL, PLLC

_____
MAYOR SAMSON BORGELIN

_____
VICE MAYOR MARIO BUSTAMANTE ATTEST:

_____
CITY CLERK, SUSAN SLATTERY

Requested by Administration	**Voted**
Vice Mayor Mario Bustamante	_____
Commissioner Dr. Regina Martin	_____
Commissioner Luke Lewis	_____
Commissioner Dee Lewis Ricketts	_____
Mayor Samson Borgelin	_____

CITY OF NORTH LAUDERALE
OFFICE OF THE CITY MANAGER

TO: **Mayor Borgelin and City Commission**

FROM: **Michael Sargis, City Manager**

DATE: **May 12th, 2026**

SUBJECT: **City Manager Follow-up from April 14th, 2026 City Commission Meeting**

Public Comment Summary and City Manager Responses

- **Broadview Elementary School:** Acting Principal spoke on a request to the City for some funds to help with a new mural and 2 mural renovations on the campus of Broadview Elementary School

City Manager Response: The Mayor proposed a program for the City to provide funds for some beautifications at schools in North Lauderdale – we are working with the School Board to have them create the policy and agreements that would allow for the City to donate to specific schools with some potential roll over ability. Mayor and I met with School Board staff about 6 weeks ago and we are waiting on agreements from the school board.

- **Mr. M. Soloman:** Spoke on rule of law and trust and before any money spent, residents have to ask can they trust the City Commission. Spoke on the OIG Report on Waste Pro Investigation Report and on the Procurement Memo. Asked for ethics review by outside expert.

City Manager Response: To be clear, both the Waste Pro matter and the procurement matter occurred before this Commission and City Administration was in office in their current positions. The City Attorney is working on the Waste Pro investigation and has contacted Waste Pro on the matter. As for the Procurement Matter, the line in the closing memorandum from the Inspector General reads, "The OIG recognizes the significant steps the City has taken towards creating a more controlled, efficient, and fair procurement process for small purchases and appreciates its cooperation during this review."

- **Remaining Speaks:** Spoke on topics regarding the Charter Changes, and private travel of the elected officials not under the City Manager's duties and no reply provided.

City Commission Directed Follow-Up

1. **Mural/Lettering on Entrance Signs into Communities** – Public Works is installing new lettering and City Logo on all entrance roadway wing walls and should have the project completed for all areas within the next 45 days.

2. **Lights out in District B** – PW has once again reported all lights out in District B to FPL and will continue to monitor all repairs as they occur. Additionally, the City will be fixing the out lights on Bailey Road with our of our contractors.

COMMISSIONER LUKE LEWIS

INVITES YOU TO

FIRE SAFETY NIGHT

MAY
19
2026
@6:00 P.M.

LOCATION

Pompano park

4001 bailey road
North Lauderdale fl 33068

- Learn how to properly use a fire extinguisher.
- Watch live demonstrations from fire professionals.
- Get expert fire safety tips directly from local firefighters.
- Receive important safety information and updates from city officials.

LUKE LEWIS LUKELEWISFLORIDA

CITY OF NORTH LAUDERDALE

North Lauderdale

SAND BAG GIVEAWAY

In anticipation of the start of the rainy season and Hurricane Season, the City of North Lauderdale will be hosting a **FREE** Hurricane Ready Sandbag Giveaway.

CALLING NORTH LAUDERDALE RESIDENTS!

Hurricane Season Starts June 1

SATURDAY DATES:

- May 9
- May 23
- May 30
- June 6
- June 13

TIME:
10 am to 2 pm

LOCATION:

Pompano Park,
4001 Bailey Road, across from the North Lauderdale Fire Station 34

For More Information, Contact Public Works at
954-724-7070

SANDBAG INFO:

6 bags per Residence

12 bags per Business

***PROOF OF NL RESIDENCY REQUIRED**

City of North Lauderdale

MAY 2026 SENIOR TRIPS

Wednesday
May 6

Mother's Day
Tea Party
Starts at: 11:00 am

Guests are encouraged to Dress up!

Prizes for Hat Competition

MUST RSVP for this Event
at 954-724-7061

Monday, May 4
Champions Hall
10:30 am

Wednesday
May 13

GulfStream Park & Casino

Bus Pickup Times:

Teen Center:	10:00 am
Champions:	10:05 am
Hamptons:	10:10 am
Oakbrook:	10:15 am

Residents: $5
Non-residents: $7

$25 Club Member Dues this Month

Wednesday
May 20

Classical Music Concert

At Champions Hall

Starts at 12:00 Noon

Wednesday
May 27

Flamingo Gardens

Bus Pickup Times:

Teen Center:	10:15 am
Champions:	10:20 am
Hamptons:	10:25 am
Oakbrook:	10:30 am

Residents: $25
Non-residents: $27

For More Information Call the Senior Hotline at 954-718-5200 Or Parks & Recreation Dept at 954-724-7061 x1

Commissioner Luke Lewis District A

Vice Mayor Mario Bustamante District B

Mayor Samson Borgelin

Commissioner Dr Regina Martin District C

Senior Club MAY 2026

SUN	MON	TUE	WED	THU	FRI	SAT
			1 Water Aerobics @ Aquatic Center 9 am – 10 am	2 Pickleball 10:30-11:30 At Carl Fusco Pickleball Courts	1	2
3	4 Bingo! At Champions Hall 10:30 am Water Aerobics @ Aquatic Center 9 am – 10 am	5 Cinco de Mayo	6 Mother's Day Tea Party 11:00 am Water Aerobics @ Aquatic Center 9 am – 10 am	7 Pickleball 10:30-11:30 At Carl Fusco Pickleball Courts	8	9
10 Happy Mother's Day	11 Water Aerobics @ Aquatic Center 9 am – 10 am	12	13 Senior Club Water Aerobics @ Aquatic Center 9 am – 10 am	14 Pickleball 10:30-11:30 At Carl Fusco Pickleball Courts	15	16 Armed Forces Day
17	18 Water Aerobics @ Aquatic Center 9 am – 10 am	19	20 Classical Concert At Champions Hall Starts at 12:00 Noon Water Aerobics @ Aquatic Center 9 am – 10 am	21 Pickleball 10:30-11:30 At Carl Fusco Pickleball Courts	22	23
24	25 Memorial Day Water Aerobics @ Aquatic Center 9 am – 10 am	26	27 Senior Club Water Aerobics @ Aquatic Center 9 am – 10 am	28 Pickleball 10:30-11:30 At Carl Fusco Pickleball Courts	29	30
31		For More Information, Please Call the North Lauderdale Parks and Recreation at 954-724-7061 option 1 Or Our Senior Line at 954-718-5200				

City of North Lauderdale is hosting

FREE PICKLEBALL For Seniors

North Lauderdale

Join our free weekly Pickleball Meet-Up! Whether you are brand new, looking to sharpen your skills, or just want to enjoy a fun game with local seniors thsi is the perfect place for you! We provide all equipment and water. Come find out why pickleball is taking off nationwide.

Thursdays	Time:	Location:
April 23 thru May 28	10:30am - 11:30am	Carl Fusco Park Pickleball Courts

For more Information, call Parks & Recreation at 954-724-7061 Option 1

Commissioner Luke Lewis District A

Vice Mayor Mario Bustamante District B

Mayor Samson Borgelin

Commissioner Dr Regina Martin District C

Commissioner Dee Lewis-Ricketts District D

North

701 Southwest 71st Ave.
North Lauderdale, FL 33068

North Lauderdale
A Fun City In The Heart of Broward

www.nlauderdale.org
(954) 722-0900

PUBLIC NOTICE

City of North Lauderdale PWS-4060976

ANNUAL WATER SYSTEM PREVENTATIVE MAINTENANCE

SCHEDULED FOR MAY 20, 2026 THROUGH JUNE 3 ,2026

Dear Customer:

The City of North Lauderdale's Utilities Department has scheduled its annual free chlorination of the water distribution system for the period of **May 20 through June 3, 2026.** This will temporarily change the disinfection process for the drinking water supply in our community. This annual procedure is a preventative maintenance method which also includes free chlorination and hydrant flushing.

The City will temporarily change the disinfection process of the water distribution system by utilizing the free chlorine method rather than combined chlorine/ammonia (chloramines). Free chlorination is a commonplace practice for public water systems, and is approved by the Florida Department of Environmental Protection.

During this period the water is safe to drink. These temporary conditions should not be harmful to your health; however, some individuals may notice a slight change in the taste and/or odor of chlorine the water during this time.

Special Conditions:

If you are on kidney dialysis, please consult your physician for any special instructions concerning this matter to obtain the appropriate steps to accommodate the change.

If you have tropical fish or aquatic animals, please contact your local pet store for advice. Customers with inline filters may want to contact the equipment manufacturer for any precautions that maybe required.

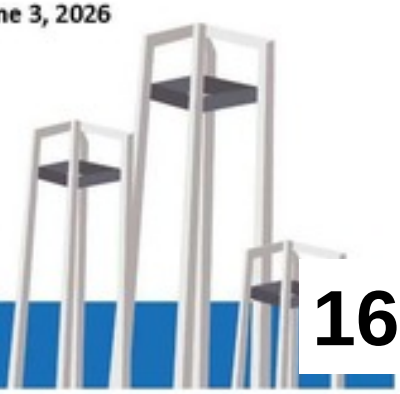
Flushing:

During this process the City also conducts distribution system flushing as part of its prudent utility practice. Flushing will ensure that the free chlorinated water is distributed evenly throughout the water distribution system.

This temporary change in disinfection is scheduled to end Wednesday, June 3, 2026

For additional information, please call the Utilities Department

Monday – Friday from 8:00am- 5:00pm at 954-724-7071



Samson Borgelin, Vice Mayor Maria Bustamante, Commissioner Dr. Regina Martin, Commissioner Luke Lewis,
Commissioner Dee Lewis-Ricketts, City Manager Michael J. Sargis, City Attorney Michelle Pamies Austin, City Clerk Susan Slattery

Memorial Day Ceremony
Monday, May 25 at 10:00 AM

Event will take place at the Teen Recreation Center Located Behind City Hall

701 Southwest 71st Avenue – North Lauderdale 33068

The City of North Lauderdale Parks & Recreation Department invites you to join us as we pay tribute to the over 1.3 million fallen members of the United States Armed Forces

Continental Breakfast Will be Provided

Commissioner Luke Lewis District A | Vice Mayor Mario Bustamante District B | Mayor Samson Borgelin | Commissioner Dr Regina Martin District C | Commissioner Dee Lewis-Ricketts District D

For More Information Please Call the Parks & Recreation Department at 954-724-7061 option 1

BECOME A CITIZEN!!

FREE CITIZENSHIP DRIVE 2026

SATURDAY
MAY 30, 2026

TIME
10 AM - 2 PM

TEEN/RECREATION CENTER
701 SW 71st Avenue
North Lauderdale, FL 33068

WHY IS IT IMPORTANT?

Florida is fortunate to have a diverse group of legal permanent residents who have the opportunity to become naturalized citizens. By taking this step, they will gain the right to vote, protection from deportation, the ability to petition for family members, and better employment opportunities. The path to citizenship is not always easy, but it is a journey that can bring immense pride and a sense of belonging.

Eligibility Requirement for Citizenship

- You are 18 years or older
- Legal Permanent Residents for 5 years or 3 years if married with a United States Citizen

Register Here

You must register to be seen at www.flic.org/events
Scan the QR code or call 1-888-600-5762

FLIC

THE NEW AMERICANS CAMPAIGN

What to bring for FEE Waiver

2025 Tax Returns, Food Stamp, Medi
Letter or SSI Supplement Security Inc

DISTRIBUTION DOES NOT IMPLY ENDORSEMENT OR RECOMMENDATION BY BROWARD COUNTY PUBLIC SCHOOLS

City of North Lauderdale Parks & Recreation Department

SUMMER CAMP 2026

SUMMER DAY CAMP
(entering K thru 5th grade)

ULTIMATE DAY CAMP
(entering 6th thru 8th grade)

SPORTS CAMP
(entering 3rd thru 8th grade)

Camp Runs from June 8 thru July 31

Birth Certificates Required for all Children 4 and 5 Years of Age
Campers Must be 5 by September 1st, 2026

summer fun

SUMMER CAMP FEES

Full 8 Weeks Session
June 8 to July 31
$475 for North Lauderdale Residents
$570 for Non-North Lauderdale Residents

4 Week Sessions
Session 1 - June 8 to July 3
Session 2 - July 6 to July 31
$250 for North Lauderdale Residents
$300 for Non-North Lauderdale Residents

If this is your child's 1st program this school year, there is a one-time registration fee of $10

Program Dates in Compliance with Broward County School Board Student Calendar

PROGRAM NOTES

- Payment plans available!!
- $100 (Non-refundable) down reserves your spot
- 10 to 1 Camper to Staff Ratio
- Campers travel on City owned Buses
- No Hidden Fees – ALL activities included in program fee
- Special Lunches available (for extra cost)
- Program hours 8:45 am to 4:30 pm

INFO

Early Drop Off Starts @ 7:00 AM

CAMPER DROP-OFF PICK-UP

Late Pick Up until 6:15 PM

8 Week Summer Camp Location:
North Lauderdale Elementary
7500 Kimberly Blvd

The City of North Lauderdale is a licensed and Insured Government Agency

REGISTER NOW!

Registration On-Going – Feb 2 thru – May 22

@ the Teen/Recreation Center
(Behind City Hall)

Space is limited so REGISTER EARLY and be a part of the "Best Valued Summer Camp in" Broward County with 4 to 5 trips a week

AFTER SUMMER CAMP PROGRAM (ACT)
Information on the After Summer Camp Program which will run from August 3 to August 7
Registration will begin on July 1 for the After Summer Camp Program

For more information, p
Parks & Recreation
at 954-724-706

Mayor Samson Borgelin - Vice Mayor Mario Bustamante - Commissioners:Dr Regina Martin, Luke L

CITY OF NORTH LAUDERDALE
FIRE RESCUE DEPARTMENT

TO: **Mayor and City Commission**

FROM: **Michael Sargis, City Manager**

BY: **Bradley Myers, Division Chief**
David Sweet, Fire Chief

DATE: **May 12, 2026**

SUBJECT: **Emergency Management Training for Elected Officials**

Please be advised of new emergency management training requirements established under Senate Bill 180 (2025), enacted by the Florida Legislature and signed into law on June 26, 2025. These requirements are intended to enhance coordination, communication, and preparedness among local and state leadership during emergency events.

Overview of Requirements - The Florida Division of Emergency Management (FDEM) now requires biennial training for certain local officials, including municipal elected officials, in addition to existing statutory training obligations under section 252.38(1)(b), Florida Statutes.

Compliance Timeline

- **Current Elected Officials** must complete the required training **no later than July 1, 2026**.
- Newly appointed or elected individuals must complete training within 12 months of assuming office.

Approved Training Courses - To satisfy the requirement, officials must complete at least one of the following foundational courses (approximately 4 hours each):

- **Florida Senior Elected Officials Course** -Focuses on leadership roles during disasters, emphasizing communication, coordination, and decision-making to support emergency management personnel.

- **Florida Local Coordinating Officer Course** - Provides an overview of disaster assistance programs, mutual aid, and coordination with state and federal agencies, including FEMA programs.

- **When the World Descends** - Offers insight into emergency response operations when state resources are deployed, including incident command structure and interagency coordination.

Registration and Verification - All participants must register for courses through the **SERT TRAC platform**. Upon completion, certificates must be uploaded to verify compliance with the training requirement.

Waivers and Extensions - FDEM may grant waivers or extensions under qualifying circumstances such as hardship or emergency deployment, in accordance with applicable rules.

These training requirements are an important step toward strengthening our collective preparedness and ensuring effective leadership during emergencies. Your participation and timely completion are greatly appreciated.

If you have any questions or require assistance with registration, please do not hesitate to reach out.

MEMORANDUM

TO:
City Commission

FROM:
Samson Borgelin, Mayor

DATE:
April 20, 2026

RE:
Appointment of Members to the Downtown Development Advisory Board

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This memorandum is to inform you of an action item on the April 28, 2026 Commission Agenda requiring your preparation.

As part of the **North Lauderdale Economic Development & Revitalization (NLEDR)** initiative, the Downtown Development Advisory Board has been established. Each Commissioner is requested to appoint four (4) qualified members during the April 28th meeting.

Key Dates & Requirements:

- **First Meeting:** May 4, 2026 at 6:00 PM
- **Mandatory Workshop:** May 28, 2026 (AIAI / U.S. Conference of Mayors P3 Workshop)

The workshop will provide essential training on Public-Private Partnerships (P3) to support informed recommendations for downtown development.

Please select individuals committed to economic development, with strong community ties and availability to participate.

Thank you for your leadership and cooperation.

Cc:
Michael Sargis, City Manager
Michelle Austin Pamies, Esq., City Attorney
Susan Slattery, City Clerk
Louis Thelisca, Deputy City Clerk

CITY OF NORTH LAUDERDALE

OFFICE OF THE CITY CLERK

MEMORANDUM

TO: **Mayor and City Commission**

FROM: **Commissioner Dr. Regina Martin**

DATE: 6/28

RE: Car Show

Commissioner Dr. Regina Martin has requested that an item be added to the City Commission Agenda for May 12th for discussion on changing the date for the car show and also requesting funds to promote event at the Carl Fusco Park lot. This event will now take place on June 28th with consideration given to the use of her discretionary funds and city staff to support the event.

COMMISSION ACTION NEEDED:
Discussion regarding the proposed car show event and backpack drive, including potential locations and the possible use of Commissioner Dr. Regina Martin's discretionary funds and city staff to support the event in the month of June.

CITY OF NORTH LAUDERDALE

OFFICE OF THE CITY CLERK

MEMORANDUM

TO: **Mayor and City Commission**

FROM: **Susan Slattery, City Clerk**

DATE: **May 12, 2026**

SUBJECT: **Scrivener's error on three resolutions**

The three (3) attached resolutions were approved at the April 14, 2026 City Commission meeting. After the meeting, it was determined that the dollar amounts of the contract were omitted from the title of the resolutions. This scrivener's error has now been corrected and the resolutions amended.

There is no Commission action needed on this item.

RESOLUTION NO. 26-04-1871

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AUTHORIZING THE CITY MANAGER OR HIS DESIGNEE TO ENTER INTO A SERVICE AGREEMENT IN AN AMOUNT NOT TO EXCEED $30,850.60 BETWEEN THE CITY OF NORTH LAUDERDALE AND CALVIN GIORDANO & ASSOCIATES, INC., TO UPDATE CHAPTER 106, ARTICLE V - GENERAL SUPPLEMENTARY REGULATIONS IN THE CITY'S CODE OF ORDINANCES; A COPY OF THE AGREEMENT IS ATTACHED HERETO AS ATTACHMENT A; PROVIDING FOR FINDINGS; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the revision of Chapter 106, Article V - General Supplementary Regulations of the City's Code of Ordinances, will ensure the continued maintenance of the regulations to promote the health, safety, and general welfare of the City to prevent blighting influences and protect property values in the City; and

WHEREAS, the improvements made to Chapter 106, Article V - General Supplementary Regulations of the City's Code of Ordinances will simplify visual and written interpretations of content to aid in reader's understanding of code regulations; and

WHEREAS, the City wishes to engage with Calvin, Giordano, & Associates, Inc., to provide code revisions on its behalf in accordance with the terms and conditions of the Service Agreement between the City and Calvin, Giordano, & Associates, Inc., attached as Attachment "A"; and

WHEREAS, the City of North Lauderdale wishes to execute the Service Agreement.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA AS FOLLOWS:

SECTION 1. The above referenced "WHEREAS" clauses are true and correct and made a part hereof.

SECTION 2.

1. The City Commission hereby approves the Service Agreement with The City of North Lauderdale and Calvin, Giordano, & Associates, Inc., attached as Attachment "A", to update Chapter 106, Article V - General Supplementary Regulations of the City's Code of Ordinances for an amount not to exceed **$28,046.00,** with an additional 10% in contingency, equivalent to $2,804.60 for additional hourly services to cover changing State regulations subject to the Continuing Professional Service Agreement 24-PW-021.

2. The City Manager is hereby authorized to execute the Service Agreement with The City of North Lauderdale and Calvin, Giordano, & Associates, Inc., attached as Attachment "A", together

with such non-substantial changes as are acceptable to the City Manager and approved as to form and legal sufficiency by the City Attorney.

3. The appropriate City Officials are authorized to do all things necessary to carry out the aims of this Resolution.

SECTION 3. All Resolutions or parts of Resolutions in conflict with this Resolution are hereby repealed to the extent of such conflict.

SECTION 4. If any section, subsection, sentence, clause, or phrase of this Resolution is held to be invalid, such decision shall not affect the validity of the remaining portions of this Resolution.

SECTION 5. This Resolution shall take effect immediately upon adoption.

PASSED AND ADOPTED BY THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA THIS ___ DAY OF _____, 2026.

APPROVED AS TO LEGAL FORM:

_____

CITY ATTORNEY
AUSTIN PAMIES WEEKS NORRIS POWELL

_____

MAYOR SAMSON BORGELIN

_____

VICE MAYOR MARIO BUSTAMANTE

ATTEST:

_____

SUSAN SLATTERY, CITY CLERK

Requested by Administration	**Voted**
Vice Mayor Mario Bustamante	_____
Commissioner Dr. Regina Martin	_____
Commissioner Luke Lewis	_____
Commissioner Darrell (Dee) Lewis Ricketts	_____
Mayor Samson Borgelin	_____

RESOLUTION NO. 26-04-1872

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AUTHORIZING THE CITY MANAGER OR HIS DESIGNEE TO ENTER INTO A SERVICE AGREEMENT IN THE AMOUNT OF $43,105.15 BETWEEN THE CITY OF NORTH LAUDERDALE AND CALVIN GIORDANO & ASSOCIATES, INC., TO UPDATE CHAPTER 94 - SIGNS IN THE CITY'S CODE OF ORDINANCES; A COPY OF THE AGREEMENT IS ATTACHED HERETO AS ATTACHMENT A; PROVIDING FOR FINDINGS; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the revision of Chapter 94 of the City's Code of Ordinances, will ensure the continued maintenance of the regulations to promote the health, safety, and general welfare of the City to prevent blighting influences and protect property values in the City; and

WHEREAS, the improvements made to Chapter 94 of the City's Code of Ordinances will help maintain the quality, appearance, and dimensional regulations of signs in North Lauderdale; and

WHEREAS, the City wishes to engage with Calvin, Giordano, & Associates, Inc., to provide code revisions on its behalf in accordance with the terms and conditions of the Service Agreement between the City and Calvin, Giordano, & Associates, Inc., attached as Attachment "A"; and

WHEREAS, the City of North Lauderdale wishes to execute the Service Agreement.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA:

SECTION 1. The foregoing "WHEREAS" clauses are hereby ratified and confirmed as being true and correct and are hereby incorporated herein by this reference.

SECTION 2. The City Commission hereby approves the Service Agreement with The City of North Lauderdale and Calvin, Giordano, & Associates, Inc., attached as Attachment "A", to update Chapter 94 of the City's Code of Ordinances for an amount not to exceed **$39,186.50** with an additional 10% in contingency, equivalent to $3,918.65 for additional hourly services to cover changing State regulations subject to the Continuing Professional Service Agreement 24-PW-021.

SECTION 3. The City Manager is hereby authorized to execute the Service Agreement with The City of North Lauderdale and Calvin, Giordano, & Associates, Inc., attached as Attachment "A", together with such non-substantial changes as are acceptable to the City Manager and approved as to form and legal sufficiency by the City Attorney.

SECTION 4. All resolutions or parts of resolutions in conflict herewith are repealed to the extent of such conflict.

SECTION 5. If any section, subsection, sentence, clause, phrase, or portion of this Resolution is held invalid or unconstitutional by a court of competent jurisdiction, such portion shall be deemed a separate, distinct, and independent provision and such holding shall not affect the validity of the remaining portions hereof.

SECTION 6. This Resolution shall take effect immediately upon its adoption.

PASSED AND ADOPTED BY THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, ON THIS ___ DAY OF MAY, 2026.

APPROVED AS TO FORM:

_____
CITY ATTORNEY
AUSTIN PAMIES NORRIS WEEKS POWELL, PLLC

_____
MAYOR SAMSON BORGELIN

_____
VICE MAYOR MARIO BUSTAMANTE

ATTEST:

_____
CITY CLERK SUSAN SLATTERY

Requested by Administration	**Voted Yes**	**Voted No**
Commissioner Darrell (Dee) Lewis Ricketts	_____	_____
Commissioner Dr. Regina Martin	_____	_____
Commissioner Luke Lewis	_____	_____
Vice Mayor Mario Bustamante	_____	_____
Mayor Samson Borgelin	_____	_____

RESOLUTION NO. 26-04-1873

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, AUTHORIZING THE CITY MANAGER OR HIS DESIGNEE TO ENTER INTO A SERVICE AGREEMENT IN THE AMOUNT OF $332,464 BETWEEN THE CITY OF NORTH LAUDERDALE AND KIMLEY-HORN TO UPDATE CHAPTER 106 OF THE CITY'S CODE OF ORDINANCES, EXCLUDING ARTICLE V. - GENERAL SUPPLEMENTARY REGULATIONS; PROVIDING FOR FINDINGS; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the revision of Chapter 106 of the City's Code of Ordinances, excluding Article V. - General Supplementary Regulations, will ensure the continued maintenance of the regulations to promote the health, safety, morals, convenience, comfort, amenities, prosperity, and general welfare of the City; and

WHEREAS, the revision of Chapter 106 of the City's Code of Ordinances, excluding Article V. - General Supplementary Regulations, will meet the goals of the City's Comprehensive Plan's Future Land Use Element, by updating land use standards to meet the existing need for redevelopment and revitalization within the City; and

WHEREAS, the City wishes to engage with Kimley-Horn to provide code revisions on its behalf in accordance with the terms and conditions of the Service Agreement between the City and Kimley-Horn, attached as Attachment "A"; and

WHEREAS, the City of North Lauderdale wishes to execute the Service Agreement.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA:

SECTION 1. The foregoing "WHEREAS" clauses are hereby ratified and confirmed as being true and correct and are hereby incorporated herein by this reference.

SECTION 2. The City Commission hereby approves the Service Agreement with The City of North Lauderdale and Kimley-Horn, attached as Attachment "A", to update Chapter 106 of the City's Code of Ordinances, excluding Article V. - General Supplementary Regulations for an amount not to exceed **$302,240.00,** with an additional 10% in contingency, equivalent to $30,224 for additional hourly services to cover changing State regulations subject to the Continuing Professional Service Agreement 24-PW-021.

SECTION 3. The City Manager is hereby authorized to execute the Service Agreement with The City of North Lauderdale and Calvin, Giordano, & Associates, Inc., attached as Attachment "A", together with such non-substantial changes as are acceptable to the City Manager and approved as to form and legal sufficiency by the City Attorney.

SECTION 4. All resolutions or parts of resolutions in conflict herewith are repealed to the extent of such conflict.

SECTION 5. If any section, subsection, sentence, clause, phrase, or portion of this Resolution is held invalid or unconstitutional by a court of competent jurisdiction, such portion shall be deemed a separate, distinct, and independent provision and such holding shall not affect the validity of the remaining portions hereof.

SECTION 6. This Resolution shall take effect immediately upon its adoption.

PASSED AND ADOPTED BY THE CITY COMMISSION OF THE CITY OF NORTH LAUDERDALE, FLORIDA, ON THIS ___ DAY OF MAY, 2026.

APPROVED AS TO FORM:

_____
CITY ATTORNEY
AUSTIN PAMIES NORRIS WEEKS POWELL, PLLC

_____
MAYOR SAMSON BORGELIN

_____
VICE MAYOR MARIO BUSTAMANTE

ATTEST:

_____
CITY CLERK SUSAN SLATTERY

Requested by Administration	**Voted Yes**	**Voted No**
Commissioner Darrell (Dee) Lewis Ricketts	_____	_____
Commissioner Dr. Regina Martin	_____	_____
Commissioner Luke Lewis	_____	_____
Vice Mayor Mario Bustamante	_____	_____
Mayor Samson Borgelin	_____	_____